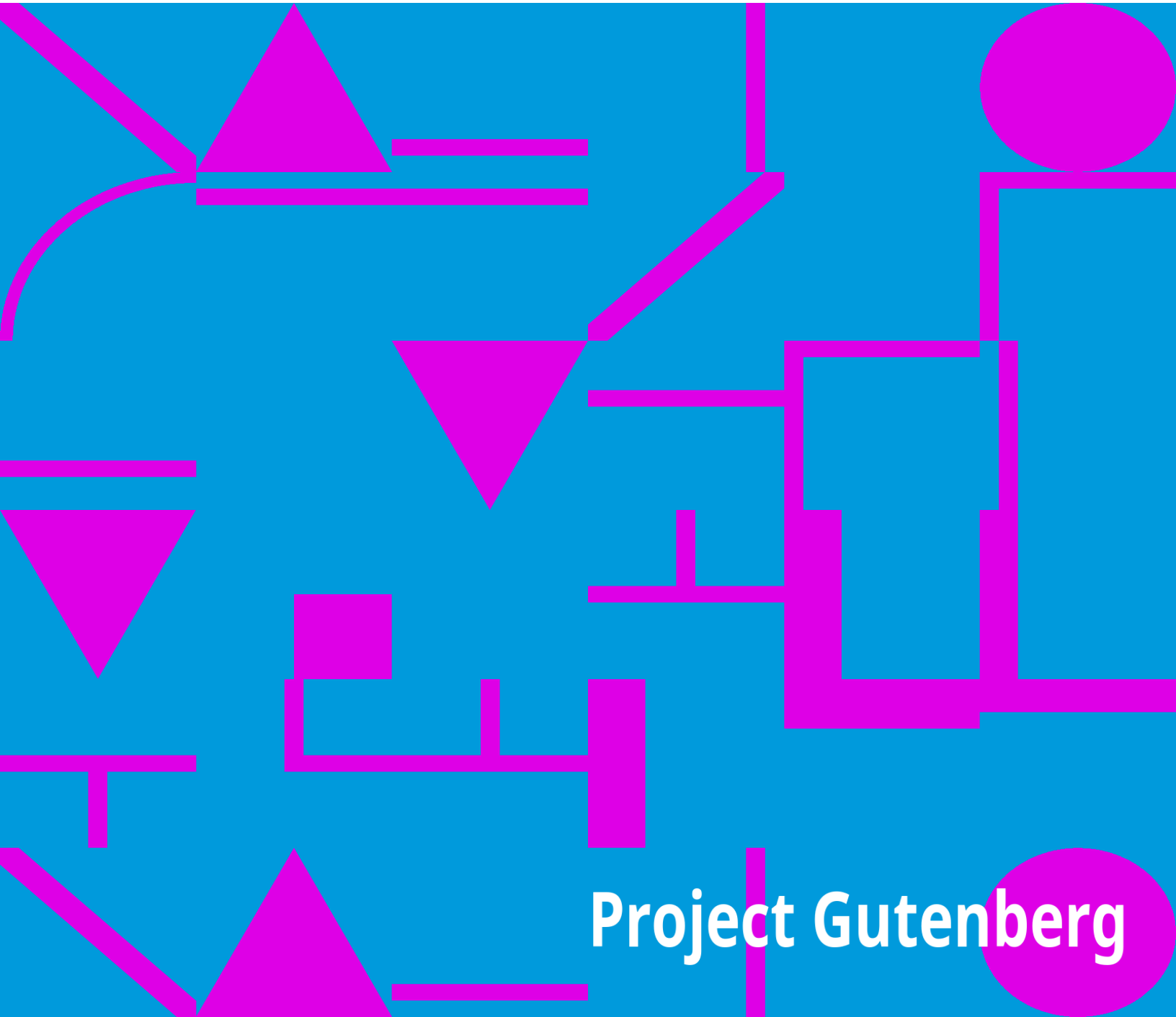


Mary Queen of Scots, 1542-1587

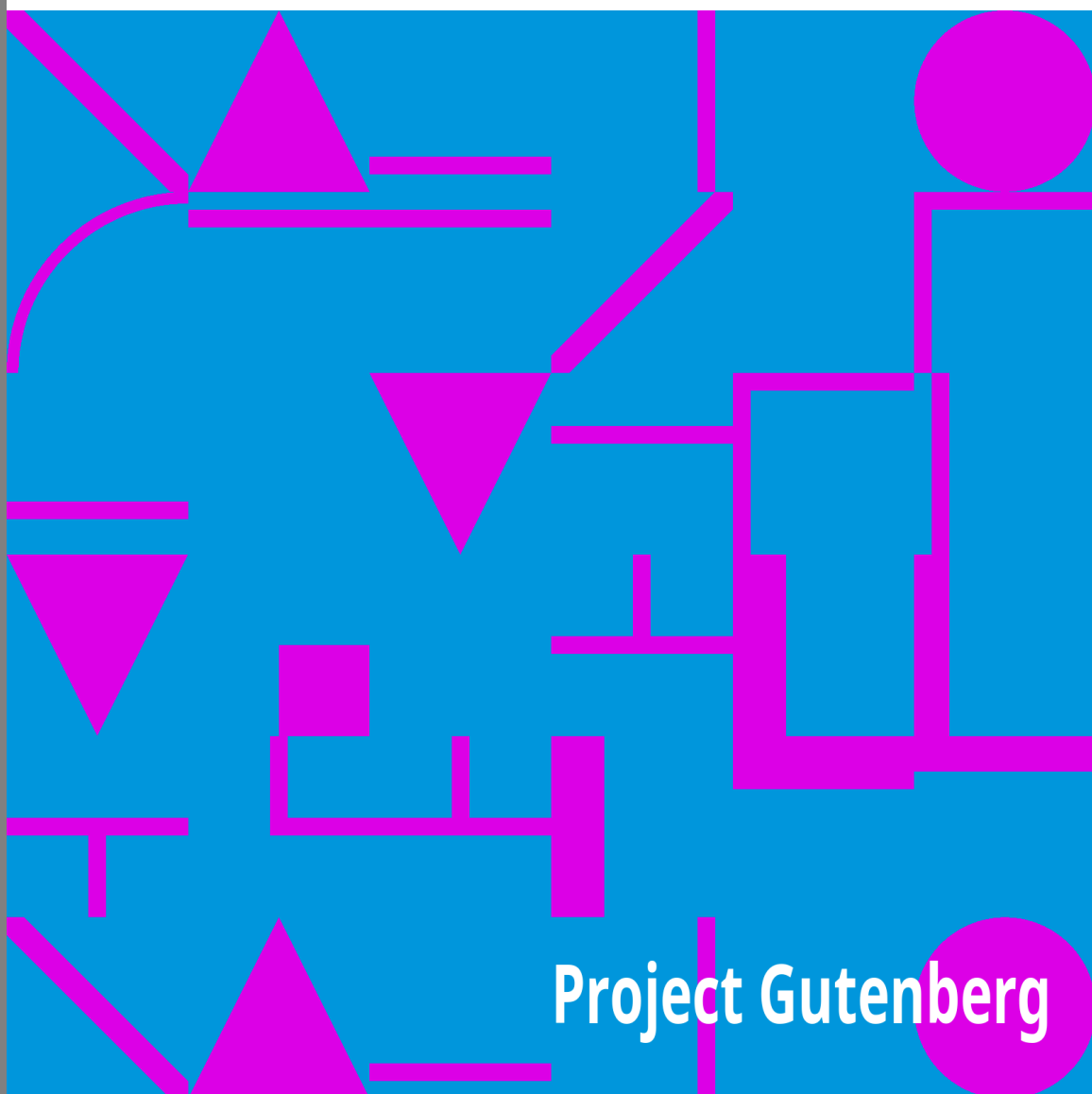
Robert S. Rait



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Mary Queen of Scots, 1542-1587

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WRITERS

NO. II.

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Mary

Queen of Scots

1542-1587

*Extracts from the English, Spanish, and Venetian
State Papers, Buchanan, Knox, Lesley, Melville,
The "Diurnal of Occurrents," Nau, &c. &c.*

ARRANGED AND EDITED BY

ROBERT S. RAIT

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PREFACE

The life of the Queen of Scots presents so many different lines of interest, that, in a volume of the present size, it is necessary to make and adhere to a selection from among the numerous possible varieties of treatment. The attention of the reader has, therefore, been concentrated upon the six active years in Mary's life, from her arrival in Scotland in August 1561, to her imprisonment in Lochleven Castle in June 1567. Documents bearing on the "English Wooing" and the other events of Mary's minority and residence in France have, accordingly, been omitted, except in so far as they are required for an intelligible introduction to the main theme of the book. Most of them, indeed, would be more relevant to a volume having for its subject the history of the Scottish Reformation. It is hoped that such extracts as have been chosen will, with the connecting notes, be sufficient to indicate the position of affairs in 1561. The struggle which had convulsed Scotland for twenty years, was, on its theoretical side, a contest between Roman Catholicism and Protestantism. On its practical side, it was a rivalry between two political parties; the one, headed by the Queen-Dowager, Mary of Guise, and Cardinal Beaton, aiming at the maintenance of the ancient alliance with France; and the other, led by the Protestant nobles and the reformed clergy, striving towards an understanding with England. Before Mary's arrival, the popular, or English Party, had made good its position, and the understanding between the nobles and Queen Elizabeth continued undisturbed. Such wish or power as Mary possessed for the re-establishment of a definite alliance with France, was lessened by her personal dislike to Catharine de Medici, and by her position as nearest heir to the English throne.

The Editor's main aim has been to place before the reader, as fairly as possible, the evidence for the divergent views of Mary's life and character. For this purpose, considerable space has been devoted to the Conferences at York and Westminster, in 1568 and 1569, which, although themselves outside the period specially chosen, yet refer to the events that fall within it. The selection of extracts has also been influenced by a desire to give prominence to the condition of Scotland at the time, and to the religious

difficulty associated with the person of John Knox; while an attempt has been made to bring into relief the personality of the rival queens.

The Editor desires to acknowledge the courtesy of the Right Reverend Monsignor Chisholm, Rector of Blairs College, Bishop-Designate of Aberdeen, who has sanctioned the reproduction of the Blairs portrait. He has also to acknowledge the assistance of Professor W. L. Davidson of Aberdeen; Mr. Herbert Fisher, Fellow of New College; and the Editor of the series, who have read the proof-sheets. Mr. Swinburne's translation of Mary's last poem ([p. 239](#)) is printed by kind permission, and Mr. T. F. Henderson has allowed the Editor to use the Documents first printed in his "Casket Letters and Mary Queen of Scots."

R. S. R.

NEW COLLEGE, OXFORD,
February 1899.

CONTENTS

Sect.	Page.
<u>I.</u> FROM MARY'S BIRTH TO HER RETURN TO SCOTLAND FROM FRANCE	1
<u>II.</u> FROM MARY'S ARRIVAL IN SCOTLAND TO THE DARNLEY MARRIAGE	17
<u>III.</u> FROM THE DARNLEY MARRIAGE TO THE RIZZIO MURDER	57
<u>IV.</u> MURDER OF RIZZIO TO MURDER OF DARNLEY	81
<u>V.</u> FROM THE MURDER OF DARNLEY TO THE FLIGHT INTO ENGLAND	114
<u>VI.</u> THE CONFERENCES AT YORK AND WESTMINSTER	132
<u>VII.</u> THE DOCUMENTS	162
<u>VIII.</u> THE END	225
<u>APPENDICES</u>	249

LIST OF ILLUSTRATIONS

1. QUEEN MARY (<i>From the painting preserved in St. Mary's College,</i>	<i>Frontispiece</i>
2. LINLITHGOW PALACE	1
3. HOLYROOD HOUSE (<i>The north-west end of Holyrood, shown in the foreground, contains Queen Mary's rooms.</i>)	20
4. QUEEN MARY'S SIGNET RING (<i>Preserved in the British Museum.</i>) FACSIMILE OF QUEEN MARY'S SIGNATURE AND MONOGRAM	83
5. LOCHLEVEN CASTLE	125
6. HANDBELL USED BY QUEEN MARY	238
7. EFFIGY OF QUEEN MARY IN WESTMINSTER ABBEY (<i>Erected by her son, King James, in 1612.</i>)	246

Nos. 1, 2, 3, 5, and 7 are from photographs by Messrs. Wilson, Aberdeen; Nos. 4 and 6 by Messrs. Taunt, Oxford. For full information regarding Nos. 4 and 6, see "Catalogue of Antiquities"

&c., exhibited in the Museum of the Archæological Institute of Great Britain and Ireland, 1856, pp. 169-182 (Edin. 1859).



**LINLITHGOW PALACE, QUEEN MARY'S
BIRTHPLACE.**

Mary Queen of Scots

SECTION I

**FROM MARY'S BIRTH TO HER RETURN TO SCOTLAND
FROM FRANCE**

CONTENTS

1. Lindsay's account of her birth and her father's death.
2. Her education and character in France.
 - (a) Letter of the Privy Council of Scotland.
 - (b) Conn's List of her accomplishments.
3. Lesley's account of her Betrothal and Marriage.
4. Lesley's account of the death of Mary of Guise.
5. The disputed clause in the Treaty of Edinburgh.
6. Act of the Scots Parliament establishing the Reformation.
7. Quotations from the English and Venetian diplomatic correspondence narrating
 - (a) The Death of Francis II., and its effect on Mary.
 - (b) The negotiations between Elizabeth and Mary.
 - (c) The attempt to capture Mary on her way to Leith.

The Birth of the Queen.

Lindsay of Pitscottie: History of Scotland, Ed. of 1778, p. 275.

[Mary was born at Linlithgow on December 2nd, 1542. Her father, James V., was dying at Falkland, broken-hearted after the defeat at Solway Moss. The reference in the following passage is, of course, to the succession of the House of Stewart to the Crown, through Marjory Bruce. King James died on December 8th.]

DEATH OF JAMES V.

By this the post came to the King out of Linlithgow, showing to him good tidings, that the Queen was delivered. The King enquired whether it was a man-child or a woman. The messenger said: "It is a fair daughter." The King answered: "Adieu, farewell; it came with a lass and it will pass with a lass." And so he recommended himself to the mercy of Almighty God, and spake little from that time forth, but turned his back unto his lords, and his face unto the wall.... In this manner he departed.... He turned him upon his back, and looked, and beheld all his nobles and lords about him, and gave a little smile of laughter, then kissed his hand, and offered the same to all his nobles round about him; thereafter held up his hands to God, and yielded his spirit to God.

On the death of James V. the Earl of Arran was made Regent, and negotiations were commenced by Henry VIII. for the marriage of the infant Queen of Scots to his son, afterwards Edward VI. After much discussion, a treaty to this effect was concluded in July 1543 between the Scots and English Commissioners. The relations of the two countries, however, almost immediately became strained, and war broke out in the end of the year, and in 1547 a treaty of alliance was made between Scotland and France against England, the Scots to receive French help against the English forces, and to marry

their Queen to the Dauphin. Mary landed in France in August 1548. The Earl of Arran was made Duke of Chatelherault by Henry II., but ceased to be Governor of Scotland in April 1554, when the Queen Mother, Mary of Guise, became Regent.

THE LITTLE QUEEN

1550—April. Queen Mary's Life in France— Character of the Queen.

Register of the Privy Council of Scotland.

Item.—Thereafter the said Master of Erskine shall report to the King {of France}, how rejoiced the Queen's Grace and my Lord Governor were of the news of our Sovereign Lady's welfare, and to hear that the King's Highness was so well contented with her Grace, and that she was so able to increase in virtue, and that the King's Majesty takes such consolation, seeing the beginning of her up-bringing to have been so good, that he hopes some day to see his son the husband of one of the most virtuous princes that man can desire: beseeching God of His infinite goodness that His Highness may see not only the thing that his noble heart desires, but also that our Sovereign Lady be after this so endued with the graces of God that she may by her birth {offspring} make his Highness to be called the grandfather of one of the most virtuous princes in the world, and king long to reign prosperously over both realms.

HER ACCOMPLISHMENTS

Her Education and Accomplishments.

Conaeus. (Jebb: De Vita ac Rebus, vol. ii. p. 15.)

Her main course of study was directed towards the attainment of the best European languages. So graceful was her French that the judgment of the most learned men recognised her command of the language; nor did she neglect Spanish or Italian, although she aimed rather at an useful knowledge than at a pretentious fluency. She followed Latin more readily than she spoke it. The charm of her poetry owed nothing to art. Her penmanship was clear, and (what is rare in a woman) swift. Her excellence in singing arose from a natural, not an acquired, ability to modulate her voice: the instruments she played were the cittern, the harp, and the harpsichord. Being very agile, she danced admirably to a musical accompaniment, yet with beauty and comeliness, for the silent and gentle movement of her limbs kept time to the harmony of the chords. She devoted herself to learning to ride so far as it is necessary for travelling or for her favourite exercise of hunting, thinking anything further more fitted for a man than for a woman.... Several tapestries worked by her with wonderful skill are yet to be seen in France, dedicated to the altars of God, especially in the monastery in which she was nurtured on her first arrival in the kingdom.

THE "HANDEASTING"

1558.—April. Mary's Betrothal and Marriage to the Dauphin.

Lesley's History of Scotland (Bannatyne Club, pp. 264-5).

All things necessary for the marriage of the Queen of Scots with the Dauphin being prepared, and the whole nobility and estates of the realm being convened at Paris, upon the 20th day of April 1558, in the great hall of the palace of the Louvre, in presence of King Henry of France, of the Queen his wife, and a great number of cardinals, dukes, earls, bishops, and noblemen, the "fianzellis," otherwise called the handfasting {betrothal}, was made with great triumph, by the Cardinal of Lorraine, between the excellent young Prince Francis, eldest son to the most valiant, courageous, and victorious prince, Henry, King of France, and Mary, Queen, inheritor of the realm of Scotland, one of the fairest, most civil and virtuous princesses of the whole world, with great solemnity, triumph, and banqueting; and upon the next Sunday, being the 24th of April, the marriage was solemnised and completed betwixt them by the Cardinal of Bourbon, Archbishop of Rouen, in Notre Dame Kirk of Paris; where the Bishop of Paris made a very learned and eloquent sermon, in presence and assistance of the King, Queen, and many prelates, noblemen, ladies, and gentlemen of all estates and callings, with most excellent triumph, and the heralds crying with loud voices three sundry times, "Largess"; casting to the people great quantity of gold and silver of all kinds and sorts of coin, where there was great tumult of people, every one troubling and pressing others for greediness to get some part of the money. After which there were as great solemnities used in the kirk, with as great dignity and reverence as was possible, which being done, they entered into the bishop's palace, where there was a sumptuous and princely dinner prepared for the whole company; and after they had dined, there was used a princely dancing, called the ball royal, to the great comfort and pleasure of all being there present; and how soon the ball was ended, they passed to the great hall of the palace royal, where they supped with so great magnificence, pomp, and triumph, that none of the assistance there had ever seen the like; and there presently was given to the Dauphin

the title of King Dauphin, so that he and the Queen were called the King and Queen Dauphin.

PROGRESS OF EVENTS

[In connection with the marriage settlements, an assurance was given to the Scots Parliament of the maintenance of its liberties, and of the succession of the nearest heir, in case of Mary's death without issue. (*Acts* ii. 508-519.) But, at the same time, Mary was induced to sign three documents transferring her rights, in case of her decease without issue, to the King of France, his heirs and successors. See Labanoff, "Lettres, Instructions et Mémoires de Marie Stuart," vol. i. pp. 50-56.]

Events moved rapidly between 1558 and Mary's return to Scotland in 1561. In November 1558 Mary Tudor died, and Henry II. caused Francis and Mary to assume the arms of England. In June 1559 Henry II. died, and Francis II. succeeded. Meanwhile, in Scotland, the Reformation was making progress. In 1559 the Protestants formed themselves into "the Congregation of the Lord," and signed the National Covenant to abolish Roman Catholicism. After the death of Henry II., when it seemed probable that the Guises would guide the government of Scotland, the discontent broke into open rebellion. The insurgents obtained help from Elizabeth, and proposed a marriage between the English Queen and the Earl of Arran, the heir of the Duke of Chatelherault, who stood next in the order of succession to the Scottish throne. The Queen-Dowager took refuge in Edinburgh Castle, and had the assistance of French troops. The Lords of the Congregation and their English allies commenced the siege of Leith, but with small success. The illness of Mary of Guise led to the conclusion of peace, and to the formulating of the Treaty of Edinburgh, which was the cause of a long dispute between Elizabeth and Mary Stuart.

A RECONCILIATION

1560.—June 11. The Death of the Queen Regent.

Lesley's History of Scotland, Dalrymple's Translation, Scottish Text Society, vol. ii. pp. 439-441.

Now the Queen Regent, almost at an end, through force of her sickness, for she was infected with sore sickness, commands all the nobility of both the parties to be brought before her, who were in Edinburgh. And to them she declared and plainly showed the necessity of peace and concord between them, how great it was. She related the old bond of the perpetual friendship that was ever between Scots and French, lately confirmed by the matrimony and marriage of the Queen's daughter, and how or what way they should keep it with all diligence.... She affirms it above all things most necessary that they see to it, that as soon as the conditions are agreed upon, both English and French in haste pass out of Scotland, lest that if only the Frenchmen go, the Englishmen come in haste in greater companies upon the Scots borders, and invade them in earnest. All the gentlemen severally she persuades, that before all they remember the privilege of their nation and native country. When she had said this she burst into a torrent of tears. Of those whom she thought she had in any way offended she very gently asks pardon. And to them by whom in any way she was offended she wishes all kindness, gives her blessing, and with all her heart her everlasting benison, as we call it. To show and plainly declare that what she here said was unfeigned, and without all kind of dissimulation, she receives all her nobles with all pleasure, with a pleasant countenance, and even embraces them with the kiss of love. With all the rest she shakes hands, ... so that there was none of so hard a heart, or stout a stomach, or adamant a mind in all that company, whom to think of moved not to tears.... But the next day, which was Monday, she died and departed this life.

1560.—July. The Treaty of Edinburgh.

Rymer's Fædera, vol. xv. p. 594.

[The Treaty of Edinburgh provided that both the French soldiers who had come to help the Queen Regent, and the English soldiers who aided the insurgents, should leave the kingdom, and it renounced Mary's claim to the throne of England: whether absolutely or only with reference to Elizabeth, is a matter of dispute. The clauses to which Mary objected are here quoted.]

... It is agreed that the said most Christian King and Queen Mary, and each of them, abstain henceforth from using the said title and bearing the arms of the kingdom of England or of Ireland, and that they will forbid and prohibit their subjects, so that no one in the kingdom of France and Scotland and their provinces, or in any part of them, do in any way use the said title or arms, and that they will, as far as possible, provide and guard that nobody in any way commingle the said arms with the arms of the kingdoms of France and Scotland.

The Abolition of Roman Catholicism by the Scottish Parliament.

Acts of Parliament of Scotland, August 24, 1560.

Therefore it is statute and ordained in this present Parliament ... that no manner of person or persons say mass, nor yet hear mass, nor be present thereat, under the pain of confiscation of all their goods, moveable and unmoveable, and punishing of their bodies at the discretion of the magistrate within whose jurisdiction such persons happen to be apprehended, for the first fault; Banishment from the Realm, for the second fault; and justifying to the deed *{i.e. capital punishment}* for the third fault. And ordains all sheriffs, stewards, baillies, and their deputies, provosts and baillies of burghs, and other judges whatsoever within this realm, to take diligent suit and inquisition within their bounds, when any such usurped ministry is in use, mass-saying, or they that be present at the doing thereof, ratifying and approving the same, and take and apprehend them to the effect that the pains above written may be executed upon them.

December 15. The Death of Francis II.

Venetian Calendar, vol. vii. December 3, 1560.

Michiel Surian, Venetian Ambassador in France, to the Doge and Senate.

On the 1st instant I informed your Serenity that the king was worse, and this last night I wrote that his life was despaired of. He now still continues lingering without any other hope than in the mercy of God.... The whole Court is now constantly engaged at prayers, and processions are being made in all the churches of the city.

December 6.

It has pleased our Lord God that the most Christian King, last night a little before midnight, should pass to a better life, and end the agony in which he lay from Saturday evening until the day of his death.

A DOLOROUS WIFE

1560.—December 6. Mary's Devotion to Francis II.

Throckmorton to Elizabeth. Foreign Calendar, Elizabeth.

The 6th of this present, at eleven of the clock at night, he departed to God, leaving as heavy and dolorous a wife, as of right she had good cause to be, who by long watching with him during his sickness, and painful diligence about him, and specially by the issue thereof, is not in best tune of her body, but without danger.

LA REINE BLANCHE

1560.—December 31. Proposals for Mary's Return to Scotland, and for a Second Marriage.

Throckmorton to the Council. Foreign Calendar, Elizabeth.

Now that death hath thus disposed of the late French King, whereby the Scottish Queen is left a widow, one of the special things your Lordships have to consider, and to have an eye to, is the marriage of that Queen. During her husband's life there was no great account made of her, for that being under bond of marriage and subjection of her husband (who carried the burden and care of all matters) there was offered no great occasion to know what was in her. But since her husband's death she hath showed (and so continueth) that she is both of great wisdom for her years, modesty, and also of great judgment in the wise handling herself and her matters, which, increasing with her years, cannot but turn greatly to her commendation, reputation, honour, and great benefit of her and her country.... Immediately upon her husband's death she changed her lodging, withdrew herself from all company, and became so solitary and exempt of all worldliness that she doth not to this day see daylight, and so will continue out forty days.

1561.—June 13. Mary's Intentions Regarding Religion on her Return.

Throckmorton to the Queen. Foreign Calendar, Elizabeth.

"Well," said she {Mary}, "I will be plain with you, and tell you what I would all the world should think of me. The religion that I profess I take to be most acceptable to God, and, indeed, neither do I know, nor desire to know, any other. Constancy doth become most folks well, but none better than princes and such as hath rule over realms, and especially in the matter of religion. I have been brought up in this religion, and who might credit me in anything if I should show myself light in this case?"

REQUEST FOR A PASSPORT

Ibid., July 11.

The Queen of Scotland, Queen Dowager of France, desires to obtain the following from her good sister, the Queen of England, and has charged M. D'Oysel to the same effect:—

1. A passport for her, with a clause that if she arrives in any part of England, she may tarry there, and purchase provisions and necessaries, and if it seems good to her, that she may leave her ships and pass by land to Scotland.
2. Another safe conduct for her to pass through England to Scotland with her train, and one hundred horses, mules, &c.
3. Another safe conduct, with commission for the said M. D'Oysel to go and return through England to Scotland.

[D'Oysel had an interview with Elizabeth, who inquired about the ratification of the Treaty of Edinburgh, and declined to grant the safe-conduct "except she (Mary) shall first accord to do

those things that by her promise, under her hand and seal, she is bound to do."—*Foreign Calendar, July 13th, 1561.*]

A WORDY WARFARE

1561.—July 26. Throckmorton to Queen Elizabeth.

Cabala, pp. 345-349.

LANGUAGE THAT BECOMETH A QUEEN

... The 20th of this present, in the afternoon, I had access to the said Queen of Scotland ... the said Queen sat down, and made me sit also by her; she then commanded all the audience to retire them further off, and said: Monsieur l'Ambassadeur, I know not well my own infirmity, nor how far I may with my passion be transported, but I like not to have so many witnesses of my passions, as the Queen, your mistress, was content to have when she talked with Monsieur d'Oysel. There is nothing that doth more grieve me, than that I did so forget myself, as to require of the Queen, your mistress, that favour which I had no need to ask; I needed no more to have made her privy to my journey, than she doth me of hers; I may well enough pass home into my own realm, I think, without her passport or license; for though the late King, your master (said she), used all the impeachment he could both to stay me and to catch me when I came hither, yet you know, Monsieur l'Ambassadeur, I came hither safely, and I may have as good means to help me home again as I had to come hither, if I would employ my friends.... Let the Queen, your mistress, think that it will be thought very strange amongst all princes and countries, that she should first animate my subjects against me, and now being widow, to impeach my going into my own country. I ask her nothing but friendship. I do not trouble her State, nor practise with her subjects; and yet I know there be in her realm that be inclined enough to bear offers; I know also they be not of the mind she is of, neither in religion or other things. The Queen, your mistress, doth say that I am young and do lack experience! indeed (quoth she), I confess, I am younger than she is, and do want experience. But I have age enough and experience to use myself towards my friends and kinsfolks friendly and uprightly; and I trust my discretion shall not so fail me, that my passion shall move me to use other language of her than it becometh of a Queen,

and my next kinswoman.... I answered, madam, I have declared unto you my charge commanded by the Queen, my mistress, and have no more to say to you on her behalf, but to know your answer for the ratification of the Treaty. The Queen answered, I have aforetime showed you, and do now tell you again, that it is not meet to proceed in this matter, without the advice of the nobles and states of mine own realm, which I can by no means have until I come amongst them.... But I pray you, Monsieur l'Ambassadeur (quoth she), tell me how vieth this strange affection in the Queen, your mistress, towards me? I desire to know it, to the intent that I may reform myself if I have failed. I answered ... As soon as the Queen, my mistress, after the death of her sister, came to the crown of England, you bore the arms of England diversely quartered with your own, and used in your country notoriously the style and title of the Queen, my mistress, which was never by you put in use in Queen Mary's time.... Monsieur l'Ambassadeur (said she), I was then under the commandment of King Henry, my father, and of the King, my lord and husband; and whatsoever was done then by their order and commandments, the same was in like manner continued until both their deaths, since which time, you know, I neither bore the arms nor used the title of England.... It were no great dishonour to the Queen my cousin, your mistress, though I, a Queen also, did bear the arms of England; for, I am sure, some, inferior to me, and that be not on every side so well apparented as I am, do bear the arms of England. You cannot deny (quoth she) but that my grandmother was the King her father's sister, and (I trow) the eldest sister he had. I do assure you, Monsieur l'Ambassadeur, and do speak unto you truly as I think, I never meant nor thought matter against the Queen, my cousin.... And so I took my leave of the said Queen for that time.

TO DIE MIGHT BE BETTER THAN TO LIVE

... And to the intent I might better decipher, whether the Queen of Scotland did mind to continue her voyage, I did, the ... 21st of July ... repair to the said Queen of Scotland to take my leave of her.... The said Queen made answer, Monsieur l'Ambassadeur, if my preparations were not so much advanced as they are, peradventure the Queen your mistress's unkindness might stay my voyage; but now I am determined to adventure the matter, whatsoever come of it. I trust (quoth she) the wind will be so favourable, as I shall not need to come on the coast of England; and if I do, then, Monsieur

l'Ambassadeur, the Queen your mistress shall have me in her hands to do her will of me; and if she be so hard-hearted as to desire my end, she may then do her pleasure, and make sacrifice of me; peradventure that casualty might be better for me than to live; in this matter (quoth she) God's will be fulfilled.

"ADIEU, PLAISANT PAYS DE FRANCE"

1561.—August 12. The Voyage from France to Scotland.

Cecil to the Earl of Sussex. Wright's Elizabeth, vol. i. p. 69.

The Scottish Queen was the 10th of this month at Boulogne, and meaneth to take shipping at Calais. Neither those in Scotland nor we here do like her going home. The Queen's Majesty hath three ships in the north seas to preserve the fishers from pirates. I think they will be sorry to see her pass.

Cecil to Throgmorton, August 26. Hardwicke's State Papers, vol. i. p. 176.

The 19th of this present, in the morning early, she {Mary} arrived at Leith with her two galleys, her whole train not exceeding sixty persons of meaner sort.... The Queen's Majesty's ships that were upon the seas to cleanse them from pirates saw her and saluted her galleys, and staying her ships examined them of pirates and dismissed them gently. One Scottish ship they detain, as vehemently suspected of piracy.

From the Charges against the Countess of Lennox in Foreign Calendar, 1562. (May 7.)

She loves not the Queen ... hearing that the Queen of Scots had passed through the seas, she sat down and gave God thanks, declaring to those by how he had always preserved that Princess at all times, especially now, "for when the Queen's ships were almost near taking of the Scottish Queen, there fell down a mist from heaven that separated them and preserved her."

SECTION II

FROM MARY'S ARRIVAL IN SCOTLAND TO THE DARNLEY MARRIAGE

CONTENTS

1. Knox's description of Mary's reception, and his opinion of the Queen.
2. Randolph's account of Mary's public entry into Edinburgh.
3. Illustrations of the religious difficulty.
 - (a) Proclamation of the Privy Council.
 - (b) Randolph's account of Mary's first High Mass.
 - (c) Popular Songs against the Pope.
4. Mary on the Treaty of Edinburgh.
5. The conduct of affairs at the beginning of the reign.
 - (a) Cecil's opinion.
 - (b) Randolph's impressions of Murray, Lethington, and Knox.
 - (c) The Huntly Rebellion as narrated by Randolph.
 - (d) The passing of the sentence on Huntly's embalmed corpse.
6. Knox's account of the Châtellar affair.
7. Knox's account of the famine of 1563.
8. Knox on the opening of Parliament.
9. One of Knox's interviews with the Queen.
10. Mary's marriage-troubles.
 - (a) References Selected from the diplomatic correspondence from March 1561 to March 1564.
 - (b) Early suspicions of the Darnley marriage.
 - (c) Melville's experiences in London.
 - (d) Further diplomatic correspondence.

The Queen's Arrival in Scotland.

Laing's Edition of Knox's History of the Reformation in Scotland, vol.
i. pp. 267-271.

THE FIRST MASS

The 19th day of August 1561, betwixt seven and eight hours before noon, arrived Mary, Queen of Scotland, then widow, with two galleys out of France. In her company (besides her gentlewomen, called the Maries) were her uncles, the Duc d'Aumale, the Grand Prior, the Marquess d'Elbeuf. There accompanied her also D'Amville, son to the Constable of France, with other gentlemen of inferior condition, besides servants and officers. The very face of the heaven at the time of her arrival did manifestly speak what comfort was brought into this country with her (to wit) sorrow, dolour, darkness, and all impiety; for in the memory of man that day of the year was never seen a more dolorous face of the heaven, than was at her arrival, which two days after did so continue: For besides the surface wet, and corruption of the air, the mist was so thick and dark that scarce might any man espy another the length of two pair of butts; the sun was not seen to shine two days before nor two days after. That forewarning, God gave unto us; but alas! the most part were blind.... Fires of joy were set forth at night, and a company of most honest men with instruments of music, and with musicians, gave their salutations at her chamber window: The melody (as she alleged) liked her well; and she willed the same to be continued some nights after with great diligence. The Lords repaired to her from all quarters, and so was nothing understood but mirth and quietness, till the next Sunday, which was the 24th of August, when preparations began to be made for that Idol of the Mass to be said in the Chapel; which pierced the hearts of all. The Godly began to bolden, and then began openly to speak, *Shall that Idol be suffered again to take place within this Realm? It shall not.* The Lord Lindsay (then but Master) with the Gentlemen of Fife, and others, plainly cried in the close or yard, *The idolatrous Priests should die the death, according to God's Law.* One that carried in the candle was evil

afraid; but then began flesh and blood fully to show itself. There durst no Papist, neither yet any that came out of France, whisper: But the Lord James, the man whom all the Godly did most reverence, took upon him to keep the Chapel-door. His best excuse was, that he would stop all Scotsmen to enter in to the Mass; but it was and is sufficiently known, that the door was kept that none should have entry to trouble the Priest, who, after the Mass was ended, was committed to the protection of the Lord John of Coldingham and the Lord Robert of Holyrood House, who then were both Protestants, and had communicate at the Table of the Lord. Betwixt them both was the Priest conveyed to his chamber. And so the Godly departed with grief of heart, and after noon repaired to the Abbey in great companies, and gave plain signification, that they could not abide that the land, which God by His power had purged from Idolatry, should in their eyes be polluted again.

A PROUD MIND AND A CRAFTY WIT

Knox's Opinion of the Queen.

Ibid., p. 286.

John Knox his own judgment, being by some of his familiars demanded what he thought of the Queen, said, "If there be not in her a proud mind, a crafty wit, and an indurate heart against God and His truth, my judgment faileth me."

1561.—2nd September. The Queen's Public Entry into Edinburgh.

Thomas Randolph to Cecil. Wright's Elizabeth, vol. i. p. 63.

Upon Tuesday last she made her entry. She dined in the Castle. The first sight that she saw after she came out of the Castle was a boy of six years of age, that came as it were from heaven out of a round globe, that presented unto her a Bible and a Psalter, and the keys of the gates, and spake unto her the verses which I send you. Then, for the terrible significations of God upon idolatry, there were burnt Korah, Dathan, and Abiram, in the time of their sacrifice. They were minded to have a priest burned at the altar, at the elevation. The Earl of Huntly stayed {stopped} that pageant, but hath played many as wicked as that since he came hither. He bare that day the sword.

[The following are the lines to which Randolph referred. As only the first stanza has appeared in print before, the verses are given in their original form.]



HOLYROOD.

A "NEEDEFULL" GIFT

A Ballad of Welcome.

Welcome, O Souveraine! Welcome, O natyve Quene!

Welcome to us your subiects great and small!

Welcome, I say, even from the verie splene,^[1]

To Edinburgh your syttie principall.

Whereas your people with harts both one and all
Doth here{in} offer to your excellence

Two proper volumes^[2] in memoriall

As gyfte most gainand^[3] to a godlie prince.

Wherein your Grace may reade to understande

The perfett waye unto the hevennes hie,

And how to Rule your subiects and your land,

And how your kingdom stablished shalbe,

Judgment and wysdome therein shall ye see.

Here shall you find your God his due commande,

And who the contrarie does wilfullie,

How them he threatens with his scourge and wand.

Ane gyfte more precious cold^[4] we none present

Nor yet more needfull to your Excellence,

Qwylk^[5] is Gode's lawes his words and testament

Trewlie translate with frutefull diligence,

Qwylk to accepte with humble reverence

The Provist present most hartelie you exorte

With the hole subiects due obedience,

Together with the keyes of their porte.

In signe that they^[6] and all that they possess

Bodie and good shall ever reddie be

To serve you as their souveraine hie mistress

Both daye and {night} after thair bound dutie:

Besechinge^[7] your Grace in this necessitie

Thair {too} shorte tyme and {their} goodwill^[8] consether^[9]
 Accepte their harts and take it pacientlie
That may be done, seing all is yours together.

A TOLERANT PROCLAMATION

Illustrations of the Religious Difficulty— Proclamation regarding Religion.

Register of the Privy Council of Scotland, August 26, 1561.

Forasmuch as the Queen's Majesty has understood the great inconveniences that may come through the division presently standing in this realm for the difference in matters of religion, that her Majesty is most desirous to see pacified by a good order, to the honour of God and the tranquillity of her realm, and means to take the same by the advice of her Estates as soon as conveniently may be; and that her Majesty's godly resolution therein may be greatly hindered in case any tumult or sedition be raised among the lieges, if any sudden innovation or alteration be pressed or attempted before that the order may be established. Therefore ... her Majesty ordains letters to be directed to charge all and sundry, lieges, ... that none of them take upon hand, privately or openly, to make any alteration or innovation of the state of religion, or attempt anything against the form which her Majesty found public and universally standing at her Majesty's arrival in this her realm, under the pain of death, ... Attour, her Majesty, by the advice of the Lords of her Secret Council, commands and charges all her lieges, that none of them take upon hand to molest or trouble any of her domestic servants or persons whomsoever come forth of France, in her Grace's company, at this time, in word, deed, or countenance ... under the said pain of death....

AN UNRULY PEOPLE

1561.—November 1. The Queen's first High Mass.

Thomas Randolph to Cecil. Wright's Elizabeth, vol. i. p. 83.

Upon All Hallow Day the Queen had a song mass. That night one of her priests was well beaten for his reward by a servant of the Lord Robert's. We look to have it proclaimed again that no man, under pain of confiscation of goods and lands here, say or come unto her own mass, saving her own household, that came out of France....

It is now called in question whether that the Princess being an idolater may be obeyed in all civil and politic{al} actions. I think marvellously of the wisdom of God that gave this unruly, inconstant, and cumbersome people no more substance than they have, for then would they run wild.

THE HUNT IS UP

Popular Songs.

[The stanzas which follow are selected from the popular songs of the period. They date from a year or two before Mary's arrival in Scotland, but will serve to illustrate the extreme difficulty experienced by a Roman Catholic queen in dealing with such a people.]

The Gude and Godly Ballates. Reprint of 1868, p. 153.

The hunt is up, the hunt is up, ^[10]
It is now perfect day,
Jesus, our King, is gone in hunting,
Who likes to speed, they may.

A cursed fox lay hid in rocks
This long and many a day,
Devouring sheep, while he might creep,
None might him scare away.

It did him good to lap the blood
Of young and tender lambs;
None could he miss, for all was his,
The young ones with their dams.

The hunter is Christ, that huntis in haste,
The hounds are Peter and Paul;
The Pope is the fox, Rome is the rocks,
That rubs us on the gall.

THE POPE, THAT PAGAN FULL OF PRIDE

Ibid.

The Pope, that pagan full of pride,
He has us blinded long;
For where the blind the blind does guide,
No wonder they go wrong;
Like prince and king, he led the ring
Of all iniquity;
"Hay trix, tryme go trix,"
Under the greenwood tree.

But his abomination
The Lord has brought to light;
His Popish pride, and threefold crown,
Almost have lost their might.
His plack pardons are but lardouns^[11]
Of new found vanity;
"Hay trix, tryme go trix,"
Under the greenwood tree.

Of late I saw these limmers^[12] stand
Like mad men at mischief,
Thinking to get the upper hand,
They look after relief;
But all in vain, go tell them plain
That day will never be;
"Hay trix, tryme go trix,"
Under the greenwood tree.

O Jesus! if they thought great glee
To see God's word down smorit,^[13]
The Congregation made to flee,
Hypocrisy restorit;
With masses sung, and bellis rung,
To their idolatry;
Marry, God thank you, we shall gar brank^[14] you,
Before that time truly.

MURRAY, LETHINGTON, AND KNOX

The Conduct of Affairs in the Early Years of the Reign—Randolph on Mary's Ministers.

Randolph to Cecil, October 24, 1561. Keith's History, vol. i. pp. 98-99.

I receive of her Grace at all times very good words. I am borne in hand {assured} by such as are nearest about her, as the Lord James and the Laird of Lethington, that they are meant as they are spoken; I see them above all others in credit, and find in them no alteration, though there be that complain that they yield too much unto her appetite; which yet I see not. The Lord James dealeth according to his nature, rudely, homely, and bluntly; the Laird of Lethington more delicately and finely, yet nothing swerveth from the other in mind and effect. She is patient to hear, and beareth much. The Earl Marischal is wary, but speaketh sometimes to good purpose.... Mr. Knox cannot be otherwise persuaded, but many men are deceived in this woman; he feareth yet that *posteriora sunt pejora primis*; his severity keepeth us in marvellous order. I commend better the success of his doings and preachings than the manner thereof, tho' I acknowledged his doctrine to be sound: His prayer is daily for her—"That God will turn her obstinate heart against God and His truth; or, if the Holy Will be otherwise, to strengthen the hearts and hands of His chosen and elect, stoutly to withstand the rage of all tyrants," &c., in words terrible enough.

PROTESTANT RULE

Cecil to Challoner (English Ambassador in Spain). Foreign Calendar, 1562, June 8, 1562.

In Scotland ... the Earl of Huntly is in no credit with the Queen. The whole governance rests in Lord James, being Earl of Mar, and the Laird of Lethington. The others that have credit are the Earls Marshal, Argyll, Morton, and Glencairn, all Protestants. The Queen quietly tolerates the reformed religion throughout the realm, who is thought to be no more devout towards Rome than for the contentation of her uncles.

[Cecil's suspicion was quite unfounded. Throughout her reign Mary was always in correspondence with the Pope, to whom she appealed for money to help her in her efforts for the restoration of Catholicism in Scotland.]

Mary on the Treaty of Edinburgh.

Queen Mary to Queen Elizabeth, January 5, 1562. Keith's History, vol. ii. p. 134.

How prejudicial that Treaty is to such title and interest as by birth and natural descent of your own lineage may fall to us, by very inspection of the Treaty itself ye may easily perceive, and how slenderly a matter of so great consequence is wrapped up in obscure terms. We know how near we are descended of the blood of England, and what devices have been attempted to make us, as it were, a stranger from it. We trust, being so near your cousin, ye would be loth we should receive so manifest an injury as all utterly to be debarred from that title which in possibility may fall unto us.

THE WAY TO INVERNESS

1562.—Randolph's Account of the Huntly Rebellion.

Randolph to Cecil from Old Aberdeen, August 31, 1562. Foreign Calendar, 1562.

The Queen in her progress is come to Old Aberdeen, where the university is.... Her journey is cumbersome, painful, and marvellous long; the weather extreme foul and cold, all victuals marvellous dear; and the corn that is, never like to come to ripeness.

Randolph to Cecil from Spynie, Morayshire, September 18.

Within these eight or ten days the Queen arrived at Inverness, the furthest part of her determined journey. She has had just cause for misliking the Earl of Huntly of long time, whose extortions have been so great, and other manifest tokens of disobedience such that it was no longer to be borne. Intending to reform these, she has found in him and his two eldest sons (the Lairds of Gordon and Findlater) open disobedience so far that they have taken arms and kept houses against her.

The first occasion hereof was this. The Laird of Findlater, being commanded to ward in Edinburgh, broke prison; and being afterwards summoned to the Assize at Aberdeen, disobeyed also a new command from the Queen to enter himself prisoner in Stirling Castle. The Queen thinking this to be done by the advice of his father, refused to come to his house, she being looked and provided for. He, unadvisedly conceiving the worst, took the worst way, and supported his sons to manifest rebellion. At her arrival at Inverness on the 9th, she proposed to lodge in the castle, which belongs to her, and the keeping only to the Earl of Huntly, being Sheriff by inheritance of the whole shire, but was refused entrance, and forced to lodge in the town. That night, the castle being summoned, answer was given that without the Lord Gordon's command it should not be delivered.

Next day the country assembled to the assistance of the Queen. The Gordons, finding themselves not so well served by their friends as they looked for (who had above 500 men), rendered the castle, not being twelve or fourteen able persons. The captain was hanged, and his head set up on the castle, others condemned to perpetual prison, and the rest received mercy.

The Queen remained there five days, and now journeys homewards as far as Spynie, a house of the Bishop of Moray.... The Earl of Huntly keeps his house, and would have it thought that his disobedience came through the evil behaviour of his sons. The Queen is highly offended....

THE QUEEN'S COURAGE

In all these broils I assure you I never saw her merrier, never dismayed, nor never thought that so much^[15] to be in her that I find. She repented nothing, but (when the lords and others at Inverness came in the morning from the watch) that she was not a man, to know what life it was to lie all night in the fields, or to walk on the causeway with a jack and knapsack, a Glasgow buckler, and a broad sword.

... His {Huntly's} house is fair, and best furnished of any ... in the country; his cheer is marvellous great; his mind such as it ought to be towards his Sovereign.

[The last sentence is *à propos* of a visit made by Argyll and Randolph to Huntly.]

THE WATER OF SPEY

Randolph to Cecil, from Aberdeen, September 24.

When he {Huntly} understood that the Queen had caused the captain of the Castle of Inverness to be hanged, and committed the others to prison, he thought there was no other way with him but to execute his former determination or be utterly undone. Therefore he assembled such force as he could make, and committed them to the care of his son, John Gordon, purposing to have met the Queen at her return homeward at the water of

Spey, a place where good advantage might have been had. The Queen (being advertised of their purpose), by the advice of her Council, assembled, of those they call Highlandmen and other, above 2000, and so increased as she rode that at the passage of the water they were above 3000. As she rode forward diverse reports were brought ... some said that there was not a man to be seen, which was nearest the truth, for when the night before there were in that wood 1000 horse and foot, they had all departed, whereof the Queen had advertisement before she came to the Spey ... what desperate blows would not have been given, when every man should have fought in the sight of so noble a Queen and so many fair ladies ... your honour can easily judge.... That night (being Sunday) the Queen came to a house of the Laird of Banke {Banff?} ... On Tuesday last she arrived at Old Aberdeen, preparing herself against her entry the next day into the new town, where she was honourably received with spectacles, plays, interludes, and others as they could best devise.... They presented her with a cup of silver, double gilt, well wrought, with 500 crowns in it; wine, coals, and wax were sent in, as much as will serve her while she remains here.

"BE BLITHE AND BLISSFUL, ABERDENE"

Ibid. from Aberdeen, September 30.

Since the Queen's arrival at Aberdeen they have consulted how to reform this country. It was thought best to begin at the head, and that the Earl of Huntly shall either submit himself and deliver up his disobedient son, John Gordon, in whose name all these pageants have been wrought, or utterly to use all force against him for the subverting of his house for ever. For this purpose she remains here a good space, and has levied 120 arquebusiers, and sent to Lothian and Fife for the Master of Lindsay, Grange, and Ormiston. Her purpose is to take the two houses held against her, for which purpose she has a cannon within sixteen miles all ready, and other pieces there are in this town sufficient.

Ibid. Maitland of Lethington to Cecil from Aberdeen, October 1.

The Earl of Huntly will plead not guilty, and seems to charge the youth and folly of his children with whatever is amiss. If any fault be his, it may be thought to have proceeded from too great simplicity rather than any craft or

malice, especially by so many as have had experience of how he has always been accustomed to deal.

THE SKIRMISH AT CORRICHIE

Ibid. Randolph to Cecil from Aberdeen, October 28.

Huntly having assembled 700 persons, marched towards Aberdeen to apprehend the Queen and do with the rest at his will. She sent forth a sufficient number against him before he came to the town, so that this day the Earls of Murray, Athol, Morton, and 2000 others marched to the place where he was encamped, about twelve miles from hence {viz. Corrichie}, and environed him, so that after some defence he yielded himself, as did John Gordon and another son named Adam Gordon, seventeen years of age, who are brought into this town alive, but the Earl himself, after he was taken, without either blow or strike, being set on horseback before him that was his taker, suddenly falleth from his horse stark dead, without word, that he ever spake, after that he was upon horseback.

Ibid. Randolph to Cecil from Aberdeen, November 2.

After Huntly was brought into this town it was consulted what should be done with his corpse. Some thought he should be buried, and nothing else done; others that he should be beheaded; the last was that his bowels should be taken out and the body reserved until Parliament, that there he might be convicted of treason, in which mind they remain. John Gordon confessed all and lays the fault on his father. He is not yet condemned, but doubtless will not escape.

EXECUTION OF SIR JOHN GORDON

Randolph to Cecil from Edinburgh, November 18. Keith's History, vol. ii. p. 175.

After the defeat of the Earl of Huntly consultation was had what should become of his body; it was resolved that it should be kept till the Parliament, that, according unto the order, judgment might be given against him in the three estates. His son, John Gordon, within three days after was

beheaded in Aberdeen, and execution done upon certain others that were taken at the same time.

Lethington to Cecil from Dundee, November 14. Keith's History, vol. ii. p. 182.

I am sorry that the soil of my native country did ever produce so unnatural a subject as the Earl of Huntly hath proved in the end against his sovereign, being a princess so gentle and benign, and whose behaviour hath been always such towards all her subjects, and every one in particular, that wonder is it that any could be found so ungracious as once to think evil against her.... I have heard it whispered that in this late storm of yours {Elizabeth's illness} a device was intended there to prefer some other in the succession to my mistress, which I cannot think to be true, seeing none is more worthy for all respects, nor hath so good a title. If her religion hath moved anything, seeing her behaviour such toward these that be of the religion within her own realm, yea, and the religion itself, which is a great deal more increased since she came home than it was before, I see no reason why those that be zealous of religion should suspect her.

A GRUESOME SPECTACLE

1563.—28th May. The Sentence on the Earl's Body.

Rutland MSS. at Belvoir, quoted in the Marquess of Huntly's Annals of Aboyne, pp. 467-468.

The coffin was set upright, as if the Earl stood upon his feet, and upon it a piece of good black cloth with his arms fast pinned. His accusation being read, his proctor answering for him, as if himself had been alive, the inquest was empanelled. The verdict was given that he was found guilty, and judgment given thereupon as by the law is accustomed. Immediately hereupon the good black cloth that hung over the coffin was taken away, and in its place a worse hanged on, the arms torn in pieces in sight of the people, and likewise struck out of the herald's book.

GENTLE ENTREATMENT OF A STRANGER

1563.—22nd February. The Death of Châtelar.

Laing's Knox, vol. ii. pp. 367-369.

[Châtelar, a musician and poet, had been in the suite of d'Amville, who accompanied Mary to Scotland. He addressed poems to the Queen, who received them graciously, and replied to them. He went home with his master, but returned to Scotland in 1562, and became one of the Queen's favourite attendants.]

Amongst the minions of the court there was one named Monsieur Chatelar, a Frenchman, that at that time passed all others in credit with the Queen. In dancing of the Purpose (so term they that dance, in the which man and woman talk secretly ...) in this dance, the Queen chose Chatelar, and Chatelar took the Queen. Chatelar had the best dress. All this winter, Chatelar was so familiar in the Queen's cabinet, early and late, that scarcely could any of the nobility have access unto her. The Queen would lie upon Chatelar's shoulder, and sometimes privily she would steal a kiss of his neck. And all this was honest enough; for it was the gentle entreatment of a stranger. But the familiarity was so great, that upon a night, he privily did convoy himself under the Queen's bed; but being espied, he was commanded away. The bruit {report} arising, the Queen called the Earl of Murray, and bursting into a womanly affection, charged him, that, as he loved her, he should slay Chatelar, and let him never speak a word. The other at first made promise so to do ... but returned and fell upon his knees before the Queen and said: Madam, I beseech your Grace cause not me to take the blood of this man upon me; your Grace has entreated him so familiarly before, that you have offended all your nobility; and now, if he shall be secretly slain at your own commandment, what shall the world judge of it? I shall bring him to the presence of justice, and let him suffer by law according to his deserving. "Oh," said the Queen, "you will never let him speak." I shall do (said he), madam, what in me lieth to save your honour.

Poor Chatelar was brought back from Kinghorn to St. Andrews, examined, put to an assize, and so beheaded, the 22nd day of February, 1563. He begged license to write to France the cause of his death, which, said he, in his tongue was, *Pour estre trouve en lieu trop suspect*; that is, Because I was found in a place too much suspected. At the place of execution, when he saw that there was no remedy but death, he made a godly confession, and granted that his declining from the truth of God, and following of vanity and impiety, was justly recompensed upon him. But in the end he concluded, looking unto the heavens, with these words, *O cruel dame!* that is, cruel mistress! What that complaint imported, lovers may divine. And so received Chatelar the reward of his dancing, for he lost his head, that his tongue should not utter the secrets of our Queen. *Deliver us, O Lord, from the rage of such inordinate rulers.*

The Famine of 1563.

Laing's Knox, vol. ii. pp. 369-70.

The year of God 1563, there was an universal dearth in Scotland. But in the northland, where, the harvest before, the Queen had travelled, there was an extreme famine, in the which many died in that country. The dearth was great over all, but the famine was principally there. The boll of wheat gave six pounds; the boll of bere, six merks and a half; the boll of meal, four merks; the boll of oats, fifty shillings; an ox to draw in the plough, twenty merks; a wether, thirty shillings. And so all things appertaining to the sustentation of man, in triple and more exceeded their accustomed prices. And so did God, according to the threatening of his law, punish the idolatry of our wicked Queen, and our ingratitude, that suffered her to defile the land with that abomination again, that God so potently had purged, by the power of his word. For the riotous feasting, and excessive banqueting, used in Court and country, wheresoever that wicked woman repaired, provoked God to strike the staff of bread, and to give his malediction upon the fruits of the earth. But, O alas! who looked, or yet looks to this very cause of all our calamities.

STINKING PRIDE OF WOMEN

1563.—The Meeting of Parliament.

Laing's Knox, vol. ii. p. 381.

Such stinking pride of women, as was seen at that Parliament, was never seen before in Scotland. Three sundry days, the Queen rode to the Tolbooth; the first day, she made a painted oration, and there might have been heard amongst her flatterers, "*Vox Dianæ*, the Voice of a Goddess (for it could not be Dei) and not of a woman. God save that sweet face. Was there ever Orator spake so properly and so sweetly?"

All things misliking the Preacher, they spake boldly against the targetting of their taillies {*i.e.* the adornment of their robes with tassels}, and against the rest of their vanity, which they affirmed should provoke God's vengeance, not only against these foolish women, but against the whole realm.... Articles were presented, for orders to be taken for apparel, and for reformation of other enormities; but all was winked at.

KNOX'S INTERVIEWS WITH THE QUEEN

1563.—May or June. Knox and the Queen.

Laing's Knox, vol. ii. p. 386.

[John Knox had five interviews with the Queen, which are recorded in his "History." Soon after Mary's arrival in Scotland, she sent for Knox, and they discussed the religious controversy and Knox's "Blast against the monstrous Regiment of Women," in which he had inveighed against female rule. In the spring of 1562, the Queen sent for Knox, who had preached a sermon from the text, "And now, understand, O ye kings, and be learned, ye that judge the earth." The Reformer gave a *résumé* of his sermon, and informed the Queen that he considered her uncles "enemies unto God," and that "for maintenance of their own pomp and worldly glory, they spare not to spill the blood of many innocents." The third occasion was about a year later, at Lochleven, when the thesis was the rights of subjects to rebel, and ended with the threat, "Now, Madam, if ye shall deny your duty unto them, who especially crave, that ye punish malefactors, think ye to receive full obedience of them? I fear, Madam, ye shall not." The malefactors in question were recusant Roman Catholics. "Herewith she being somewhat offended, passed to her supper." The interview was resumed in the morning, but the conversation was more amicable, Mary asking Knox's help in reconciling the Earl of Argyle to his wife, who was the Queen's half-sister. The fourth discussion, quoted below, was *à propos* of the proposals for Mary's marriage, which were the main political theme of the year 1563. Knox had denounced any marriage with a Roman Catholic. In December of the same year, the Queen and the Reformer met again, Knox undergoing a judicial examination on a charge which amounted to incitement to rebel. He defended himself by a homily upon "the insatiable cruelty of the Papists," and was found innocent by the Council.]

The Provost of Glencludan, Douglas by surname, of Drumlanark, was the man that gave the charge, that the said John should present himself before the Queen, which he did soon after dinner. The Lord Ochiltree, and divers of the faithful, bare him company to the Abbey; but none passed in to the Queen with him in the cabinet, but John Erskine of Dun, then superintendent of Angus and Mearns.

WOMANLY WEEPING

The Queen in a vehement fume began to cry out, that never Prince was used as she was. "I have (said she) borne with you in all your rigorous manner of speaking, both against myself and against my uncles; yea, I have sought your favour by all possible means; I offered unto you presence and audience, whensoever it pleased you to admonish me, and yet I cannot be quit of you; I vow to God I shall be once revenged." And with these words scarce could Marnoch, her secret chamber boy, get napkins to hold her eyes dry, for the tears and the howling, besides womanly weeping, stayed her speech. The said John did patiently abide all the first fume, and at opportunity answered, "True it is, Madam, your Grace and I have been at divers controversies, into the which I never perceived your Grace to be offended at me; but when it shall please God to deliver you from that bondage of darkness and error, wherein ye have been nourished, for the lack of true Doctrine, your Majesty will find the liberty of my tongue nothing offensive. Without the Preaching-place (Madam) I think few have occasion to be offended at me, and there (Madam) I am not master of myself, but must obey him who commands me to speak plain, and to flatter no flesh upon the face of the earth...." "But what have you to do (said she) with my marriage? Or, what are you within the Commonwealth?"

A MEEK AND GENTLE SPIRIT

"A subject born within the same (said he) Madam; and albeit I be neither Earl, Lord, nor Baron within it, yet hath God made me (how abject that ever I be in your eyes) a profitable and useful member within the same; yea, Madam, to me it appertaineth no less, to forewarn of such things as may hurt it, if I foresee them, than it doth to any one of the nobility; for both my vocation and conscience craveth plainness of me; and therefore (Madam) to yourself I say, that which I spake in public, whensoever the nobility of this

realm shall be content, and consent, that you be subject to an unlawful husband, they do as much as in them lieth to renounce Christ, to banish the Truth, to betray the freedom of this realm, and perchance shall in the end do small comfort to yourself."

INORDINATE PASSION

At these words, howling was heard, and tears might have been seen in greater abundance than the matter required. John Erskine of Dun, a man of meek and gentle spirit, stood beside, and entreated what he could to mitigate her anger, and gave unto her many pleasant words, of her beauty, of her excellency; and how that all the princes in Europe would be glad to seek her favours. But all that was to cast oil into the flaming fire. The said John stood still, without any alteration of countenance, for a long time, while that the Queen gave place to her inordinate passion; and in the end he said, "Madam, in God's presence I speak, I never delighted in the weeping of any of God's creatures; yea, I can scarcely well abide the tears of mine own boys, whom my own hands correct, much less can I rejoice in your Majesty's weeping; But seeing I have offered unto you no just occasion to be offended, but have spoken the truth, as my vocation craves of me, I must sustain your Majesty's tears, rather than I dare hurt my conscience, or betray the Commonwealth by silence." Herewith was the Queen more offended, and commanded the said John to pass forth of the cabinet, and to abide further of her pleasure in the chamber.

FY UPON THAT KNAVE, DEATH

The Laird of Dun tarried, and Lord John of Coldingham came into the cabinet, and so they remained with her near the space of one hour. The said John stood in the chamber, as one whom men had never seen (so were all afraid), except that the Lord Ochiltree bare him company; and therefore he began to make discourse with the ladies, who were there sitting in all their gorgeous apparel; which when he espied, he merrily said: "Fair Ladies, how pleasant were this life of yours, if it should ever abide; and then in the end, that we might pass to Heaven with this gay gear {clothing}! But fy upon that knave Death, that will come whether we will or not; and when he hath laid on his arrest, then foul worms will be busy with this flesh, be it never so fair and so tender; and the silly {weak} soul I fear shall be so feeble, that

it can neither carry with it gold, garnishing, targating {tassels}, pearls, nor precious stones." And by such means procured he the company of women, and so passed the time till that the Laird of Dun willed him to depart to his house till new advertisement.

The Queen would have had the sentiment of the Lords of the Articles if that such manner of speaking deserved not punishment. But she was counselled to desist; and so that storm quieted in appearance, but never in the heart.

Mary's Second Marriage.

[The problem of Mary's marriage was one of great difficulty. Allusions to it occur in diplomatic correspondence immediately after the death of Francis II., and it was constantly in men's minds. The Scottish preachers and the Protestant nobles objected to a union with a Roman Catholic prince (*cf. supra*, [p. 40](#)). Catherine de Medici, who was at the head of affairs in France, opposed the projected match with Don Carlos of Spain ([p. 43](#)). Elizabeth of England found a difficulty in every proposal, and was especially afraid of the union of Scotland with a foreign power. As early as the spring of 1561 Throckmorton warned Elizabeth that, if she wished to prevent such a union, "she should make a party in Scotland by entertaining a good number of the best there, that all Princes, perceiving her to have a great party in that realm, would not greatly seek upon a country so much at her devotion" (*Foreign Calendar*, March 31, 1561). The following extracts indicate the course of the controversy, and aim at presenting a connected survey of the negotiations.]

PERFECT NEIGHBOURHOOD

Randolph to Cecil, from Edinburgh, December 17, 1561. Keith's History, vol. ii. p. 124.

When any purpose falleth in of marriage, she saith that she will none other husband but the Queen of England. He is right near about her that hath oftentimes heard her speak it. I desire that it may be in perfect neighbourhood, since it cannot be in perfect marriage.

1563.—August 20. Instructions for Randolph.

Foreign Calendar.

He shall always rest upon this argument, that neither Elizabeth nor England ... can think any mighty Prince a meet husband for her, to continue the amity that now is with this realm.

Smith to the English Privy Council, from Paris, October 13, 1563.
Foreign Calendar.

They {Catherine de Medici and the Constable of France} hold King Philip a suspect neighbour. But they most mislike the Spanish marriage with the Queen of Scots, which they hold to be concluded unto by the said Queen, taking it to be prejudicial to England and consequently to them.

DUDLEY OR DARNLEY

[The anxiety about her marriage was supposed to be the cause of an illness from which Mary suffered, in the end of 1563. On December 13 Randolph wrote to Cecil that she "kept her bed, being somewhat diseased of overmuch travail she took a night or two before, dancing to celebrate her nativity. But," he adds, "for two months the Queen has been divers times in great melancholies. Her grief is marvellous secret. She is not well, and weeps when there is little appearance of occasion." Eight days later, he mentions that "the Queen's illness daily increaseth. Her pain is in her right side.... Some think that the cause of the Queen's sickness is that she utterly despairs of the marriage of any of those she looked for, as well that neither they abroad are very hasty, nor her subjects at home very willing those ways." On the 31st he had an interview with her "in her chamber, beside ladies and gentlemen, herself in bed." He told her that Elizabeth "could in no point alter her former advice, which was that it could not be expedient for her country, nor fit for herself, to

match in any of those houses, when appearance is that dissension may grow, and enmity to be nourished, as before time has been." Mary summoned the Earl of Argyll, and told him that Randolph would have her marry in England. He asked if "the Queen of England were become a man?" "Who is there in that country (said she) to whom he {Argyll} would wish her?" He said, "To whom she could like best." "That would not please the Duke" {of Châtellherault}, said she. "If it please God, and is good for the country," said he, "what reck who were displeased?" (*Foreign Calendar*, December 13, 21, and 31, 1563). Leicester was the husband suggested by Queen Elizabeth, and, during 1564, it became evident that either he or Darnley would be the Queen's choice.]

RETURN OF LENNOX

Randolph to Cecil, from Edinburgh, March 20, 1564. Foreign Calendar.

What troubles have risen in this country for religion, your Honour knoweth. All things are now grown into such a liberty, and her Grace taken unto herself such a will to do therein what she list, that of late, contrary to her own ordinances, as great numbers have repaired to her chapel to hear mass, as sometimes come to the common churches to the sermon. To have her mind altered for this freedom, that she desireth to have all men live as they like, she can hardly be brought, and thinketh it too great a subjection for her, being a prince in her own country, to have her will broken therein. The subjects who desire to live in the true fear and worshipping of God, offer rather their lives again to be sacrificed, than that they would suffer such abomination, yea, almost permit herself to enjoy her mass, which is now more plainly and openly spoken against by the preachers, than ever was the Pope of Rome.... Above all the rest, this is it that is feared that will be the breach of all good accord and quietness of this estate, though the rest be borne with, that is, if she match herself with a Papist, by whom she may be fortified to her intent.

Kirkaldy of Grange to Randolph, from St. Johnston's {Perth}, April 30, 1564. Laing's Knox, vol. vi. p. 539.

The Earl of Lennox will obtain license to come home and speak with the Queen. Her meaning therein is not known, but some suspects she will at length be persuaded to favour his son.

[The Earl of Lennox had entered into negotiations with Henry VIII., in 1544, to deliver over to England certain Scottish castles, and to promote the marriage of Mary to Prince Edward. Sentence of forfeiture was passed against him by the Scottish Parliament on 1st October 1545. His treachery had received its reward in the shape of an alliance with Margaret, daughter of the Earl of Angus and Margaret Tudor, widow of James IV. (*cf. [Table, App. A.](#)*). Their eldest son was Lord Darnley.]

KNOX SUSPICIOUS

Knox to Randolph, from Edinburgh, May 3, 1564. Laing's Knox, vol. vi., p. 541.

The Earl of Lennox's servant is familiar in Court, and it is supposed that it is not without knowledge, yea, and labour, of your Court. Some in the country look for the lady {Queen Mary} and the young Earl {Darnley} ere it be long. It is whispered to me that licence is all ready procured for their {Lennox and Darnley's} hithercoming. God's providence is inscrutable to man, before the issue of such things as are kept close for a season in his counsel. But, to be plain with you, that journey and progress I like not.

Queen Elizabeth and Sir James Melville.

[Sir James Melville was sent as ambassador from the Queen of Scots to the Queen of England to advance negotiations for Mary's marriage, and to discover, if possible, Elizabeth's real meaning.]

September 28, 1564. *Melville's Memoirs*, pp. 115-128. (*Bannatyne Club*.)

The next morning Master Lattoun and Master Randolph, late agent for the Queen of England in Scotland, came to my lodging to convoy me to her Majesty, who was, as they said, already in the garden.... I found her Majesty pacing in an alley.

YONDER LONG LAD

MELVILLE'S OPINION OF DARNLEY

... She inquired if the Queen had sent any answer anent the proposition of a marriage made to her by Master Randolph. I answered, as I was instructed, that the Queen thought little or nothing thereof, but looked for the meeting of some Commissioners upon the borders, with my Lord of Murray and the secretary, Lethington, to confer and treat upon all such matters of greatest importance.... So seeing that your Majesties cannot so soon find the opportunity of meeting, so much desired between yourselves ... the Queen, my mistress ... is in hope that your Majesty will send my Lord of Bedford and my Lord Robert Dudley. She said that it appeared that I made but small account of my Lord Robert, seeing that I named the Earl of Bedford before him; but, or it were long, she should make him a greater earl, and that I should see it done before my returning home; for she esteemed him as her brother and best friend, whom she should have married herself, if ever she had been minded to take a husband.... And to cause the Queen, my mistress, to think the more of him, I was required to stay till I had seen him made Earl of Leicester and Baron of Denbigh, with great solemnity at

Westminster, herself helping to put on his ceremonial, he sitting upon his knees before her, keeping a great gravity and discreet behaviour. But she could not refrain from putting her hand in his neck to kittle {tickle} him smilingly, the French Ambassador and I standing beside her. Then she asked me how I liked of him. I said, as he was a worthy subject, he was happy that had encountered a princess that could discern and reward good service. "Yet," she said, "ye like better of yonder long lad," pointing towards my Lord Darnley, who, as nearest prince of the blood, bore the sword of honour that day before her. My answer again was, that no woman of spirit could make choice of such a man, that was liker a woman than a man; for he was very lusty, beardless, and lady-faced. I had no will that she should think that I liked of him, or had any eye or dealing that way: albeit I had a secret charge to deal with his mother, my Lady Lennox, to purchase leave for him to pass in Scotland, where his father was already, that he might see the country and convoy the Earl, his father, back again to England.

YE MAY NOT SUFFER A COMMANDER

Now the said Queen was determined to treat with the Queen, my sovereign, first anent her marriage with the Earl of Leicester, and for that effect promised to send commissioners unto the borders. In the meantime I was favourably and familiarly used; for during nine days that I remained at Court, her Majesty pleased to confer with me every day, and sometimes thrice upon a day, to wit, afore noon, after noon, and after supper. Sometimes she would say, that since she could not meet with the Queen, her good sister herself, to confer familiarly with her, that she should open a good part of her inward mind unto me, that I might show it again unto the Queen; and said that she was not so offended at the Queen's angry letter as for that she seemed to disdain so far the marriage with my Lord of Leicester, which she had caused Master Randolph propose unto her. I said that it might be he had teached something thereof to my Lord of Murray and Lethington, but that he had not proposed the matter directly unto herself; and that as well her Majesty, as they that were her most familiar counsellors, could conjecture nothing thereupon but delays and drifting of time, anent the declaring of her to be the second person {i.e., the next in succession to the throne of England} which would try at the meeting of commissioners above specified. She said again that the trial and declaration

thereof would be hasted forward, according to the Queen's good behaviour, and applying to her {Elizabeth's} pleasure and advice in her marriage; and seeing the matter concerning the said declaration was so weighty, she had ordained some of the best lawyers in England diligently to search out who had the best right, which she would wish should be her dear sister rather than any other. I said I was assured that her Majesty {Mary} was both out of doubt hereof, and would rather she should be declared than any other.... She said that she was never minded to marry, except she were compelled by the Queen, her sister's, hard behaviour towards her, in doing by {beyond} her counsel, as said is. I said: "Madam, ye need not tell me that; I know your stately stomach; ye think if ye were married, ye would be but Queen of England, and now ye are King and Queen both; ye may not suffer a commander."

A COURTIER'S REPLIES

She appeared to be so affectioned to the Queen her good sister, that she had a great desire to see her: and because their desired meeting could not be hastily brought to pass, she delighted oft to look upon her picture, and took me in to her bed chamber, and opened a little lettoun {cabinet} wherein were divers little pictures wrapped within paper, and written upon the paper, their names with her own hand. Upon the first that she took up was written, "My lord's picture." I held the candle and pressed to see my lord's {Leicester's} picture. Albeit she was loth to let me see it, at length I by importunity obtained the sight thereof, and asked the same to carry home with me unto the Queen, which she refused, alleging she had but that one of his. I said again, that she had the principal; for he was at the furthest part of the chamber speaking with the secretary Cecil. Then she took out the Queen's picture and kissed it; and I kissed her hand for the great love I saw she bore to the Queen.... Her {Elizabeth's} hair was redder than yellow, curled apparently of nature. Then she entered to discern what colour of hair was reported best, and inquired whether the Queen's or her's was best, and which of them two was fairest. I said, the fairness of them both was not their worst faults. But she was earnest with me to declare which of them I thought fairest. I said, she was the fairest Queen in England, and ours the fairest Queen in Scotland. Yet she was earnest. I said they were both the fairest ladies of their courts, and that the Queen of England was whiter, but

our Queen very lovesome. She inquired which of them was of highest stature. I said, our Queen. Then she said the Queen was over high, and that herself was neither over high or over low. Then she asked what sort of exercises she used. I said, that I was dispatched out of Scotland, that the Queen was but new come back from the highland hunting; and when she had leisure from the affairs of her company, she read upon good books, the histories of divers countries, and sometimes would play upon lute and virginals. She sperit {asked} if she played well. I said, reasonably for a Queen.

A CONSEQUENCE OF FRENCH TRAINING

NO PLAIN DEALING OR UPRIGHT MEANING

The same day after dinner, my Lord of Hunsden {Huntingdon} drew me up to a quiet gallery that I might hear some music, but he said he durst not avow it, where I might hear the Queen play upon the virginals. But after I had hearkened a while, I took by the tapestry that hung before the door of the chamber, and seeing her back was toward the door, I entered within the chamber and stood still at the door post, and heard her play excellently well; but she left off so soon as she turned her about and saw me, and came forwards seeming to strike me with her left hand, and to think shame; alleging that she used not to play before men, but when she was solitary her alone, to eschew melancholy; and askit how I came there. I said, as I was walking with my Lord of Hunsden, as we passed by the chamber door, I heard such melody, which ravished and drew me within the chamber I wist not how; excusing my fault of homeliness, as being brought up in the Court of France, and was now willing to suffer what kind of punishment would please her lay upon me for my offence. Then she sat down low upon a cushion, and I upon my knee beside her; but she gave me a cushion with her own hand to lay under my knee, which I refused, but she compelled me; and called for my lady Stafford out of the next chamber, for she was alone there. Then she asked whether the Queen or she played best. In that I gave her the praise.... She inquired at me whether she or the Queen danced best. I said, the Queen danced not so high or disposedly as she did. Then again she wished that she might see the Queen at some convenient place of meeting. I offered to convey her secretly in {to} Scotland by post, clothed like a page

disguised, that she might see the Queen: as King James the 5 passed in France disguised, with his own ambassador, to see the Duc of Vendome's sister that should have been his wife; and how that her chamber should be kept, as though she were sick, in the meantime, and none to be privy thereto but my Lady Stafford, and one of the grooms of her chamber. She said, Alas! if she might do it: and seemed to like well such kind of language, and used all the means she could to cause me persuade the Queen of the great love that she bore unto her.... My Lord of Leicester began to purge himself of so proud a pretence as to marry so great a Queen, esteeming himself not worthy to deicht her shone {clean her shoes}; alleging the invention of that proposition to have proceeded of Master Cecil his secret enemy. "For if I should," said he, "have seemed to desire that marriage, I should have lost the favour of both the Queens," praying me till excuse him unto the Queen.... At my homecoming I found the Queen's Majesty still in Edinburgh ... she inquired whether I thought that Queen meant truly towards her as well inwardly in her heart as she appeared to do outwardly by her speech. I said, in my judgment, that there was neither plain dealing nor upright meaning, but great dissimulation, emulation and fear that her princely qualities should over soon chase her out, and displace her from the kingdom; as having already hindered her {Mary's} marriage with the Archduke Charles of Austria, and now offering unto her my Lord of Leicester, whom she would be as loth as then to want. Then the Queen gave me her hand, that she should never marry the new-made earl; albeit shortly while after, my Lord of Murray and Bedford met beside Berwick to treat upon the marriage with Leicester.... The Queen of England began to fear and suspect that the said marriage might perchance take effect. And therefore my Lord Darnley obtained the rather, license to come into Scotland, who was a lusty youth, in hope that he should prevail being present before Leicester that was absent. Which license was obtained of the means of the secretary Cecil; not that he was minded that any of the marriages should take effect, but with such shifts and practices to hold the Queen unmarried so long as he could.

THE NEW-MADE EARL

*Randolph to Cecil from Edinburgh. Foreign Calendar. December 15,
1564.*

This parliament, being only assembled for restoring Lennox, began upon Monday, and ended the Saturday after. The third day the Queen came to the house, when she had an oration of her affection towards her subjects and the weal of her country, which moved her to show her favour towards Lennox, to restore him to his country, the rather for the suit of the Queen of England, whose desire to her was of no small moment, which words were duly rehearsed....

MURRAY, LETHINGTON, AND CECIL

[The next development in the situation took the form of a correspondence between Murray and Lethington, and Cecil, on December 4, 1564. Randolph wrote to Cecil "that Murray and Lethington had concluded that amity with England is fittest," and added, "No man will be more acceptable to the people than the Lord Robert. There has been more thought of Lord Darnley before his father's coming than is at present. The mother more feared a great deal than beloved." The two Scottish lords had already written to Cecil, who replied on the 16th, informing them that Elizabeth would never consent to their request, the establishment of Mary's "title to be declared by Parliament in the second place to the Queen," but "promising that she will cause inquisition to be made of their Sovereign's right; and as far as shall stand with justice and her own surety, she will abase such titles as shall be proved unjust and prejudicial to her sister's interest;" and giving them warning. "Let there not be found any intention to compass ... a kingdom and a crown, which, if it be sought for, may be sooner lost than got, and not being craved may be as soon offered as reason can require." To this Murray and Lethington replied on the 24th, asking what Cecil meant by the words "as shall stand with justice and her own surety," for they "never meant anything prejudicial to the surety of Queen Elizabeth;" stating that if Elizabeth "will nowise establish the succession of her crown," the Leicester project must fall to the ground; and urging Cecil to secrecy, for if it were discovered that they had "meddled without her Majesty's knowledge, the opening thereof" would be the ruin of them both. (Foreign

Calendar, 14th, 16th, and 24th December 1564.) This episode is of importance in connection with Mary's subsequent attitude to the Darnley marriage.]

QUEEN MARY'S MERRY CONCEITS

Queen Mary and Randolph.

Randolph to Queen Elizabeth, from Edinburgh, February 5, 1565.
Chalmers's Queen Mary, vol. ii. pp. 123-127.

"IT LIETH IN YOUR MISTRESS'S WILL"

Her grace lodged in a merchant's house; her train were very few; and there was small repair from any part. Her will was, that for the time that I did tarry, I should dine and sup with her. Your Majesty was oftentimes drunken unto, by her, at dinners and suppers. Having, in this sort, continued with her grace, Sunday, Monday, and Tuesday, I thought it time to take occasion to utter unto her grace, that which last I received in command, from your Majesty, by Mr. Secretary's letter, which was to know her grace's resolution touching those matters propounded, at Berwick, by my Lord of Bedford, and me, to my Lord of Murray and Lord of Lethington. I had no sooner spoken these words, but she saith, "I see now well that you are weary of this company and treatment. I sent for you to be merry and to see how like a Bourgeois-wife I live, with my little troop; and you will interrupt our pastime, with your great and grave matters. I pray you, Sir, if you be weary here, return home to Edinburgh, and keep your gravity and great ambassage until the Queen come thither; for I assure you, you shall not get her here, nor I know not myself where she is become. You see neither cloth of estate, nor such appearances, that you may think that there is a Queen here; nor I would not that you should think that I am she, at St. Andrews, that I was at Edinburgh." I said that I was very sorry for that, for that at Edinburgh, she said that she did love my mistress, the Queen's majesty, better than any other, and now I marvelled how her mind was altered. It pleased her at this to be very merry, and called me by more names than were given me in my christendom. At these merry conceits much good sport was made. "But well, Sir," saith she, "that which then I spoke in words shall be confirmed in writing.... You know how willing I am to follow her advice ... and yet I can find in her no resolution nor determination. For nothing, I cannot be bound unto her ... and therefore, this I say, and trust me I mean it, if your mistress

will, as she hath said, use me as her natural born sister or daughter, I will take myself either as one or the other as she please, and will show no less readiness to oblige her, and honour her, than my mother, or eldest sister; but, if she will repute me always but as her neighbour Queen of Scots, how willing soever I be to live in amity and to maintain peace, yet she must not look for that at my hands, that otherwise I would, or she desireth." ... I requested her Grace, humbly ... to let her mind be known, how well she liked of the suit of my Lord Robert, Earl of Leicester, that might be able somewhat to say or write touching that matter, unto your Majesty. "My mind towards him is such as it ought to be of a very noble man, as I hear say by very many, and such one as the Queen, your mistress, my good sister, doth so well like to be her husband, if he were not her subject, ought not to dislike me to be mine. Marry, what I shall do, it lieth in your mistress's will, who shall wholly guide me and rule me." I made myself not well to understand these words, because I would have the better hold of them. She repeated the self same words again.

SECTION III

FROM THE DARNLEY MARRIAGE TO THE RIZZIO MURDER

CONTENTS

1. The Darnley marriage and the Earl of Murray's rebellion.
Melville's account of the progress of events from Mary's first
(a) meeting with Darnley to Elizabeth's reception of Murray (February to October).
(b) Randolph's account of the allegations regarding the rival conspiracies.
(c) The Proclamation to allay disquiet regarding the Queen's marriage with a Catholic.
(d) Randolph's letter to Leicester describing the marriage, and the relations between the bride and bridegroom.
(e) Cecil's account of the Murray trouble.
(f) The Privy Council warrant against Murray.
(g) Knox's account of Elizabeth's interview with Murray.
2. Mary's relations with Darnley and the Rizzio murder.
(a) Diplomatic references to the ill-will between the Queen and her husband, with an incidental account of the Holy League.
(b) Bedford and Randolph's letter to Cecil foretelling the Rizzio plot.
(c) Agreements between Darnley and the conspirators.
(d) Mary's own description of the murder of Rizzio.

1563.—Feb. 17-Oct. 23. The Darnley Marriage and the Murray Rebellion.

Melville's Memoirs, p. 134.

[It was now becoming evident that Mary was to marry Lord Darnley. Her resolution gave great offence, not only to Queen Elizabeth, but to the Earl of Murray, and some other Scottish nobles, who raised a rebellion, commonly called the "Run about Chase." The matter is somewhat mysterious; there are, as the reader will observe, allegations of two conspiracies—one against Murray by Darnley, and another against Mary and Darnley by Murray. The evidence is not decisive.]

THE RUN-ABOUT RAID

UNWORTHY TRAITORS

I have said already how that my Lord Darnley was advised to suit license to come into Scotland, who at his first coming found the Queen in the Wemyss, making her progress through Fife. Her Majesty took well with him, and said that he was the lustiest and best proportioned long {tall} man that she had seen, for he was of high stature, long and small, even and upright; well instructed from his youth in all honest and comely exercises. And after he had hanted {frequented} a while in Court, he proposed marriage to her Majesty; which she took in evil part at the first, as she told me that same day herself, and how she had refused the ring which he then offered unto her, when I took occasion, as I had begun, to speak in his favour, that their marriage would put out of doubt their title to the succession. I cannot tell how he fell in acquaintance with Seigneur David {Rizzio}, but he also was his great friend at the Queen's hand; so that her Majesty took aye the longer the better liking of him, and at length determined to marry him. Which being known unto Queen Elizabeth, she sent and charged him to return; and also sent her ambassador, Sir Nicholas

Throgmorton, into Scotland, both to dissuade the Queen to marry him, and in case the Queen would not follow her advice in her marriage, to persuade the lords and so many as were of her religion to withstand the said marriage, unless the Lord Darnley would promise and subscribe to abide at the religion reformed, which he had plainly professed in England. The Queen again perceiving the Queen of England's earnest opposition to all the marriages that were offered unto her, thought not meet to delay any longer her marriage. But my Lord Duke of Châtelherault, my Lords of Argyll, Murray, Glencairn, Rothes, and divers others, lords and barons, withstood the said marriage; who after they had made a mind to take the Lord Darnley, in the Queen's company, at the raid of Beath, and to have sent him into England, as they alleged—I wot not what was in their mind, but it was an evil-favoured enterprize, wherein the Queen was in great danger other than {that of} keeping or heartbreaking; and as they that had failed of their foolish enterprize, took on plainly their arms of rebellion, her Majesty again convened forces against them, and chased them here and there till at length they were compelled to flee into England for refuge, to her that had promised by her ambassadors to wear her crown in their defence, in case they were driven to any strait for their opposition unto the said marriage. Which was all denied at their coming to seek help; and when they sent up my Lord of Murray to that Queen, the rest abiding at Newcastle, he could obtain nothing but disdain and scorn; till at length he and the Abbot of Kilwinning, his companion in that message, were persuaded to come and confess unto the Queen upon their knees, and that in presence of the ambassadors of France and Spain, that her Majesty had never moved them to that opposition and resistance against their Queen's marriage.... Unto my Lord of Murray and his marrow {comrade} she said, "Now you have told the truth; for I nor none in my name stirred you up against your Queen; for your abominable treason might serve for example, to move my own subjects to rebel against me. Therefore pack you out of my presence; ye are but unworthy traitors."

1565.—April 29. Mary's Festivities.

Randolph to Cecil. Foreign Calendar, 1565.

Greater triumphs there never were in time of Popery than were this Easter at the resurrection and at her high mass. Organs were wont to be the common music. She wanted now neither trumpet, drum, nor fife, bagpipe nor tabor.... Upon Monday she and divers of her women apparelled themselves like burgesses' wives, went upon their feet up and down the town, and of every man they met they took some pledge for money towards the banquet; and in the lodging where the writer was accustomed to lodge was the dinner prepared, at which she was herself, with the wonder and gazing of men, women, and children.

[This celebration of Easter is important as being a factor in the growth of Protestant dislike of the Darnley marriage.]

"LESS COMFORT" FOR QUEEN MARY

Randolph to Cecil from Edinburgh, July 2, 1565 {date of end of letter}. Keith's History, vol. ii. p. 300.

I wrote that there was a convention appointed at St. Johnstone {Perth} the 22nd of this instant {i.e. June}, to which there were specially named these, the Duke, Earls Argyll, Murray, Morton, and Glencairn; only Morton came; the other some tarried at their houses, as the Duke, and Earl of Murray; other as Argyll and Glencairn came to Edinburgh the 24th to the Convention {General Assembly} of the Protestants there. With this her Grace is greatly offended, and layeth the whole fault hereof to the Earl of Murray and Argyll, which both had come to St. Johnstone, but that my Lord of Murray was assuredly advertised that it was intended that he should be slain there.... With my Lord of Murray I have lately spoken; he is grieved to see these extreme follies in his sovereign; he lamenteth the state of this country that tendeth to utter ruin; he feareth that the nobility shall be forced to assemble themselves together, to do her honour and reverence as they are

in duty bound, but to provide for the State that it do not utterly perish.... The Duke, the Earl of Argyll, and he concur in this device; many other are like to join with them in the same; what will ensue let wise men judge.... The less comfort that this Queen be put in, that the Queen's majesty will allow of her doings, the sooner shall her Majesty bring that to pass here that she most desireth, and more at her Majesty's devotion than at this time she hath, there were never in Scotland. Some that already have heard of my Ladie's Grace {Lady Lennox's} imprisonment like very well thereof, and wish to the father and son to keep her company. The question hath been asked me. Whether if they were delivered us into Berwick, we would receive them? I answered that we could nor would not refuse our own, in what sort soever they come unto us.

A HASTY RIDE

Randolph to Cecil from Edinburgh, July 4. Ibid. vol. ii. p. 309.

Upon Saturday her Grace came ... to St. Johnston, where word was brought her that the Earl of Argyll and Earl of Murray had assembled many of their friends and servants, and intended to take her and the Lord Darnley riding between that town and the Lord of Livingstone's house, and to have carried the Queen's Grace to St. Andrews, and the Lord Darnley to Castle Campbell, a house of the Earl of Argyll.... She took her horse by five of the clock in the morning, and rode with great speed, having only three women in her train, until she came to the Queen's Ferry, passing through a little town called Kinross, hard by Lochleven, where my Lord of Murray was in a house in the loch with his mother and the Laird of Lochleven, his brother, with a small number of his servants, having been sick of a flux not four days before, intending for all that to have met the Queen, and to have convoyed her as far as her Grace would give him leave; but hearing that her Grace was past that town three or four hours before that he looked for her, he remained still and went not forth....

A REQUEST FOR MONEY

They {the two Earls} think it time to put to that remedy they can; they depend greatly upon the comfort received from the Queen's majesty our sovereign; they know that it as well tendeth to her Majesty's surety for that

which may ensure as the present hurt and danger to themselves. Wherefore, having considered her Majesty's friendly and godly offer to concur with them, and to assist them, ... as from subjects that see how far the Sovereign is led by unadvised persons, from her duty to God, and care that she ought to have of the weal of her country, they most humbly desire the performance of her Majesty's promise.... They are loth so far to charge her Majesty as to desire any number of men to take their part, but that it will only please her Majesty to help them with such sums of money as for a time may be able to keep themselves together, be it that they determine to be wheresoever the Queen's self is, or to remain in Edinburgh, where they may best put order unto all those grievous enormities.... They think that if her Majesty would bestow only three thousand pounds sterling for this year, except some foreign force shall be brought in against them.

Acts of the Privy Council of Scotland, July 12, 1565.

For as much as divers evil disposed persons ... wickedly and ungodly have pretended by untrue reports ... that her Majesty had begun or intended to impede, stay, or molest any of them in using of their religion and conscience freely ... ordains letters to be direct to officers of the Queen's Sheriff in that part {respect}, charging them to pass to the market crosses of all burghs of this realm, and other places needful, and there, by open proclamation, make publication of this her Majesty's mind and meaning; certifying and assuring all her good subjects, that as they, nor none of them, have hitherto been molested in the quiet using of their religion and conscience, so shall they not be unquieted in that behalf in any time to come; but behaving themselves honestly as good subjects shall find her Majesty their good princess, willing to do them justice, and to show them favour and clemency, but {without} innovation or alteration in any sort.

A ROYAL MARRIAGE

Randolph to Leicester, from Edinburgh, July 31, 1565. Wright's Elizabeth, vol. i. p. 199.

I doubt not but your Lordship hath heard by such information as I have given from hence, what the present state of this country is, how this Queen is now become a married wife, and her husband, the self same day of his

marriage, made a king.... So many discontented minds, so much misliking of the subjects to have these matters, ordered in this sort, to be brought to pass, I never heard of any marriage.... Thus they fear the overthrow of religion, the breach of amity with the Queen's Majesty {Elizabeth}, destruction of as many of the nobility as she hath misliking of, or that he to pick a quarrel unto.... He {Darnley} would now seem to be indifferent to both the religions, she to use her mass, and he to come sometimes to the preaching.

They were married with all the solemnities of the popish time, saving that he heard not the mass; his speech and talk argueth his mind, and yet would he fain seem to the world that he were of some religion. His words to all men against whom he conceiveth any displeasure, how unjust soever it be, so proud and spiteful, that rather he seemeth a monarch of the world than he that not long since we have seen and known the Lord Darnley....

"GOD SAVE HIS GRACE!"

All honour that may be attributed unto any man by a wife, he hath it wholly and fully ... all dignities that she can indue him with are already given and granted. No man pleaseth her that contenteth not him, and what may I say more, she hath given over unto him her whole will, to be ruled and guided as himself best liketh. She can as much prevail with him in anything that is against his will, as your Lordship may with me to persuade that I should hang myself.... Upon Saturday ... at nine hours at night, by three heralds at sound of the trumpet he was proclaimed king. This was the night before the marriage. This day, Monday, at twelve of the clock, the Lords, all that were in this town, were present at the proclaiming of him again, when no man said so much as Amen, saving his father, that cried out aloud, "God save his Grace!"

The manner of the marriage was of this sort. Upon Sunday, in the morning, between five and six, she was conveyed by divers of her nobles to the chapel. She had upon her back the great mourning gown of black, with the great wide mourning hood, not unlike unto that which she wore the doleful day of the burial of her husband. She was led unto the Chapel by the Earls Lennox and Athole, and there she was left until her husband came, who was also conveyed by the same lords. The ministers, two priests, did there receive them. The banns are asked the third time, and an instrument taken by a notary that no man said against them, or alleged any cause why the marriage might not proceed. The words were spoken, the rings, which were three, the middle a rich diamond, were put upon her finger, they kneel together, and many prayers said over them. She carrieth out the ... ^[16] and he taketh a kiss, and leaveth her there and went to her chamber, whither in a space she followeth, and there being required, according to the solemnities, to cast off her care, and lay aside those sorrowful garments, and give herself to a pleasanter life. After some pretty refusals, more I believe for manner sake than grief of heart, she suffereth them that stood by, every man that could approach to take out a pin, and so being committed to her ladies changed her garments.

ELIZABETH ASKED TO EXPLAIN

Cecil to Sir Thomas Smith, from Windsor, August 21, 1565. Wright's Elizabeth, vol. i. p. 206.

Mr. Tomworth was sent to the Queen of Scots upon this occasion; the Scottish Queen hath sent twice hither to require the Queen's Majesty to declare for what causes she did mislike of this marriage, offering also to satisfy the same. In the meantime troubles arise there betwixt her and the Earl of Murray and others being friendly to the warm amity of the realm, whereunto for sundry respects it seemeth convenient for us to regard. The Duke {of Châtelherault}, the Earls of Argyll, Murray, and Rothes, with sundry Barons, are joined together not to allow of the marriage, otherwise than to have the religion established by law, but the Queen refuseth in this sort; she will not suffer it to have the force of law, but of permission to every man to live according to his conscience. And herewith she retained a great number of Protestants from associating openly with the other. She hath sent for the Earl Murray, but the mistrust is so far entered on both sides, that I think it will fall to an evil end, for she hath put the Earl of Murray to the horn {i.e. outlawed} and prohibited all persons to aid him. Nevertheless, the Duke, the Earls of Argyll and Rothes are together with him. We shall hear by Mr. Tomworth what is most likely to follow.

THE REBELS OUT-LAWED

Register of the Privy Council, December 1, 1565.

The which day, in presence of the King and Queen's Majesties and Lords of Secret Council, compeared Master John Spence of Condy, advocate to their Highnesses, and expounded how at their Majesties' command he had libelled summonses of treason against Archibald, Earl of Argyll, James, Earl of Murray, Alexander, Earl of Glencairn, Andrew, Earl of Rothes, Andrew, Lord Ochiltree, Robert, Lord Boyd, and divers others,—to compear in the next Parliament, to begin the fourth day of February next to come, to hear them decerned to have incurred the crime of *lese majestie*, and to have lost and forfeited life, lands, and goods.... But because there were divers of the said persons outwith the realm ... it behoved them be summoned by open proclamation at the Market Cross of Edinburgh, and other Crosses next adjacent according to the common law; and thereupon desired a declaration

and determination of their Majesties and Lords forsaid. The which being reasoned with good deliberation and advisement, their Majesties and Lordships find and declare that the said persons being summoned in manner above specified, the execution is as sufficient in all respects as if the same summonses were execute upon them personally or at their dwelling-places.

GOOD AND COURTEOUS ENTERTAINMENT

Murray's Reception by Elizabeth.

Knox's Continuator (cf. [p. 260](#)), *Laing's Knox*, vol. ii. p. 513

By means of the French Ambassador, called Monsieur De Four, his true friend, he {Murray} obtained audience. The Queen, with a fair countenance, demanded "how he, being a rebel to her Sister of Scotland, durst take the boldness upon him to come within her realm?" These, and the like words got he, instead of the good and courteous entertainment expected. Finally, after private discourse, the Ambassador being absent, she refused to give the Lords any support, denying plainly that ever she had promised any such thing as to support them, saying, "She never meant any such thing in that way;" albeit her greatest familiars knew the contrary. In the end the Earl of Murray said to her, "Madam, whatsoever thing your Majesty meant in your heart, we are thereof ignorant; but this much we know assuredly, that we had lately faithful promises of aid and support by your Ambassador and familiar servants, in your name; and further, we have your own handwriting, confirming the said promises." And afterward he took his leave, and came northward from London towards Newcastle. After the Earl of Murray his departure from the Court the Queen sent them some aid, and writ unto the Queen of Scotland in their favour, whether she had promised it in private to the Earl of Murray, or whether she repented her of the harsh reception of the Earl of Murray.

[This account of Elizabeth's interview with Murray should be compared with that given by Melville ([p. 60](#)).]

Mary's Relations with her Husband.

Randolph to Cecil, from Edinburgh, January 16, 1566. Wright's Elizabeth, vol. i. p. 216.

This court of long time hath been very quiet, small resort of any, and many of those that come but slenderly welcome for the great and importunate suit made by them for my Lord of Murray and the rest, who by no means can find any favour at her Grace's hands, in so much that Robert Melville hath received for resolute answer that let the Queen of England do for them what she will, they shall never live in Scotland and she together....

MATRIMONIAL MISLIKINGS

I cannot tell what mislikings of late there hath been between her Grace and her husband; he presses earnestly for the matrimonial crown, which she is loth hastily to grant, but willing to keep somewhat in store until she know how well he is worthy to enjoy such a sovereignty, and therefore it is thought that the Parliament for a time shall be deferred, but hereof I can write no certainty.

THE HOLY LEAGUE

Randolph to Cecil, from Edinburgh, February 7, 1565. Wright's Elizabeth, vol. i. p. 219.

There was a bond lately devised in which the late Pope, the Emperor, the King of Spain, the Duke of Savoy, with divers Princes of Italy and the Queen mother {of France} suspected to be of the same confederacy, to maintain papistry throughout Christendom. This bond was sent out of France by Thornton, and is subscribed by this Queen. The copy whereof, remaining with her and the principal, to be returned very shortly, as I hear, by Mr. Steven Wilson, a fit minister for such devilish devices. If the copy hereof can be gotten, it shall be sent as conveniently I may....

[The bond referred to is the Holy League. Cf. *infra*.]

In this court divers contentions, quarrels, and debates; nothing so much sought as to maintain mischief and disorder. David {Rizzio} yet retaineth his place, not without heart grief to many that see their sovereign guided chiefly by such a fellow.

Randolph to Cecil, from Berwick, February 14, 1566. Stevenson's Selections.

There is a league concluded between the King of Spain, the Duke of Savoy, and divers other Papist princes, for the overthrow of religion, as you shall hear more by others, which is come to this Queen's hands, but not yet confirmed.

CECIL INFORMED OF THE RIZZIO PLOT

Bedford and Randolph to Cecil, from Berwick, March 6, 1566. Tytler's History of Scotland, vol. vii. p. 30.

Somewhat we are sure you have heard of divers discord and jars between this Queen and her husband, partly for that she hath refused him the crown matrimonial, partly for that he hath assured knowledge of such, usage of herself as altogether is intolerable to be borne, which, if it were not over well known, we would both be very loath to think that it could be true. To take away this occasion of slander, he is himself determined to be at the apprehension and execution of him, whom he is able manifestly to charge with the crime, and to have done him the most dishonour that can be to any man, much more being as he is. We need not more plainly to describe the person {Rizzio}. You have heard of the man whom we mean of.

To come by the other thing which he desireth, which is the crown matrimonial, what is devised and concluded upon by him and the noblemen, you shall see by copies of the conditions between them and him, of which Mr. Randolph assureth me to have seen the principals, and taken the copies written with his own hand.

The time of execution and performance of these matters is before the Parliament, as near as it is. To this determination of theirs, there are privy in Scotland; these—Argyll, Morton, Boyd, Ruthven, and Lethington. In England these—Murray, Rothes, Grange, myself, and the writer hereof. If persuasions to cause the Queen to yield to these matters do no good, they purpose to proceed we know not in what sort. If she be able to make any power at home, she shall be withstood, and herself kept from all other counsel than her own nobility. If she seek any foreign support, the Queen's Majesty, our sovereign, shall be sought, and sued unto to accept his and their defence, with offers reasonable to her Majesty's contentment.

OBLIGATIONS OF THE LORDS

Agreement between Darnley and the Earls of Murray, Argyll, Glencairn, and Rothes, and Lords Boyd and Ochiltree.

Ruthven's Relation, Ed. of 1815.

Articles to be fulfilled by the lords.

1. The said earls, lords, and their complices, shall become, and by the tenor hereof become true subjects, men and servants to the noble and mighty Prince Henry, by the grace of God, King of Scotland, and husband to our sovereign lady; that they and all others that will do for them shall take a loyal and true part with the said noble Prince in all his actions, causes, and quarrels, against whomsoever, to the uttermost of their power....
2. The said earls, lords, and their complices shall ... by themselves and others that have voice in Parliament, consent, and by these presents do consent now as then, and then as now, to grant and give the crown matrimonial to the said noble Prince for all the days of his life. And if any person or persons withstand or gainsay the same, the said earls, lords, and their complices shall take such part as the said noble Prince taketh, in whatsoever sort, for the obtaining of the said crown against all....
3. The said earls, lords, and their complices shall fortify and maintain the said noble Prince in his just title to the crown of Scotland, failing of succession of our sovereign lady....
4. As to the religion which was established by the Queen's Majesty, our sovereign, shortly after her arrival in this realm ... they and every one of them shall maintain and fortify the same at their uttermost powers, by the help, supply, and maintenance of the said noble Prince.

Articles to be fulfilled by Darnley.

1. The said noble Prince shall do his good-will to obtain them one remission, if they require the same, for all faults and crimes by-past, of whatsoever quality or condition they be....
2. We shall not suffer, by our good-wills, the foresaid lords and their complices to be called or accused in Parliament, nor suffer any forfeiture to be laid against them....
3. That the said earls, lords, and their complices, returning within the realm of Scotland, we shall suffer or permit them to use and enjoy all their lands, tacks, steadings, and benefices, that they or any of them had before their passage into England....
4. As to the said earls, lords, and their complices' religion, we are contented and consent that they use the same, conform to the Queen's Majesty's act and proclamation made thereupon, shortly after her Highness's return out of France....

THE BOND FOR THE MURDER

THE WORD OF A PRINCE

Bond for Rizzio's Murder—Ruthven's Relation.

Be it kend {known} to all men by these present letters: We, Henry, by the grace of God, King of Scotland, and husband to the Queen's Majesty, for so much we having consideration of the gentle and good nature, with many other good qualities in her Majesty, we have thought pity, and also think it great conscience to us that are her husband, to suffer her to be abused or seduced by certain privy persons, wicked and ungodly ... especially a stranger Italian called Davie ... we have devised to take these privy persons, enemies to her Majesty, us, the nobility and commonwealth, to punish them according to their demerits, and in case of any difficulty, to cut them off immediately, and to take and slay them wherever it happeneth. And because we cannot accomplish the same without the assistance of others, therefore have we drawn certain of our nobility, earls, lords, barons, freeholders, gentlemen, merchants, and craftsmen, to assist us in our enterprise, which cannot be finished without great hazard.... We bind and oblige us, our heirs and successors, to the said earls, lords, barons, gentlemen, freeholders, merchants, and craftsmen, their heirs and successors, that we shall accept the same feud upon us, and fortify and maintain them at the uttermost of our power, and shall be friend to their friend, and enemy to their enemies, and shall neither suffer them nor theirs to be molested nor troubled in their bodies, lands, goods, nor possessions so far as lieth in us. And if any person would take any of the said earls, lords, barons, gentlemen, freeholders, merchants, or craftsmen, for enterprising and assisting with us for the achieving of our purpose, because it may chance to be done in presence of the Queen's majesty, or within her palace of Holyrood-house, we, by the word of a prince, shall accept and take the same on us now as then and then as now.... In witness whereof we have subscribed this with our own hand at Edinburgh, the 1st of March 1565.

A ROYAL SUPPER-PARTY

THE MURDER

1566.—April 2. Mary's Description of the Murder of Rizzio, in a letter to the Archbishop of Glasgow, her Ambassador in Paris.

Keith's History, vol. ii. p. 411.

Most Reverend Father, we greet you well.... It is not unknown to you how our Parliament was appointed to the 12th of this instant month of March, to which these that were our rebels and fugitives in England were summoned to have heard themselves forfeited. The day thereof approaching, we required the King our husband to assist us in passing thereto, who, as we are assured, being persuaded by our rebels that were fugitive, with the advice and fortification of the Earl of Morton, Lords Ruthven and Lindsay, their assisters and complices, who were with us in company, by their suggestion refused to pass with us thereto, as we suppose because of his facility, and subtle means of the Lords foresaid, he condescended to advance the pretended religion published here, to put the rebels in their rooms and possessions which they had of before, and but {without} our knowledge grant to them a remit of all their trespasses.... Upon the 9th day of March instant, we being, at even about seven hours, in our cabinet at our supper, sociated with our sister the Countess of Argyll, our brother the Commendator {lay Abbot} of Holyrood-house, Laird of Criech, Arthur Erskine, and certain others our domestic servitors, in quiet manner, especially by reason of our evil disposition, being counselled to sustain ourselves with flesh {in Lent}, having also then passed almost to the end of seven months in our birth; the King our husband came to us in our cabinet, placed him beside us at our supper. The Earl of Morton and Lord Lindsay, with their assisters, clothed in warlike manner, to the number of eight score persons or thereby, kept and occupied the whole entry to our Palace of Holyrood-house.... In that meantime, the Lord Ruthven, clothed in like manner, with his complices, took entry perforce in our cabinet, and there seeing our secretary, David Riccio, among others our servants, declared he had to speak with him. In this instant we inquired the King our husband if

he knew anything of that enterprise? who denyed the same. Also we commanded the Lord Ruthven, under the pain of treason, to avoid him forth of our presence, declaring we should exhibit the said David before the Lords of Parliament to be punished, if in any sort he had offended. Notwithstanding, the said Lord Ruthven perforce invaded him in our presence (he then for refuge took safe-guard, having retired him behind our back), and with his complices cast down our table upon ourself, put violent hands in him, struck him over our shoulders with whingers {hangers}, one part of them standing before our face with bended daggs {pistols}, most cruelly took him forth of our cabinet, and at the entry of our chamber give him fifty-six strokes with whingers and swords, in doing whereof we were not only struck with great dread, but also by sundry considerations, were most justly induced to take extreme fear of our life. After this deed immediately the said Lord Ruthven, coming again in our presence, declared how they and their complices foresaid were highly offended with our proceedings and tyranny, which was not to them tolerable; how we were abused by the said David whom they had actually put to death, namely, in taking his counsel for maintenance of the ancient religion, debarring of the Lords which were fugitive, and entertaining of amity with foreign princes and nations with whom we were confederate; putting also upon Council the Lords Bothwell and Huntly, who were traitors, and with whom he associated himself, that the Lords banished in England were the morn to resort toward us, and would take plain part with them in our contrary; and that the King was willing to remit them their offences. We all this time took no less care of ourselves than for our Council and nobility, maintainers of our authority, being with us in our Palace for the time; to wit, the Earls of Huntly, Bothwell, Athole, Lords Fleming and Livingstone, Sir James Balfour, and certain others our familiar servitors, against whom the enterprise was conspired as well as for David; and namely to have hanged the said Sir James in cords. Yet, by the providence of God, the Earls of Huntly and Bothwell escaped forth of their chambers in our Palace at a back window by some cords.... The Earl of Athole and Sir James Balfour by some other means, with the Lords Fleming and Livingstone, obtained deliverance of their invasion. The Provost and town of Edinburgh having understood this tumult in our Palace, caused ring their common bell, came to us in great number and desired to have seen our presence, intercommuned with us, and to have known our welfare; to whom we were

not permitted to give answer, being extremely threatened by these Lords, who in our face declared, if we desired to have spoken them, they should cut us in collops, and cast us over the wall. So this community being commanded by our husband, retired them to quietness.

TREATMENT OF THE QUEEN

All that night we were detained in captivity within our chamber, not permitting us to have intercommuned scarcely with our servant-women nor domestic servitors. Upon the morn hereafter proclamation was made in our husband's name, by {without} our advice, commanding all Prelates and other Lords convened to Parliament to retire themselves of our burgh of Edinburgh. That whole day we were kept in that firmance {custody}, our familiar servitors and guard being debarred from our service, and we watched by the committers of these crimes, to whom a part of the community of Edinburgh, to the number of four score persons, assisted.

The Earl of Murray that same day at even, accompanied with the Earl of Rothes, Pitarrow, Grange, tutor of Pitcur, and others who were with him in England, came to them, and seeing our state and entertainment, was moved with natural affection toward us. Upon the morn he assembled the enterprisers of their late crime, and such of our rebels as came with him. In their Council they thought it most expedient we should be warded in our castle of Stirling, there to remain while {till} we had approved in Parliament all their wicked enterprises, established their religion, and given the King the crown matrimonial and the whole government of our realm; or else, by all appearance, firmly prepared to have put us to death, or detained us in perpetual captivity. To avoid them of our Palace, with their guard and assisters, the King promised to keep us that night in sure guard, and that but {without} compulsion he should cause us in Parliament approve all their conspiracies. By this means he caused them to retire them of our Palace.

MARY WINS DARNLEY TO HER SIDE

DARNLEY PROTESTS INNOCENCE

This being granted, ... we declared our state to the King our husband, certifying him how miserably he would be handled, in case he permitted

these Lords to prevail in our contrare {against us}, and how unacceptable it would be to other Princes, our confederates, in case he altered the religion. By this persuasion he was induced to condescend to the purpose taken by us, and to retire in our company to Dunbar, which we did under night, accompanied with the captain of our guard, Arthur Erskine, and two others only.... Soon after our coming to Dunbar, sundry of our nobility, zealous of our weal, such as the Earls of Huntly, Bothwell, Marshal, Athole, Caithness; Bishop of St. Andrews, with his kin and friends; Lords Hume, Sempill, and infinite others assembled to us.... The Earl of Moray and Argyll sent diverse messages to procure our favour, to whom in likewise, for certain respects, by advice of our Nobility and Council being with us, we have granted remission, under condition they nowise apply themselves to these last conspirators, and retire themselves in Argyle during our will.... We remained in Dunbar five days, and after returned to Edinburgh well accompanied with our subjects. The last conspirators, with their assisters, have removed themselves forth of the same before, and being presently fugitive from our laws, we have caused by our charges their whole fortunes, strength, and houses to be rendered to us; have caused make inventory of their goods and gear, and intend further to pursue them with all vigour. Whereunto we are assured to have the assistance of our husband, who hath declared to us, and in presence of the Lords of our Privy Council, his innocence of this last conspiracy, how he never counselled, commanded, consented, assisted, nor approved the same. Thus far only he ever saw himself, that at the enticement and persuasion of the late conspirators he, without our advice or knowledge, consented to the bringing home forth of England of the Earls of Moray, Glencairn, Rothes, and other persons with whom we were offended. This ye will consider by his declaration made hereupon, which at his desire hath been published at the market crosses of this our Realm ... of Edinburgh, the second day of April 1566.

SECTION IV

MURDER OF RIZZIO TO MURDER OF DARNLEY

CONTENTS

- [1.](#) Murray's plea for the Rizzio rebels.
- [2.](#) The relations between Mary and Darnley.
 - (a) Mary's Will.
 - (b) The Birth of Prince James.
- [3.](#) Mary to Elizabeth anent her support of the rebels.
- [4.](#) Mary's treatment of Darnley, and Darnley's conduct towards Mary.
 - (a) As reported by M. le Croc, the French Ambassador.
 - (b) As reported by Buchanan, with the Alloa story.
 - (c) Nau's account of the Alloa story, and a letter of Mary's from Alloa.
- [5.](#) The Ride to Hermitage.
 - (a) As reported in the Diurnal of Occurrents.
 - (b) As reported by Nau.
 - (c) As reported by Buchanan.
- [6.](#) The Queen's illness at Jedburgh.
- [7.](#) The Craigmillar Conference.
 - (a) As reported by Buchanan.
 - (b) In the Protestation of Huntly and Argyll.
- [8.](#) The events immediately before the Darnley murder.
 - (a) Letter from Du Croc.
 - (b) The Baptism of the Prince.
 - (c) Restoration of the consistorial jurisdiction.
 - (d) Mary on Darnley's conduct.
 - (e) Beaton's warning.
- [9.](#) The visit to Glasgow and the murder.
 - (a) As reported by Buchanan in the *Detection*.
 - (b) As described by Mary.
 - (c) As described by Nau.
 - (d) As described by Buchanan in his *History*.

Relations between Mary and Darnley.

*Bedford and Randolph to Cecil, from Berwick, March 27,
1566. Wright's Elizabeth, vol. i. p. 235.*

My Lord of Murray by a special servant sent unto us desireth your Honour's favour to these noblemen {the fugitives}, as his dear friends, and such as for his sake hath given this adventure.

"TO THE KING WHO GAVE IT ME"

Bequests to the King.

Robertson's Inventories.

Before the birth of her son, Mary made a will, of which no copy is extant. But Mr. Joseph Robertson found an inventory of her jewels, made at the same time, with marginal notes, in the Queen's own handwriting, indicating their disposition. There are fifteen entries "Au Roy," from which we quote the most interesting marginal note:—

It was with this that I was married, to the King, A diamond ring enamelled
who gave it me. in red.

There are also bequests to the Crown of Scotland, the Earl and Countess of Lennox, and the Earl of Murray, also a jewel with the marginal note:—

"To Joseph {Riccio}, which his brother gave me."

At the end of the first section of the inventory, there is the following note in Mary's hand:—

"I wish that these provisions be carried out in case that the child does not survive me, but if it live, it is to inherit everything. MARIE R."



Marye 

**QUEEN MARY'S SIGNET-
RING AND MONOGRAM.**

Mary's Will as described in the "Book of Articles" (cf. [p. 144](#)).

Hosack's Mary, vol. i. p. 525.

This her rooted disdain still continuing a little before her deliverance of her birth in May or June 1566, in making of her latter will and testament, she named and appointed Bothwell among others to the tutele {guardianship} of her birth {child} and issue, and government of the realm in case of her decease, and unnaturally excluded the father from all kind of cure and regiment over his own child, advancing Bothwell above all others to be lieutenant-general.... She disponit also her whole moveables to others beside her husband.

BIRTH OF A PRINCE

ELIZABETH'S RECEPTION OF THE NEWS

The Birth of Prince James.

Melville's Memoirs, p. 158.

All this while I lay in the castle of Edinburgh, praying night and day for her Majesty's good and happy delivery of a fair son. This prayer being granted, I was the first that was advertised by the Lady Boyne {Mary Beaton, just married to Ogilvie of Boyne}, in her Majesty's name to part with diligence, the 19th day of June in the year 1566, between ten and eleven hours before noon. It struck twelve hours when I took my horse, and was at Berwick that same night. The fourth day after, I was at London, and met first with my brother, who sent and advertised the Secretary Cecil that same night of my coming and of the birth of the Prince, willing him to keep it up, until my being at Court to show it myself unto her Majesty, who was for the time at Greenwich, where her Majesty was in great merriness and dancing after supper; but so soon as the Secretary Cecil rounded the news in her ear of the Prince's birth all merriness was laid aside for that night, every one that were present marvelling what might move so sudden a chagement; for the Queen sat down with her hand upon her haffet {cheek}, and bursting out to some of her ladies, how that the Queen of Scotland was lighter of a fair son, and that she was but a barren stock.... The next morning was appointed unto me to get audience ... she ... said, that the joyful news of the Queen her sister's delivery of a fair son, which I had sent unto her by Master Cecil, had recovered her out of a heavy sickness which has held her fifteen days. Therefore she welcomed me with a merry volt {countenance}, and thanked me for the diligence I had used. All this she said before I had delivered unto her my letter of credence. After that she had read it, I declared how that the Queen had hasted me towards her Majesty, whom she knew of all other her friends would be gladdest of the good news of her birth, albeit dear bought with the peril of her life; for I said that she was so sore handled in the meantime that she wished never to have been married. This I said to give her a little scare to marry, by the way; for so my brother had informed me, because she boasted sometimes to marry the Archduke Charles of Austria, when any man pressed her to declare a second person {heir}. Then I

requested her Majesty to be a gossip unto the Queen, for our cummer are called gossips in England; which she granted gladly to be.

MARY AND DARNLEY

Herries's Memoirs, p. 79. (Abbotsford Club.)

About two o'clock in the afternoon the King came to visit the Queen, and was desirous to see the child. "My Lord," says the Queen, "God has given you and me a son, begotten by none but you!" At which words the King blushed, and kissed the child. Then she took the child in her arms, and discovering his face, said, "My Lord, here I protest to God, and as I shall answer to Him at the great day of judgment, this is your son, and no other man's son! And I am desirous that all here, with ladies and others, bear witness; for he is so much your own son, that I fear it will be the worse for him hereafter!" Then she spoke to Sir William Stanley. "This," says she, "is the son whom (I hope) shall first unite the two kingdoms of Scotland and England!" Sir William answered, "Why, Madam? Shall he succeed before your Majesty and his father?" "Because," says she, "his father has broken to me." The King was by and heard all. Says he, "Sweet Madam, is this your promise that you made to forgive and forget all?" The Queen answered, "I have forgiven all, but will never forget. What if Faudonside's pistol had shot, what would have become of him and me both? or what estate would you have been in? God only knows; but we may suspect." "Madam," answered the King, "these things are all past." "Then," says the Queen, "let them go."

REJOICINGS IN EDINBURGH

Rejoicings in Edinburgh.

Claude Nau's Memorials, p. 27.

Immediately upon the birth of the Prince, all the artillery of the castle was discharged, and the lords, the nobles, and the people gathered in St. Giles' Church to thank God for the honour of having an heir to their kingdom. After the birth, certain gentlemen were despatched to the King of France, the Queen of England, and the Duke of Savoy, to ask them to be godfathers and godmothers to the Prince, to which they very gladly consented.

ELIZABETH AGAIN QUESTIONED

Elizabeth and the Rebels.

Mary to Elizabeth, July 1566. Keith's History, vol. ii. p. 442.

Right excellent, right high and mighty Princess, our dearest sister and cousin, in our most hearty manner we commend us unto you: We have understood by your declaration made ... to our dearest brother the King of France, ... that neither ye had aided nor were minded to aid and support our rebels against us, which we have always taken to be undoubtedly true, ... yet we have certain knowledge that our said rebels were supported with the sum of three thousand crowns, sent to the Lady Murray by Master Randolph about the middle of August by-past, as the man who carried the money has confessed in his own presence; which his proceeding as we have just occasion to think most strange ... we ... have taken occasion to send him home to you, where his behaviour in this case may be tried, and he ordered accordingly at your discretion.

QUEEN MARY'S WISE CONDUCT

Mary's Treatment of Darnley.

M. le Croc, French Ambassador in Scotland, to the Archbishop of Glasgow, Scottish Ambassador in France, from Jedburgh, October 15, 1566. Keith's History, vol. ii. p. 448.

The Queen is now returned from Stirling to Edinburgh.... The King, however, abode at Stirling, and he told me there that he had a mind to go beyond sea, in a sort of desperation.... Since that time the Earl of Lennox his father came to visit him; and he has written a letter to the Queen signifying that it is not in his power to divert his son from his intended voyage, and prays her Majesty to use her influence therein. This letter from the Earl of Lennox the Queen received on Michaelmas Day in the morning; and that same evening the King arrived here about ten of the clock.... Early next morning the Queen sent for me, and for all the Lords and other counsellors. As we were all met in their Majesties' presence, the Bishop of Ross by the Queen's commandment declared to the Council the King's intention to go beyond sea; for which purpose he had a ship lying ready to sail; ... and thereafter the Queen prayed the King to declare in presence of the Lords and before me the reason of his projected departure.... She likewise took him by the hand, and besought him for God's sake to declare if she had given him any cause for this resolution; and entreated he might deal plainly, and not spare her. Moreover, all the Lords likewise said to him, that if there was any fault on their part, upon his declaring it they were ready to perform it. And I likewise took the freedom to tell him, that his departure must certainly affect either his own or the Queen's honour—that if the Queen had afforded any ground for it, his declaring the same would affect her Majesty; as, on the other hand, if he should go away without giving any cause for it, this thing could not at all redound to his praise.... The King at last declared that he had no ground at all given him for such a deliberation; and thereupon he went out of the chamber of presence, saying to the Queen, "Adieu, Madam, you shall not see my face for a long space." ... I never saw her Majesty so much beloved, esteemed, and honoured; nor

so great a harmony amongst all her subjects, as at present is by her wise conduct, for I cannot perceive the smallest difference or division.

SUBSEQUENT ACCUSATIONS

Buchanan's Detection.

Not long after her deliverance, on a day very early, accompanied with very few that were privy of her counsel, she went down to the water-side, at the place called the New Haven; and while all marvelled whither she went in such haste, she suddenly entered into a ship there provided for her; which ship was provided by ... Bothwell's servants, and famous robbers and pirates. With this train of thieves, all honest men wondering at it, she betook herself to sea, taking not any other with her, no not of her gentlemen, nor necessary attendants for common honesty. In Alloa castle, where the ship arrived, how she behaved herself, I had rather every man should with himself imagine it, than hear me declare it. This one thing I dare affirm, that in all her words and doings, she never kept any regard, I will not say of Queen-like Majesty, but not of matron-like modesty.... In the meantime, the King being commanded out of sight, and with injuries and miseries banished from her, kept himself close, with a few of his friends, at Stirling.... Yet his heart, obstinately fixed in loving her, could not be restrained, but he must needs come back to Edinburgh, on purpose, with all kind of serviceable humbleness, to get some entry into her former favour, and to recover the kind society of marriage. Who once again being with most dishonourable disdain excluded, returned from whence he came, there to bewail his woeful miseries, as in a solitary desert.

Nau's Memorials, p. 29.

About the beginning of August the Queen crossed the sea and went to Alloa, a house belonging to the Earl of Mar, where she remained for some days in the company of the ladies of her court and the said earl.

THE QUEEN AND A POOR WOMAN

Mary and the Poor.

The Lennox, vol. ii. p. 429.

Trusty Friend,—Forasmuch as it is heavily bemoaned and piteously complained to us by this poor woman, that ye have violently ejected her with a company of poor bairns forth of her kindly room, after {although} willing to pay your duty thankfully: therefore (in respect that if ye be so extreme as to depauperate the poor woman and her bairns) we will desire you to show some favour and accept them in their steading {habitation} as ye have done in times bygone; the which we doubt not but ye will do for this our request, and as ye shall report our thanks and pleasure for the same. At Alloa, the penult of July 1566.

MARIE R.

To our trusty friend, Robert Murray of Abercairney, this be delivered.

The Ride to Hermitage.

Diurnal of Occurrents.

Upon the 7th day of October 1566 years, our sovereign lady, accompanied with the nobility of this realm, departed of Edinburgh towards Jedburgh, to hold a justice eyre there, which was proclaimed to be held upon the eighth day of the same month.

Upon the same day, James, Earl Bothwell ... being sent by our sovereigns to bring in certain thieves and malefactors of Liddesdale to the justice eyre ... chanced upon a thief called John Elliot of the Park.... The said earl shot him with a dagg {pistol} in the body.... The said John perceiving himself shot and the Earl fallen, he went to him where he lay, and gave him three wounds, one in the body, one in the head, and one in the hand; and my lord gave him two strokes with a hanger, ... and the said thief departed, and my lord lay in swoon, while his servants came and carried him to the Hermitage....

FROM JEDBURGH TO HERMITAGE

Upon the fifteenth day of the said month of October, our sovereign lady rode from Jedburgh to the Hermitage {about 30 miles}, wherein my Lord Bothwell was lying in mending of his wound, and spake with the same earl, and returned again the same night to Jedburgh.

Nau's Memorials, p. 30.

The Earl of Bothwell was so dangerously wounded in the hand that every one thought he would die. He thought so himself. Such being the case, her Majesty was both solicited and advised to pay him a visit at his house, called the Hermitage, in order that she might learn from him the state of affairs in these districts, of which the said lord was hereditary governor. With this object in view, she went very speedily, in the company of the Earl

of Moray and some other lords, in whose presence she conversed with Bothwell for some hours, and on the same day returned to Jedburgh.

BUCHANAN'S VERSION

Buchanan on the Ride to Hermitage.

Detection.

When the Queen had resolved to set out for Jedburgh to hold the Assizes, about the beginning of October, Bothwell made an expedition into Liddesdale. While he was conducting himself there in a manner worthy neither of the place to which he had been raised nor of his family and of what might have been expected of him, he was wounded by a dying robber. He was carried to the castle of Hermitage in a condition such as to make his recovery uncertain. When this news is carried to the Queen at Borthwick, although it was a severe winter, she flies off like a mad woman, with enormous journeys first to Melrose and then to Jedburgh. Although reliable reports about his life had reached that place, her eager mind was unable to retain self-control and to prevent her from displaying her shameless lust. At an unfavourable season, in spite of the danger of the roads and of robbers, she threw herself into the expedition with such an escort as no one slightly more honourable would have dared to entrust with life and fortune. Furthermore, when she returned to Jedburgh she arranged, with extraordinary zeal and care, for Bothwell's being carried thither. After he was brought there, their life and conversation was little in accordance with the dignity of either of them.

[The distance from Borthwick Castle to Jedburgh is about sixty miles.]

A SIXTEENTH-CENTURY PHYSICIAN

The Queen's Illness at Jedburgh.

John Lesley, Bishop of Ross, to the Archbishop of Glasgow. October 27, 1566. Keith's History, vol. iii. p. 286.

My Lord,—After most hearty commendations, I write upon haste to your Lordship with Saunders Bog, who was sent by M. de Croc this last Wednesday to advertise of the Queen's Majesty's sickness, which at that time was wondrous great; for assuredly her Majesty was so handled with great vehemency, that all that were with her were desperate of her convalescence. Nevertheless, soon after the departing of Saunders Bog, her Majesty got some relief, which lasted till Thursday at ten hours at even, at which time her Majesty swooned again, and failed in her sight; her feet and her hands were cold, which were handled by extreme rubbing, drawing, and other cures, by the space of four hours, that no creature could endure greater pain; and through the vehemency of this cure her Majesty got some relief, till about six hours in the morning on Friday, that her Majesty became dead, and all her members cold, eyes closed, mouth fast, and feet and arms stiff and cold. Nevertheless, Master Nau, who is a perfect man of his craft, would not give the matter over in that manner, but of new began to draw her knees, legs, arms, feet, and the rest, with such vehement torments, which lasted the space of three hours, till her Majesty recovered again her sight and speech, and got a great sweating, which was held the relief of the sickness, because it was on the ninth day, which commonly is called the crisis of the sickness, and so here thought the cooling of the fever. And since then continually, thanks to God, her Majesty convalesces better and better.... Always, I assure your Lordship, in all this sickness, her Majesty used herself marvellous godly and Catholic, and continually desired to hear speak of God and godly prayers....

THE QUEEN'S RECOVERY

[Mr. Small, in his "Queen Mary at Jedburgh" (p. 18), gives the following as the opinion of "a distinguished physician" on the illness:—"An attack of hæmatemesis, or effusion of blood into

the stomach, subsequently discharged by vomiting; presenting also, possibly, hysterical complications, the whole induced by over-exertion and vexation."]

*Marc Antonio Barbaro, Venetian Ambassador in France to the Signory,
from Paris, Nov. 6, 1566. Venetian Calendar.*

The Ambassador from Scotland came to me to-day with the good news that his Queen ... is so much better that it is hoped and almost believed that she is certain to live.

The illness was caused by her dissatisfaction at a decision made by the King, her husband, to go to a place twenty-five or thirty miles distant without assigning any cause for it; which departure so afflicted this unfortunate Princess, not so much for the love she bears him as from the consequences of his absence, which reduced her to the extremity heard of by your Serenity.

BUCHANAN ON CRAIGMILLAR CONFERENCE

1566.—The Craigmillar Conference.

Buchanan's Detection.

About the 5th November she returned from Jedburgh to a village called Kelso, and there she received letters from the King. When she had read these in the presence of the Regent, the Earl of Huntly, and the Secretary, with a sad countenance, she said that unless by some means she were freed from the King her life would not be worth living; and that if it could be done in no other way, rather than live in such misery, she would take her life with her own hand.... When, about the end of November, she came to Craigmillar, a castle about two miles from Edinburgh, she commenced a similar conversation in the presence of the Earl of Moray (afterwards Regent, and now himself dead), the Earl of Argyle, and the Secretary. She mentioned what seemed to her a satisfactory plan. She projected a suit of divorce against the King, and doubted not but that it could easily be done, since they were in that degree of consanguinity which is forbidden by Canon Law for the contraction of matrimony, although they had been by letters easily exempted from that law. At this point some one raised an objection, that, if it were so managed, their son would be illegitimate, being born out of matrimony, and the more so that neither of the parents was ignorant of the causes that rendered the marriage null. She considered that reply for a little, and recognised its truth. Not daring to enter upon a scheme which would thus affect her son, she abandoned her project of a divorce, nor did she ever afterwards let slip any opportunity of getting rid of the King, as may be readily gathered from what remains to tell.

The Protestation of the Earls of Huntly and Argyll, 1568, Goodall's Examination, vol. ii. pp. 316-321, from Cott. Lib. Calig., vol. i. p. 282.

[The following "Protestation" was drawn up by Queen Mary's advisers during the Westminster Conference (*infra*, [pp. 143 et seq.](#)), and was despatched to Huntly for his own and Argyll's signature. It was, however, seized and sent to Cecil, without its having reached its destination. It is placed here for the sake of

comparison with Buchanan's account of the Conference. It may be noted here that in another document (Instructions and Articles to be advised on and agreed, so far as the Queen's Majesty, our Sovereign, shall think expedient, at the meeting of the Lords in England, committed in credit by ... her Grace's true faithful subjects—*Goodall*, vol. ii. p. 354), signed by Lords Huntly, Argyll, Crawford, Eglinton, Cassilis, Errol, Ogilvie, Fleming, and many others of Mary's supporters, the following sentence refers to this Conference:—"They caused make offers to our said Sovereign Lady, if her Grace would give remission to them that were banished at that time, to find causes of divorce, either for consanguinity, in respect they alleged the dispensation was not published, or else for adultery; or then {else} to get him convict of treason, because he consented to her Grace's retention in ward; or what other ways to despatch him; which altogether her Grace refused, as is manifestly known." The "Dispensation" is the Papal Dispensation for the Darnley marriage, Mary and Darnley being within the forbidden degrees.]

A CONFERENCE OF THE EARLS

In the year of God 1566 years, in the month of December, or thereby, after her Highness's great and extreme sickness, and return from Jedburgh, her Grace being in the castle of Craigmillar, accompanied by us above written {i.e. Huntly and Argyll}, and by the Earls of Bothwell, Murray, and Secretary Lethington; the said Earl of Murray and Lethington came into the chamber of us the Earl of Argyll in the morning, we being in our bed; who, lamenting the banishment of the Earl of Morton, Lords Lindsay and Ruthven, with the rest of their faction, said, that the occasion of the murder of David, slain by them in presence of the Queen's Majesty, was to trouble and impesche {prevent} the parliament; wherein the Earl of Murray and others were to have been forfeited and declared rebels. And seeing that the same was chiefly for the welfare of the Earl of Murray, it should be esteemed ingratitude if he and his friends in reciprocal manner, did not strive all that in them lay for relief of the said banished ones; wherefor they thought that we, of our part, should have been as desirous thereto as they were.

And we agreeing to the same, to do all that was in us for their relief, providing that the Queen's Majesty should not be offended thereat; on this Lethington proposed and said, "That the nearest and best way to obtain the said Earl of Morton's pardon, was, to promise to the Queen's Majesty to find a means to make divorcement between her Grace and the King her husband, who had offended her Highness so highly in many ways."

And then they send to my Lord of Huntly, praying him to come to our chamber.... And thereon we four, viz., Earls of Huntly, Argyll, Murray, and Secretary Lethington, passed all to the Earl of Bothwell's chamber, to understand his advice on the proposals; wherein he gainsaid no more than we.

THEIR PROPOSITION MADE TO THE QUEEN

So thereafter we passed altogether to the Queen's Grace; where Lethington, after he had remembered her Majesty of a great number of grievous and intolerable offences, that the King, as he said, ungrateful for the honour he had received from her Highness, had done to her Grace, and continued every day from bad to worse; proposed, "That if it pleased her Majesty to pardon the Earl of Morton, Lords Ruthven and Lindsay, with their company, they should find the means with the rest of the nobility, to make divorcement between her Highness and the King her husband, which should not need her Grace to meddle therewith. To the which, it was necessary that her Majesty take heed to come to a decision therein, as well for her own relief as for the good of the realm; for he troubled her Grace and us all; and remaining with her Majesty, would not cease till he did her some other evil turn."

After these persuasions and divers others, which the said Lethington used, besides those which every one of us showed particularly to her Majesty to bring her to the said purpose, her Grace answered: That under two conditions she might agree to the same; the one, that the divorcement were made lawfully; the other, that it were not prejudicial to her son; otherwise her Highness would rather endure all torments, and abide the perils that might befall her in her Grace's lifetime. The Earl of Bothwell answered, "That he doubted not but the divorcement might be made without prejudice of my Lord Prince in any way," alleging the example of himself, that he

failed not to succeed to his father's heritage without any difficulty, albeit there was a divorce between him and his mother.

THE QUEEN'S ANSWER

It was also proposed that, after their divorcement, the King should be alone in one part of the country, and the Queen's Majesty in another, or else that he should retire to another realm; and herein her Majesty said, "That peradventure he would change his course, and that it were better that she herself passed into France for a time, waiting till he acknowledged his fault." Then Lethington, taking the speech, said, "Madam, think you not we are here, of the principal members of your Grace's nobility and council, and that we shall find the means that your Majesty shall be quit of him without prejudice of your son. And albeit that my Lord of Murray here present be little less scrupulous for a Protestant, than your Grace is for a Papist, I am assured he will look through his fingers thereto, and will behold our doings, saying nothing to the same." The Queen's Majesty answered, "I will that ye do nothing through which any spot may be laid upon my honour or conscience, and therefore I pray you, rather let the matter be in the condition that it is, abiding till God of His goodness put remedy thereto; lest you believing that you are doing me a service, may possibly turn to my hurt and displeasure." "Madam," said Lethington, "let us guide the matter among us, and your Grace shall see nothing but good, and approved by Parliament."

So since the murder of the said Henry Stewart followed this, we judge in our consciences, and hold for certain and truth, that the said Earl of Murray and Secretary Lethington were authors, inventors, devisers, counsellors, and sources of the said murder, in whatever manner, or by whatsoever persons, the same was executed.

THE QUEEN AND DARNLEY

Events immediately before the Murder of Darnley.

M. le Croc to the Archbishop of Glasgow, from Edinburgh. December 2, 1566. Keith's History, vol. i. p. 96.

The Queen is for the present at Craigmillar, about a league distant from this city. She is in the hands of the physicians, and I do assure you is not at all well; and do believe the principal part of her disease to consist in a deep grief and sorrow. Nor does it seem possible to make her forget the same. Still she repeats these words: *I could wish to be dead*. You know very well that the injury she has received is exceedingly great, and her Majesty will never forget it. The King, her husband, came to visit her at Jedburgh the very day after Captain Hay went away. He remained there but one single night; and yet in that short time I had a great deal of conversation with him.... I think he intends to go away tomorrow; but in any event I'm much assured, as I always have been, that he won't be present at the baptism. To speak my mind freely to you ... I do not expect, upon several accounts, any good understanding between them, unless God effectually put to His hand. The first is, the King will never humble himself as he ought; the other is, the Queen can't perceive any one nobleman speaking with the King, but presently she suspects some contrivance among them.

DARNLEY AND THE BAPTISM

M. le Croc to the Archbishop of Glasgow, from Glasgow. December 26, 1566. Keith's History, vol. i. p. 97.

The baptism of the Prince was performed Tuesday last, when he got the name of Charles James. It was the Queen's pleasure that he should bear the name James, together with that of Charles (the King of France's name). Everything at this solemnity was done according to the form of the Holy Roman Catholic Church. The King (Lord Darnley) had still given out that he would depart two days before the baptism, but when the time came on he made no sign of removing at all, only he still kept close within his own apartment. The very day of the baptism he sent three several times desiring

me either to come and see him, or to appoint him an hour that he might come to me in my lodgings, so that I found myself obliged at last to signify to him that seeing he was in no good correspondence with the Queen, I had it in charge from the most Christian King to have no conference with him.... His bad deportment is incurable, nor can there ever be any good expected from him.... I can't pretend to foretell how all may turn; but I will say that matters can't subsist long as they are without being accompanied with sundry bad consequences.... The Queen behaved herself admirably well all the time of the baptism, and showed so much earnestness to entertain all the goodly company in the best manner, that this made her forget in a good measure her former ailments. But I am of the mind, however, that she will give us some trouble as yet; nor can I be brought to think otherwise so long as she continues to be so pensive and melancholy.

AN INSULT TO THE ENGLISH

An Incident of the Baptism.

Melville's Memoirs, p. 171.

At the principal banquet there fell out a great flaw and grudge among the Englishmen, for a Frenchman called Bastien devised a number of men formed like satyrs, with long tails and whips in their hands, running before the meat, which was brought through the great hall upon a trim engine, marching, as it appeared, alone, with musicians clothed like maidens, playing upon all sorts of instruments and singing of music. But the satyrs were not content only to clear round, but put their hands behind them to their tails, which they wagged with their hands, in such sort as the Englishmen supposed it had been devised and done in derision of them, daftly {foolishly} apprehending that which they should not seem to have understood.... So soon as they saw the satyrs wagging their tails^[17] ... they all sat down upon the bare floor behind the back of the board, that they should not see themselves scorned, as they thought.

1566.—December 23. Restoration of the Consistorial Jurisdiction of the Archbishop of St. Andrews.

Laing, II., 77. from Privy Seal Record, bk. 35, fol. 99.

A letter made restoring and reprovng our sovereign's well beloved and trusty councillor, John, Archbishop of St. Andrews, primate and legate of Scotland, to all and sundry his jurisdictions as well upon the south as north sides of the Forth within the diocese of St. Andrews, which pertained to the Archbishopric of the same, to be used by him and his commissaries in all time coming in the same manner and form of justice as it is now used.... At Stirling, this xxiii day of December, the year of God, 1566 years.

[The jurisdiction of the ecclesiastical courts had been abolished in 1560. It was the Archbishop who pronounced the sentence of divorce between Bothwell and his wife, either in virtue of this general warrant, or by means of a special commission to try the case. On the one side, this restoration of the Consistorial Court is regarded as pointing to Mary's collusion with Bothwell, while controversialists, on the other side, would connect it with the proposal, made at Craigmillar, of a divorce between Mary and Darnley.]

Darnley's Illness.

Buchanan's Detection.

Before he had passed a mile from Stirling all the parts of his body were taken with such a sore ache, as it might easily appear that the same proceeded not of the force of any sickness, but by plain treachery. The token of which treachery, certain black pimples, so soon as he was come to Glasgow broke out over all his whole body, with so great ache and such pain throughout all his limbs, that he lingered out his life with very small hope of escape: and yet all this while, the Queen would not suffer so much as a physician once to come at him.

BUCHANAN v. BEDFORD

The Earl of Bedford to Cecil, from Berwick, January 9, 1566. Foreign Calendar.

The King is now at Glasgow with his father, and there lies full of the small-pox, to whom the Queen has sent her physician.

Mary to the Archbishop of Glasgow, from Edinburgh, January 20, 1567. Keith's History, vol. i. p. 101.

For the King our husband, God knows always our part towards him; and his behaviour and thankfulness to us is semblablement well known to God and the world; specially our own indifferent subjects see it, and in their hearts, we doubt not, condemn the same. Always we perceive him occupied and busy enough to have inquisition of our doings, which, God willing, shall aye be such as none shall have occasion to be offended with them, or to report of us any way but honourably; howsoever he, his father, and their fautors speak, which we know want no good will to make us have ado, if their power were equivalent to their minds.

A WARNING TO THE QUEEN

*The Archbishop of Glasgow to Queen Mary, from Paris, January 17,
1567. Keith's History, vol. i. p. 103.*

I have heard some murmuring ... that there be some surprise to be trafficked in your country, but he {the Spanish ambassador} would never let me know of any particular, only assured me he had written to his master to know if by that way he can try any further, and that he was advertised and counselled to cause me haste toward you herewith.... Finally, I would beseech your Majesty right humbly to cause the captains of your guard be diligent in their office; for notwithstanding that I have no particular occasion wherein I desire it, yet can I not be out of fear till I hear of your news.... And so I pray the eternal Lord to preserve your Majesty from all dangers, with long life and good health.

The Visit to Glasgow and the Murder.

Buchanan's Detection (First Scots translation, in *Anderson's Collections*, vol. ii. pp. 17-24).

[Buchanan's account of Queen Mary's visit to Glasgow should be supplemented by a comparison with Crawford's "Deposition" ([pp. 208-213](#)), with the Glasgow Letter ([pp. 167-182](#)), and with the passage from Nau's "Memorials" on [p. 111](#).]

Herself goes to Glasgow; she pretends the cause of her journey to be to see the King alive, whose death she had continually gaped for the month before. But what was indeed the true cause of that journey, every man may plainly perceive by her letters to Bothwell. Being now out of care of her son, whom she had in her own ward, bending herself to the slaughter of her husband, to Glasgow she goes, accompanied with the Hamiltons, and other the King's natural enemies.

KIRK-OF-FIELD

Bothwell, as it was between them before accorded, provides all things ready that were needful to accomplish the heinous act; First of all, a house, not commodious for a sick man, nor comely for a King, for it was both riven and ruinous, and had stood empty without any dweller for divers years before, in a place of small resort, between old falling walls of two kirks, near a few almshouses for poor beggars. And that no commodious means for committing that mischief might be wanting, there is a postern door in the Town Wall, hard by the house, whereby they might easily pass away into the fields. In choosing of the place, she would needs have it thought that they had respect to the wholesomeness. And to avoid suspicion that this was a feigned pretence, herself the two nights before the day of the murder, lay there in a lower room, under the King's chamber. And as she did curiously put off the shows of suspicion from herself, so the execution of the slaughter she was content to have committed to another.

THE QUEEN GOES TO HOLYROOD

About three days before the King was slain, she practised to set her brother, Lord Robert, and him at deadly feud, making reckoning that it should be gain to her, whichsoever of them had perished. For matter to ground their dissension, she made rehearsal of the speech that the King had had with her concerning her brother; and when they both so grew in talk, as the one seemed to charge the other with the lie, at last they were in a manner come from words to blows. But while they were both laying their hands on their weapons, the Queen feigning as though she had been perilously afraid of that which she earnestly desired, called the Earl of Murray, her other brother, to the parting, to this intent, that she might either presently bring him in danger to be slain himself, or in time to come to bear the blame of such mischief as then might have happened....

THE MURDER

When all things were ready prepared for performing this cruel fact ... the Queen, for manners' sake, after supper, goes up to the King's lodging. There being determined to show him all the tokens of reconciled good will, she spent certain hours in his company, with countenance and talk much more familiar than she had used in six or seven months before. At the coming in of Paris, she broke off her talk and prepared to depart. This Paris was a young man born in France, and had lived certain years in the houses of Bothwell and Seton, and afterwards with the Queen. Whereas the other keys of that lodging were in custody of the King's servants, Paris, by feigning certain fond and slender causes, had in keeping the keys which Bothwell kept back, of the back gate and the postern. He was in special trust with Bothwell and the Queen, touching their secret affairs. His coming (as it was before agreed among them) was a watchword that all was ready for the matter. As soon as the Queen saw him, she rose up immediately, and feigning another cause to depart, she said, "Alas! I have much offended toward Sebastian this day, that I came not in a mask to his marriage." This Sebastian was an Avernois {Auvergnois}, a man in great favour with the Queen, for his cunning in music, and his merry jesting, and was married the same day. The King thus left, in manner, alone, in a desolate place, the Queen departs, accompanied with the Earls of Argyle, Huntly, and Cassilis,

that attended upon her. After that she was come into her chamber, after midnight, she was in long talk with Bothwell, none being present but the captain of her guard. And when he also withdrew himself, Bothwell was there left alone, without other company, and shortly after retired into his own chamber. He changed his apparel, because he would be unknown of such as met him, and put on a loose cloak, such as the Swartrytters^[18] wear, and so went forward through the watch to execute his intended traitorous fact. The whole order of the doing thereof may be easily understood by their confessions who were put to death for it.

Bothwell, after the deed was ended that he went for, returned, and as if he had been ignorant of all that was done, he gat him to bed. The Queen, in the meantime, in great expectation of the success, how finely she played her part (as she thought) it is marvell to tell; for she not once stirred at the noise of the fall of the house, which shook the whole town, nor at the fearful outcries that followed, and confused cries of the people (for I think there happened her not any new thing unlooked for) till Bothwell, feigning himself afraid, rose again out of his bed, and came to her with the Earls of Argyle, Huntly, and Athole, and with the wives of the Earls of Mar and Athole, and with the Secretary. There, while the monstrous chance was in telling, while every one wondered at the thing, that the King's lodging was even from the very foundation blown up in the air, and the King himself slain; in this amazedness and confused fear of all sorts of persons, only that same heroical heart of the Queen maintained itself, so far from casting herself down into base lamentations and tears, unbeseeming the royal name, blood, and estate, that she matched, or rather far surmounted all credit of the constancy of any in former times. This also proceeded of the same nobility of courage, that she sent out the most part of them that were then about her, to inquire out the manner of the doing, and commanded the soldiers that watched to follow, and she herself settled her to rest, with a countenance so quiet, and mind so untroubled, that she sweetly slept till the next day at noon. But lest she should appear void of all naturalness at the death of her husband, by little and little, at length she kept her close, and proclaimed a mourning not long to endure.

Mary's Description of the Murder.

*Queen Mary to the Archbishop of Glasgow, February 11 [10?], 1567.
Keith's History, vol. i. p. 101.*

A PLOT AGAINST BOTH KING AND QUEEN

We have received this morning your letters of the 27th January by your servant Robert Dury, containing in one part such advertisement as we find by effect over true. Albeit the success has not altogether been such as the authors of that mischievous fact had preconceived in their mind, and had put it in execution, if God in His mercy had not preserved us and reserved us, as we trust, to the end that we may take a rigorous vengeance of that mischievous deed, which as it should remain unpunished, we had rather lose life and all. The matter is horrible and so strange as we believe the like was never heard of in any country. This night past, being the 9th February, a little after two hours after midnight, the house wherein the King was lodged was in an instant blown in the air, he lying sleeping in his bed, with such a vehemency, that of the whole lodging, walls, and other, there is nothing remained, no, not a stone above another, but all carried far away or dashed in dross to the very ground-stone. It must be done by force of powder, and appears to have been a mine. By whom it has been done, or in what manner, it appears not as yet. We doubt not but according to the diligence our Council has begun already to use, the certainty of all shall be used shortly; and the same being discovered, which we wot God will never suffer to lie hid, we hope to punish the same with such rigour as shall serve for example of this cruelty to all ages to come. Always whoever have taken this wicked enterprise in hand, we assure ourselves it was dressed as well for us as for the King; for we lay the most part of all the last week in that same lodging, and were then accompanied with the most part of the Lords that are in this town that same night at midnight, and of every chance tarried not all night, by reason of some mask in the Abbey: but we believe it was not chance, but God that put it in our head. We despatched the bearer upon the sudden, and therefore write to you the more shortly....

Nau's Memorials, p. 33.

He {the King} went to Glasgow, where he was seized with the small-pox. He sent several times for the Queen, who was very ill, having been injured by a fall from her horse at Seton. At last she went, stayed with him, and attended him on his return to Edinburgh.... On his return to Edinburgh, the King lodged in a small house outside the town, which he had chosen in the report of James Balfour and some others. This was against the Queen's wishes, who was anxious to take him to Craigmillar, for he could not stay in Holyrood Palace lest he should give infection to the Prince. On his own account, too, he did not wish any one to see him in his present condition.... While he was in this house, the King was often visited by the Queen, with whom he was now perfectly reconciled. He promised to give her much information of the utmost importance to the life and quiet of both of them.... He warned her more particularly to be on her guard against Lethington, who, he said, was planning the ruin of the one by the means of the other.... That very night, as her Majesty was about to leave the King, she met Paris, Lord Bothwell's *valet-de-chambre*, and noticing that his face was all blackened with gunpowder, she exclaimed in the hearing of many of the lords, just as she was mounting her horse, "Jesu, Paris, how begrimed you are!" At this he turned very red.

On the 10th of February 1567, about three or four o'clock in the morning, a match was put to the train of gunpowder, which had been placed under the King's house. It was afterwards made public that this had been done by the command and device of the Earls of Bothwell and Morton, James Balfour, and some others, who always afterwards pretended to be most diligent in searching out the murder which they themselves had committed. Morton had secretly returned from England, to which he had been banished.

THE ORIGIN OF THE CRIME

This crime was the result of a bond into which they had entered. It was written by Alexander Hay, at that time one of the clerks of the Council, and signed by the Earls of Moray, Huntly, Bothwell, and Morton, by Lethington, James Balfour, and others, who had combined for this purpose. They

protested that they were acting for the public good of the realm, pretending that they were freeing the Queen from the bondage and misery into which she had been reduced by the King's behaviour.... He was but deceiving the Queen, whom they often blamed for so faithfully having come to a good understanding with her husband; and they told her that he was putting a knife not only to their throats but to her own.

The King's body was blown into the garden by the violence of the explosion, and a poor English valet of his, who slept in his room, was there killed.... Earl Bothwell was much suspected of this villainous and detestable murder.... If we may judge by the plots, deeds, and contrivances of his associates, it would seem that after having used him to rid themselves of the King, they designed to make Bothwell their instrument to ruin the Queen, their true and lawful sovereign.

Their plan was this, to persuade her to marry the Earl of Bothwell, so that they might charge her with being in the plot against her late husband, and a consenting party to his death. This they did shortly after, appealing to the fact that she had married the murderer.

ANOTHER ACCOUNT BY BUCHANAN

Buchanan (*Translated from History*, xx. 35).

The Archbishop of St. Andrews, who lived nearest, willingly undertook the task of killing the King, when it was offered to him, both on account of old enmities, and in the hope of bringing the succession nearer his own family. He chose, accordingly, six or eight of the most abandoned of his retainers, and entrusted the matter to them, giving them the keys of the King's lodging. They entered very quietly into his chamber, strangled him as he lay sleeping, and carried his body through the postern into a garden beside the walls. Then, at a given signal, fire was applied to the house.

[The question as to the manner of Darnley's death has given rise to considerable discussion. The depositions of Hay, Hepburn, and Paris (vide [pp. 144, 215-218](#)) agree in representing that the King was killed by the explosion. On the other hand, Drury, who wrote to Cecil on 24th April {Foreign Calendar}, and Count

Moretta, the agent of the Duke of Savoy, who was in Edinburgh {Labanoff, vii. 108}, state that he was strangled. The facts that the bodies of Darnley and his servant, Taylor, were found together, in the garden, at some little distance from the house, without violent injury; that Darnley's pelisse and slippers were found beside him; and that the other bodies were found among the ruins, must be taken into account in forming a judgment on the question.]

SECTION V

FROM THE MURDER OF DARNLEY TO THE FLIGHT INTO ENGLAND

CONTENTS

- [1.](#) Introductory Note.
- [2.](#) Mary's seizure by Bothwell.
 - (a) The Ainslie Bond.
 - (b) Mary's description.
 - (c) Description in the Diurnal of Occurrents.
 - (d) Guzman de Silva to Philip II.
- [3.](#) The Bothwell Marriage.
 - (a) The Divorce.
 - (b) The Dukedom of Orkney.
 - (c) The Marriage.
 - (d) 's demeanour, as described by Du Croc and Drury.
- [4.](#) Carberry Hill.
- [5.](#) Mary in Lochleven.
 - (a) Guzman de Silva on the nature of the Rebellion.
 - (b) Elizabeth's intervention.
 - (c) De Silva's conversation with Murray—the first suggestion of the Casket Letters.
- [6.](#) The escape from Lochleven.

1567.—April 19. Mary's Capture by Bothwell.

[The Register of the Privy Council tells that, on February 12th, the Queen offered to the first revealer of the crime, "although he be one culpable and participant of the said crime," a reward of two thousand pounds and "ane honest yeirlie rent." Public opinion pointed to Bothwell as the murderer, and anonymous placards appeared in the streets of Edinburgh accusing him. Lennox approached the Queen demanding a trial. On March 1st (in reply to his letter of February 26th) Mary wrote asking a list of names. He sent, on the 17th, the names of Bothwell, Sir James Balfour, David Chalmers, John Spens, Francis Bastian, John de Bourdeaux, and Joseph Riccio,—the last four were attendants on the Queen. On March 28th the Privy Council fixed the trial for April 12th. On the 11th, Lennox wrote asking a postponement of the trial and the imprisonment of the persons he had named, or whom he might suspect. The request was not granted, and the trial took place on the 12th. The Earl of Argyll, hereditary Lord-Justice, took his place as President of the Court, and the Earl of Caithness was Chancellor of the jury. Lennox put forward his demand for a postponement, which was refused, Bothwell urging that the Privy Council had fixed an early date in accordance with Lennox's own request. No witnesses were produced by the prosecution, and Bothwell was acquitted. He then challenged to single combat any one who might accuse him, and the challenge was not accepted. In the Parliament which met on the 16th, various confirmations of grants were made—the Castle of Dunbar to Bothwell, the Earldom of Angus to Bothwell's nephew, and various lands to Sir Richard Maitland of Lethington. No Parliament had assembled since Mary's marriage to Darnley, and, accordingly, the restoration of Murray and Morton to their titles and estates was confirmed by statute. Although Parliament thus put its seal on Bothwell's acquittal, by

securing Dunbar to him, the popular impression of his guilt was in no way lessened.]

THE AINSLIE BOND

A Bond by a Number of the Nobility to promote Bothwell's Marrying of Queen Mary.

Anderson's Collections, vol. i. pp. 107-112, from Cott. Lib. Calig., C. i.
fol. 1.

We undersubscribing, understanding that although the noble and mighty Lord James, Earl Bothwell, ... being not only bruitit {reported} and calumniated by placards, privily affixed on the public places of the Kirk of Edinburgh, and otherwise slandered by his evil willers, as art and part of the heinous murther of the King, ... but also by special letters sent to her Highness by the Earl of Lennox, and debated {accused} of the same crime ... he by condign inquest and assize of certain noblemen his peers and other barons of good reputation is found guiltless and innocent of the odious crime objected to him ... and we considering the anciency and nobleness of his house, the honourable and good service of his predecessors, and specially himself to our Sovereign, and for the defence of this her Highness' Realm against the enemies thereof, and the amity and friendship which so long has preserved betwix his House and every one of us.... Therefore obliges us, and every one of us, upon our Faith and Honours, and Truth in our bodies, as we are noblemen, and will answer to God, that in case hereafter any manner of person or persons ... shall happen to insist farther to the slander and calumnation of the said Earl of Bothwell, as participant, act or part, of the said heinous murther, ... we ... shall take ... plain and upright part with him, to the defence and maintenance of his quarrel.... Moreover, weighing and considering the time present, and how our Sovereign the Queen's Majesty is now destitute of a husband, in the which solitary state the Commonwealth of this Realm may not permit her Highness to continue and endure; ... and, therefore, in case the former affectionate and hearty service of the said Earl ... may move her Majesty so far to humble herself, as preferring one of her native born subjects unto all foreign princes, to take to Husband the said Earl, we, and every one of us undersubscribing, upon our Honours and Fidelity, obliges us, and promises, not only to further, advance, and set forward the marriage to be solemnised and completed

betwix her Highness and the said noble Lord ... but in case any would presume directly or indirectly, openly, or under whatsoever colour or pretence, to hinder, hold back, or disturb the said marriage, we shall in that behalf, esteem, hold and repute the hinderers, adversaries or disturbers thereof as our common enemies and evil willers.... In witness of the which we have subscriyved these presents, as follows, at Edinburgh, the 19 Day of April, the year of God, 1567 years.

SIGNATORIES TO THE BOND

The names of such of the nobility as subscribed the bond, so far as John Read {a dependent of Murray} might remember, of whom I had this copy, being in his own hand, being commonly termed in Scotland, Ainslie's Supper.

The Earls—Murray, Huntly, Cassilis, Morton, Sutherland, Rothes, Glencairn, Caithness.

Lords—Boyd, Seton, Sinclair, Semple, Oliphant, Ogilvie, Rosse-Hacat, Carlisle, Herries, Hume, and Innermeith.

[This note is appended to Cecil's copy of the bond. It should be noted that Murray was not in Scotland at the time, and that his name does not appear in a copy of the bond in the Scots College at Paris, for which we have the authority of Sir James Balfour.]

THE QUEEN CAPTURED

1567.—May. Mary on her Capture. Instructions to the Bishop of Dunblane for the French Court.

Keith's History, vol. ii. p. 592.

In our returning he awaited us by the way, accompanied with a great force, and led us with all diligence to Dunbar.... And when he saw us like to reject all his suit and offers, in the end he showed us how far he was proceeded with our whole nobility and principals of our estates, and what they had promised him under their handwrites.... In the end, when we saw no esperance to be rid of him, never man in Scotland once making an attempt to procure our deliverance, ... so ceased he never till by persuasions and importune suit, accompanied not the less with force, he has finally driven us to end the work begun at such time and in such form as he thought might best serve his turn, wherein we cannot dissemble that he has used us otherwise than we would have wished, or yet have deserved at his hand.

Diurnal of Occurrents in Scotland.

And upon the twenty-fourth day of April, which was Saint Mark's even, our sovereign lady being riding from Stirling, whereto she passed a little of before to visit her son, as said is, to Edinburgh, James, Earl of Bothwell, accompanied with seven or eight hundred men and friends, whom he caused believe that he would ride upon the thieves of Liddesdale, met our sovereign lady betwix Kirkliston and Edinburgh, at a place called the Bridges, accompanied with a few number, and there took her person to the castle of Dunbar.

BOTHWELL AND MARY AT DUNBAR

Guzman de Silva to the King, from London. May 3, 1567. Spanish State Papers.

On arriving six miles from Edinburgh, Bothwell met her with four hundred horsemen. As they arrived near the Queen with their swords drawn they showed an intention of taking her with them, whereupon some of those who were with her were about to defend her, but the Queen stopped them, saying she was ready to go with the Earl of Bothwell wherever he wished rather than bloodshed and death should result. She was taken to Dunbar, where she arrived at midnight, and still remains. Some say she will marry him, and they are so informed direct by some of the highest men in the country who follow Bothwell. They are convinced of this, both because of the favour the Queen has shown him, and because he has the national forces in his hands. Although the Queen sent secretly to the governor of the town of Dunbar to sally out with his troops and release her, it is believed that the whole thing has been arranged, so that if anything comes of the marriage, the Queen may make out that she was forced into it.

A FATAL MARRIAGE

The Bothwell Marriage.

Diurnal of Occurrents in Scotland.

Upon the third day of May 1567, the sentence of divorce was pronounced by the comissaries of Edinburgh, decerning and ordaining ... Jean Gordon {Countess of Bothwell} to be free to marry when she pleased, and the said Earl Bothwell to be an adulterer. This divorcement was made to the effect that the said Earl should marry the Queen's Majesty.

Ibid.

Upon the twelfth day thair of {of May}, betwix seven and eight hours at even, James, Earl Bothwell, was made Duke of Orkney and Zetland, with great magnificence, ... and there were few or none of the nobility thereat.

Ibid.

Upon the fifteenth day of May 1567, Mary, by the grace of God, Queen of Scots, was married on James, Duke of Orkney, Earl Bothwell, ... in the palace of Holyrood-house, within the old chapel, by Adam, Bishop of Orkney, not with the mass but with preaching, at ten hours afore noon. There were not many of the nobility of this realm thereat, except the Earl Crawford, the Earl Huntly, the Earl Sutherland, my Lords Arbroath, Oliphant, Fleming, Livingston, Glamis, and Boyd, John, Archbishop of St. Andrews, the Bishop of Dunblane, the Bishop of Ross, Orkney, with certain other small gentlemen, who waited upon the said Duke of Orkney. At this marriage there was neither pleasure nor pastime used, as use was wont to be used when princes were married.

NEITHER PLEASURE NOR PASTIME

1567.—May. Mary's Demeanour.

Du Croc to Catherine de Medici. Von Raumer's Elizabeth and Mary, p. 99.

It {the Bothwell marriage} is too unhappy, and begins already to be repented of. On Thursday the Queen sent for me, when I perceived something strange in the mutual behaviour of her and her husband. She attempted to excuse it, and said, "If you see me melancholy, it is because I do not choose to be cheerful; because I never will be so, and wish for nothing but death." Yesterday, when they were both in a room, with the Earl d'Aumale, she called aloud for a knife to kill herself; the persons in the ante-chamber heard it. I believe that if God does not support her, she will fall entirely into despair.

Sir William Drury to Cecil, from Berwick, May 25. Foreign Calendar.

The Queen uses often with the Duke {Bothwell} to ride abroad, and they now make outward show of great content, but the company at Court increases not of one nobleman more than were at the marriage.

Ibid., May 27.

The Duke openly uses great reverence to the Queen, ordinarily bareheaded, which she seems she would have otherwise, and will sometimes take his cap and put it on.

"NO HEARTS TO FIGHT IN THAT QUARREL"

1567.—June 15. Carberry Hill.

Melville's Memoirs, p. 181.

All Scotland cried out upon the foul murder of the King.... Whereupon the lords that had the enterprise in their heads were hasted forward to take arms.... The Earl of Bothwell again, having the Queen in his company, convened a greater number out of the Merse and Lothians, and out of all parts where he had means of friendship, at over her Majesty's proclamation, which was not well obeyed for the time; and so many as came had no hearts to fight in that quarrel. Yet the Earl Bothwell marched forward out of Dunbar {which was threatened by the lords}, taking the Queen with him, towards Edinburgh. The lords again, with their companies, passed out of Edinburgh upon foot, with a great energy and fierceness to fight; both the armies not far from Carberry. The Earl Bothwell's men camped upon the hill head, in a strength very advantageous; the lords camped at the foot of the hill.

Albeit her Majesty was there, I cannot name it to be her army, for many of them that were with her had opinion that she had intelligence with the lords; chiefly such as understood of the Earl Bothwell's mishandling of her, and many indignities that he had both said and done unto her, since their marriage was made. He was so beastly and suspicious, that he suffered her not to pass over a day in patience, not making her cause to shed abundance of salt tears. So part of his own company detested him; other part believed that her Majesty would fain have been quit of him, but thought shame to be the doer thereof directly herself.

BOTHWELL'S COWARDICE

In the meantime the laird of Grange rode about the brae.... When the Queen understood that the laird of Grange was chief of that company of horsemen, she sent the laird of Ormiston to desire him to come and speak with her under surety, which he did, after he had sent and obtained leave of the lords. As he was speaking with her Majesty, the Earl Bothwell had appointed a

soldier to shoot him, until the Queen gave a cry, and said that he should not do her that shame, who had promised that he should come and return safely. For he was declaring unto the Queen how that all they would honour and serve her so that she would abandon the Earl Bothwell, who was the murderer of her own husband....

MARY'S LAST DAY IN EDINBURGH

The Earl Bothwell hearkened, and heard part of this language, and offered the singular combat to any man that would maintain that he had done it. The laird of Grange promised to send him an answer shortly thereanent.... He offered himself first.... The Earl Bothwell answered that he was neither lord nor earl, but a baron, and so could not be his peer. The like answer he made to Tullibardine. Then my Lord Lindsay offered to fight him, which he could not plainly refuse, but his heart cooled aye the longer the more. Then the Queen sent again for the laird of Grange, and said to him, that if the lords would do as he had spoken to her, she should put away the Earl Bothwell and come unto them. Whereupon he asked at them, if he might promise it to her Majesty in their name; which they willed him to do.... Her Majesty was that night conveyed to Edinburgh, and lodged in the middle of the town, in the provost's lodging. As she came through the town, the common people cried out against her Majesty at the windows and stairs, which it was a pity to hear. Her Majesty again cried out, to all gentlemen and others that passed up and down the causeway, declaring how that she was their native princess, and doubted not but all honest subjects would respect her as they ought to do, and not suffer her to be mishandled. Others again showed their malice, in setting up a banner or ensign, whereupon the King was painted lying dead under a tree, and the young prince sitting upon his knees, praying, "Judge, and revenge my cause, O Lord!"^[19]

That same night it was alleged that her Majesty wrote a letter unto the Earl Bothwell.... Upon the which letter the lords took occasion to send her to Lochleven to be kept, against promise as she alleged.

1567.—July 12. Lochleven Castle.

Guzman de Silva to the King. Spanish State Papers.

[Mary was a prisoner in Lochleven from 17th June 1567 to 2nd May 1568. The chief events of her captivity were her compulsory abdication on 24th July, the coronation of her infant son on the 29th of the same month, and the proclamation of the Earl of Murray as Regent on August 22nd. Her escape was preceded by at least one unsuccessful attempt. Murray visited Mary in Lochleven, and was by her asked to undertake the Regency, according to a letter from Throgmorton to Elizabeth, 20th August 1567 (in "Foreign Calendar," and in Keith's "History," vol. ii. p. 737).]



LOCHLEVEN CASTLE.

... Croc, who was French Ambassador in Scotland, has passed here on his way to France, and there is nobody now representing his King.

THE CASKET LETTERS

The Ambassador here assures me that the King (of France) has in his favour both those who have assembled to detain the Queen (of Scots) and those who are against them, and has their signatures promising to keep up the

friendship and alliance that the country has had with his predecessors. For this reason the King had proceeded in such a way as not to lose the support of the one side by taking up the cause of the other, but he could not avoid giving his aid to the Queen, whose adversaries assert positively that she knew she had been concerned in the murder of her husband, which was proved by letters under her own hand, copies of which were in his possession.

[This is the earliest known reference to the Casket Letters.]

Guzman de Silva to the King, from London, July 26. Spanish State Papers.

Four days ago the preacher and confessor of the Queen of Scotland arrived here. He is a Dominican Friar, a Frenchman named Roche Mameret, and was at the Council of Trent.... He is much grieved at events in Scotland, and the imprisonment of the Queen, but more than all at the marriage with Bothwell, since he already has a wife.... He assured me that those who had risen against the Queen had not been moved by zeal to punish the King's murder, as they had been enemies rather than friends of his; nor in consequence of the marriage, as they had been all in favour of it, and had signed their names to that effect without exception, either lay or clerical, apart from the Earl of Murray, but their sole object had been a religious one, as they thought the Queen, being a Catholic, might settle religion in a way not to their liking.

ELIZABETH'S INTERVENTION

Queen Elizabeth to Sir Nicholas Throgmorton, in Scotland, July 27, 1567. Keith's History, p. 702.

You shall plainly declare unto them {the lords}, that if they shall determine anything to the deprivation of the Queen their sovereign lady of her royal estate, we are well assured of our own determination, and we have some just and probable cause to think the like of other Princes of Christendom, that we will make ourselves a plain party against them, for example to all posterity.

[This intervention by Elizabeth on Mary's behalf was the result of reports which reached London that Mary's life was in danger. Her death was demanded by certain of the Protestant clergy, and the more ardent of their following.]

OPINION OF MARY'S CONFESSOR

Guzman de Silva to the King, from London, August 2. Spanish State Papers.

The Earl of Murray went to Scotland on the last day of July.... I visited him.... He repeated how displeased he was at the action of the lords in taking the Queen.... I said that her confessor had told me that as regarded the King's murder she had no knowledge whatever of it, and had been greatly grieved thereat.... He opened out somewhat, saying that my good will towards him prompted him to tell me something that he had not even told this Queen {Elizabeth}, although she had given him many remote hints upon the subject. This was that he considered it very difficult to arrange matters, as it was certain that the Queen had been cognisant of the murder of her husband, and he, Murray, was greatly grieved thereat. This had been proved beyond doubt by a letter which the Queen had written to Bothwell, containing three sheets of paper, written with her own hand, and signed by her, in which she says in substance that he is not to delay putting into execution that which he had arranged, because her husband used such fair words to deceive her and bring her round that she might be moved by them if the other thing were not done quickly. She said that she herself would go and fetch him, and would stop at a house on the road, where she would try to give him a draught, but if this could not be done, she would put him in the house where the explosion was arranged for the night upon which one of her servants was to be married. He, Bothwell, was to try to get rid of his wife either by putting her away or by poisoning her, since he knew that she, the Queen, had risked all for him, her honour, her kingdom, her wealth, and her God, contenting herself with his person alone. Besides this she had done an extraordinary and unexampled thing on the night of the murder in giving her husband a ring, petting and fondling him after plotting his murder, and this had been the worst thing in connection with it. Murray said he had heard about the letter from a man who had read it, and the rest was

notorious.... He says he will do his best for her. I am more inclined to believe that he will do it for himself if he finds a chance, as he is a Scotchman, and a heretic....

END OF MARY'S FIRST IMPRISONMENT

The Escape from Lochleven.

*Giovanni Correr, Venetian Ambassador in France to the Signory, from
Paris, May 26, 1568. Venetian Calendar.*

"A LOYAL HOST A ROYAL BANNER BORE"

Guard was continually kept at the castle day and night, except during supper, at which time the gate was locked with a key, every one going to supper, and the key was always placed on the table where the Governor took his meals, and before him. The Governor is the uterine brother of the Earl of Murray, Regent of Scotland, the Queen's illegitimate brother, and her mortal enemy. The Queen, having attempted to descend from a window unsuccessfully, contrived that a page of the Governor's, whom she had persuaded to this effect, when carrying a dish, in the evening of the second of May, to the table of his master with a napkin before him, should place the napkin on the key, and in removing the napkin take up the key with it and carry it away unperceived by any one. Having done so, the page then went directly to the Queen and told her all was ready; and she, having in the meanwhile been attired by the elder of the two maids who waited upon her, took with her by the hand the younger maid, a girl ten years old, and with the page went quietly to the door, and he having opened it, the Queen went out with him and the younger girl and locked the gate outside with the same key, without which it could not be opened from within. They then got into a little boat which was kept for the service of the castle, and displaying a white veil of the Queen's with a red tassel, she made the concerted signal to those who awaited her that she was approaching.... The horsemen ... came immediately to the lake and received the Queen with infinite joy, and having placed her on horseback, with the page and the girl, they conveyed her to the sea coast, at a distance of five miles from thence, because to proceed by land to the place which had been designated appeared manifestly too dangerous. All having embarked, the Queen was conducted to Niddry, a place belonging to Lord Seton, and from thence to Hamilton, a castle of the Duke of Châtelherault, where his brother, the Archbishop of St.

Andrews, with other principal personages of those parts, acknowledged her as Queen....

All Scotland is in motion, some declaring for the Queen, and some against her and for the Earl of Murray.... With regard to her flight, it is judged here, by those who know the site, and how strictly she was guarded, that her escape was most miraculous, most especially having been contrived by two lads under ten years of age, who could not be presupposed to have the requisite judgment and secrecy.

To the greater satisfaction with the result may be added that the inmates of Lochleven Castle perceived the flight; but being shut up within it, and thus made prisoners, they had to take patience, and to witness the Queen's escape, while they remained at the windows of the castle.

THE DISASTER AT LANGSIDE

But now, if the current report be true, the Queen of Scotland, following the course of her fickle fortune, gives news of her troops having been routed near Glasgow, all her chief adherents being killed or made prisoners.

Ibid. June 6.

The news of the defeat of the troops of the Queen of Scotland was true. She had assembled about eight thousand men, who had flocked to her from divers parts, and for greater security she wished to shut herself up in Dumbarton, which is a very strong castle, but she could not get there without crossing the Clyde, over which there is but one bridge near Glasgow, and that was already occupied by the enemy. It was therefore determined to cross the river where it flows into the sea, a number of boats being sent to the spot for that purpose. The Regent, aware of this, went in pursuit with four thousand men; whereupon the Queen appointed as her Lieutenant-General the Earl of Argyle, who had just joined her, and who is her brother-in-law through his wife, Queen Mary's natural sister, and he with six thousand men gave Murray battle.

MARY SEEKS ENGLISH PROTECTION

The contest lasted for three-quarters of an hour, when the Queen's troops were worsted, but only one hundred and fifty of her followers were killed, for the Regent exerted himself extremely to prevent his troops shedding blood. The prisoners exceeded three hundred, including many noblemen, amongst whom, moreover, is that Lord Seton who was the chief instrument and leader in effecting the Queen's escape. Finding herself defeated, the Queen set out for England, accompanied by a son of the Duke of Châtelherault, by Lord Fleming, by the Earl of Maxwell, and some twenty-five other attendants, and she travelled a distance of one hundred and twenty-five miles without any rest. She stopped at a place called Workington, which is four miles within the English border. She did not discover herself, but was recognised by a Scotsman, who informed the warden of the castle, and the latter went immediately to receive her, with great marks of respect, and posted guards on all sides to prevent pursuit by the enemy.

SECTION VI

THE CONFERENCES AT YORK AND WESTMINSTER

CONTENTS

1. The Conference at York.
 - (a) Letter of Murray to Queen Elizabeth.
 - (b) Mary's Instructions to her Commissioners.
 - (c) The formal complaints and replies.
 - (d) The account of the private interview, with the "abstract of matters" there shown.
 - (e) Sussex's opinion of the evidence.
2. The Conference at Westminster.
 - (a) Mary's Instructions.
 - (b) Murray's "Eik" or additional charge.
 - (c) The answer of Mary's Commissioners to the "Eik."
 - (d) Elizabeth's reply to (a).
 - (e) The Privy Council and suggestions for a compromise.
 - (f) Proofs produced at Westminster—the account of the production.
 - (g) Mary's own answer to the "Eik," and her request to see the originals, with Elizabeth's reply.
 - (h) Mary's request for copies, with Elizabeth's reply.
 - (i) Dissolution of the Conference by Elizabeth.

The Conference at York.

[On Mary's arrival in England, Queen Elizabeth declined to meet her, till she should be cleared from the suspicion of complicity in the Darnley murder. Mary promptly accused Maitland and Morton of a share in the crime, and accepted Elizabeth's proposal to have the case tried at a Conference at York. The Queen of England appointed as Commissioners, the Duke of Norfolk, the Earl of Sussex, and Sir Ralph Sadler. The Scottish Queen was represented by Lords Boyd, Herries, and Livingstone, the Abbot of Kilwinning, Sir John Gordon of Lochinvar, Sir James Cockburn of Skirving, and John Lesley, the Bishop of Ross. The Earl of Murray, the Earl of Morton, the Bishop of Orkney (Adam Bothwell), the Abbot of Dunfermline, and Lord Lindsay appeared in the name of the young James VI., along with Maitland of Lethington, George Buchanan, James Macgill, and Henry Balnaves, as assistants.

Many points of procedure and various formal questions occupied much of the time of the Conferences. The extracts which follow have been chosen out of regard to their bearing on the problem of Mary's guilt or innocence, and especial care has been taken to include references to the Casket Letters. The letters themselves, and the depositions which were produced before the Commissioners, will be found, by themselves, after the account of the Conferences.

The Conference met at York on October 8, and as Mary was, formally, the plaintiff, her complaint against the Lords was first received. Thereafter, Murray's reply and a rejoinder from Mary's representatives were put on record. This was all the formal business essential for our purpose. But, on October 11th, Elizabeth's Commissioners received a private visit from Maitland, Buchanan, Macgill, and Balnaves, who put before them, secretly, certain documents to prove Mary's guilt. It will

be seen from the letter of the Commissioners to Elizabeth, and the quotations from the "abstract of matters ... chosen by the Scots," that these documents consisted of:—

1. A bond signed by the Lords, agreeing to Bothwell's marriage with the Queen.
2. The Queen's warrant for the signature of the above-mentioned bond.
3. Two contracts of marriage. (See [pp. 201-203](#).)
4. Two letters arranging for the seizure of the Queen by Bothwell (*i.e.* two of Letters, [vi.](#), [vii.](#), and [viii.](#), see pp. 190-194).
5. A letter arranging a duel between Darnley and the Lord Robert.
6. The two Glasgow Letters ([i.](#) and [ii.](#), see pp. 165-182).
7. The Love Sonnets ([pp. 195-201](#)).
8. The Letter in which the Jason and Medea comparison occurs. ([Letter iv.](#), see pp. 185-189.)

This list should be compared with the recital of the productions at Westminster ([pp. 143 et seq.](#)). Maitland informed Queen Mary of this secret visit, and she complained to Queen Elizabeth, who summoned all the Commissioners to London, on the ground of greater convenience.]

MURRAY AND HIS PROOFS

Letter of the Earl of Murray, with information for the Queen of England, June 22, 1568. Goodall, vol. ii. p. 75, from the Paper Office.

It may be that such letters as we have of the Queen, our Sovereign Lord's mother, that sufficiently, in our opinion, prove her consenting to the murder of the King her lawful husband, shall be called in doubt ... therefore, since our servant, Mr. John Wood, has the copies of the same letters translated in

our language, we would earnestly desire that the said copies may be considered by the judges that shall have the examination and commission of the matter, that they may resolve us thus far, in case the principal agree with the copy, that then we prove the case indeed; for when we have manifested and shown all, and yet shall have no assurances that what we send shall satisfy for probation, for what purpose shall we either accuse or seek to prove, when we are not assured what to prove, or when we have proved, what shall succeed?

MARY ASSERTS FORGERY

1568.—September 9. Mary's Instructions to her Commissioners.

Goodall, vol. ii. p. 337, from *Queen Mary's Register* in Cotton Library.

In case they allege they have any writings of mine, which may infer presumption against me in that case, ye shall desire the principals to be produced, and that I myself may have inspection thereof, and make answer thereto. For ye shall affirm, in my name, I never wrote anything concerning that matter to any creature; and if any writings be, they are false and feigned, forged and invented by themselves, only to my dishonour and slander. And there are divers in Scotland, both men and women, that can counterfeit my handwriting, and write the like manner of writing which I use, as well as myself, and principally such as are in company with themselves. And I doubt not, if I had remained in my own realm, but I should have gotten knowledge of the inventors and writers of such writings ere now, to the declaration of my innocency, and confusion of their falsity.

October 8. Complaint of the Queen of Scots against the Earl of Murray.

Goodall, vol. ii. p. 128, from Cott. Lib. Calig., C. i. 197.

That James, Earl of Morton, John, Earl of Mar, Alexander, Earl of Glencairn, the Lords Howe, Lindsay, Ruthven, Sempill, Cathcart, Ochiltree, with others their assisters, assembled in arms a great part of the Queen's grace's subjects, declared by their proclamations it was for her Grace's relief, beset the road in her passage betwixt her Grace's castles of Dunbar and Edinburgh, there took her most noble person, committed her in ward in her own place of Lochleven, ... passed to the castle of Stirling, and made there fashion of crowning of her son the Prince....

James, Earl of Murray, took upon him the name of the Regent, ... intromitted with the whole strengths, munitions, jewels, and patrimony of the crown, as well property as casualty....

MURRAY'S APOLOGY FOR THE REVOLUTION

October 10. The Answer of the Earl of Murray.

Goodall, vol. ii. p. 144, from Cott. Lib. Calig., C. i. 202.

ACCUSATIONS AGAINST MARY

It is notorious to all men, how umquhile {the late} King Henry, father to our sovereign Lord, was horribly murdered in his bed. James, sometime Earl of Bothwell, being well known to be the chief author thereof, entered into so great credit and authority with the Queen, then our sovereign, that, within three months after the murder of her husband, the said Earl ... accomplished a pretended marriage betwix him and the Queen, which strange and hasty proceeding of that godless and ambitious man, ... with the ignominy spoken among all nations of that murther, as though all the nobility had been alike culpable thereof, so moved the hearts of a good number of them, that they thought nothing more godly ... than by punishing of the said Earl, chief author of the murther, to relieve others causelessly calumniated thereof, to put the Queen to freedom, forth of the bondage of that tyrant.... {From the Queen, after Carberry Hill}, no other answer could be obtained, but vigorous menacing, on the one part, avowing to be revenged on all them that had shown themselves in that cause, and on the other part, offering to leave and give over the realm and all, so she might be suffered to possess the murtherer of her husband, which her inflexible mind, and extremity of necessity compelled them to sequester her person for a season.... During the which time, she finding herself by long, irksome, and tedious travail, taken by her in the government of the realm and lieges thereof ... vexed and wearied ... and for other considerations moving her at the time, therefore demitted and renounced the office of government of the realm and lieges thereof ... and constituted me, the said Earl of Murray, I being then absent furth of the realm, and without my knowledge, Regent to his Grace, the realm, and lieges....

MARY'S REPLY

1568.—October 16. Queen Mary's Commissioners' Rejoinder to Murray's Reply.

Goodall, vol. ii. p. 162, from *Queen Mary's Register* in Cott. Lib.
Titus, C. 12.

If he {Bothwell} was the principal author of the murder, the same was never known nor manifested to her Highness, but the contrary did well appear to her Grace, by reason the said Earl of Bothwell being suspected, indited, and orderly summoned by the laws of that realm, was acquitted by an assize of his Peers, and the same ratified and confirmed by authority of Parliament, by the greatest part of the nobility ... who also consented and solicited our said Sovereign to accomplish the said marriage with him as the man most fit in all the realm of Scotland ... and they nor none of them ... came to her Highness ... to find fault with the said Earl concerning the murder foresaid, or yet in any ways seemed to grudge or disallow the said marriage.... And at the presenting of the said writings of demission of her crown to her Majesty by the Lord Lindsay, he menaced her Grace, that if she would not subscribe, he had command to put her presently in the Tower, and would do the same, and counselled her to fulfil their desire or worse would shortly follow; which her Highness subscribed with many tears, never looking what was contained in the writings, declaring plainly thereafter, if ever her Grace came to liberty, she would never abide thereat, because it was against her Majesty's will.... If her Grace had willingly demitted the same, as her Highness did not, her Highness could not have nominated the said Earl of Murray Regent, for there were others to have been preferred to him.

1568.—October 11. Letter to Queen Elizabeth from her Commissioners at York.

[This letter is printed in the Appendix to vol. ii. of Hosack's "Mary Queen of Scots, and her Accusers," from Cott. MS. Cal. c. i. fol. 198. The words or letters within brackets, {}, have been burnt, the margin being singed. "The words printed in italics," says Mr. Hosack, "are very carefully erased with the pen, and, in some instances, are disguised with head and tail loops, to prevent their being read, the alterations being written between the lines." Without the alterations, the letter is printed in Goodall, vol. ii. p. 139, and elsewhere.]

THE PROOFS ARE SHOWN PRIVATELY

THE COMMISSIONERS' LETTER

And so they {Moray and his colleagues} sent unto us the Lord of Lethington, James Macgill, Mr. George Buchanan, and one other being a Lord of the Session, which in private and secret conference with us, not as Commissioners, as they protested, but for our better instruction, afte{r} declaration of such circumstances as led and induced them to vehement presumptio{n} to judge her guilty of the said murder, shewed unto us a copy of a bond bear{ing} date the 19th of April 1567, to the which the most part of the Lords and coun{cil} of Scotland have put to their hands; and, as they say, more for fear, than any liking they had of the same. Which bond contained two special points, the one {a} declaration of Bothwell's purgation of the murder of the Lord Darnley ... and the othe{r} a general consent to his marriage with the Queen.... And yet, in proof that they did it not willingly, they procured a warrant, which was now shewed unto us, bearing date the 19th {of} April, signed with the Queen's hand, whereby she gave them licence to agree to the same.... There was also a contract shewed unto us, signed with the Queen's hand, and also with Bothwell's, bearing date the fifth of April.... There was also a contract shewed unto us, of the

Queen's own hand, of the marriage to be had between her and Bothwell, bearing no date, which had not *verba de præsenti*, as the other had, bearing date the 5th of April. It appeared also unto us by two letters of her own hand, that it was by her own practice and consent that Bothwell should take her and carry her to Dunbar.... After the device of the murder was determined, as it seemed by the sequel, they inferred upon a letter of her own hand, that there was another mean of a more cleanly conveyance devised to kill the King; for there was a quarrel made betwixt him and the Lord Robert of Holyrood-house, by carrying of false tales betwixt them, the Queen being the instrument, as they said, to bring it to pass.... Afterwards they shewed unto us one horrible and long letter of her own hand, as they say, containing foul matter, and abominable to be either thought of, or to be written by a Prince, with divers fond ballads, and other writings before specified, were closed in a little coffer of silver and gilt heretofore given by her to Bothwell.... And these men here do constantly affirm the said letters and other writings, which they produce of her own hand, to be of her own hand in deed; and do offer to swear and take their oath thereupon, *as in deed* the matter contained in them being such as could hardly be invented or devised by any other than by herself; for that the discourse of some things which were unknown to any other, than to herself, and Bothwell, *doth the rather persuade us to believe that they be in deed of her own handwriting*. And as it is hard to counterfeit so many, *and so long letters*, so the matter of them, and the manner how these men came by them, is such, as it seemeth that God (in whose sight murder and bloodshed of the innocent is abominable) would not permit the same to be hid or concealed. In a paper here inclosed we have noted to your Majesty the chief and special points of the said letters, written (as they say) with her own hand, to the intent it may please your Majesty to consider of them, and so to judge whether the same be sufficient to convince her of the detestable crime of the murder of her husband; which in our opinions and consciences, if the said letters be written with her own hand, *as we believe they be,* { is very hard to be avoided.
is plain and manifest....

T. NORFOLK.
T. SUSSEX.
R. SADLER.

Abstract of Matters showed to the Queen's Majesty's Commissioners by the Scots, sent the 11th of October.

Goodall, pp. 148-153.

... She wrote to Bothwell, that according to her commission, she would bring the man with her; praying him to work wisely, or else the whole burden would lie on her shoulders; and specially to make good watch, that the bird escaped not out of the cage. {[Letter iv.](#), see pp. 185-189.}

QUOTATIONS FROM THE LETTERS

Notes drawn forth of the Queen's Letters sent to the Earl Bothwell.

... *Item.* ... We are coupled with twa fals racis; the devill syndere us, and God mot knit us togidder for ever for the maist faithful cupple that ever he unitit. This is my faith, I will die in it.

... *Item.* ... Wareit {cursed} mocht this pokishe man be, that causes me haif sa meikill pane, for without hym I wald haif ane far mair plesant subject to discourse upoun. He is not oer meikle spilt, bot he has gottin verray mekill; he has almaist slane me with his braith; it is war nor your unclis, and zeit {yet} I cum na neirar bot sat in ane cheir at the bedfute, and he beand {being} at the uther end thairof.

... *Item.* ... Send me advertisement quhat I sall do, and quhatsumever sall cum thairof I sall obey you; advys to with yourself. Yf ye can fynd out any mair secreit inventioun be medecein, and the baith in Craigmillar.

... *Item.* ... "For certaintie he suspectis that thing ye know, and of his lyif: bot as to the last, how sone I speak twa or thrie guid wordis unto hym, he rejois and is out of doubt."

... *Item.* ... Sie not his quhas fenzeit tearis suld not be sa mekill praysit, nor estemyt, as the trew and faythfull travaillis quhilk I sustene to merit hir place, for obteyning of quhilk, againis my naturall. I betray thame that may impesche me. God forgive me, and God gif you, my onlie luif, the hope and prosperitie that your humble and faythfull luif desyris unto yow, quha hoipis schortlie to be ane uther thing unto yow. {[Letter, ii.](#) pp. 167-182.}

... *Item.* ... As to me, howbeit I heir no farther newes from yow. According to my commission, I bring the man with me to Craigmillar upon Munday, quhair he will be all Wednisday. {[Letter i.](#), pp. 165-6.}

... *Item.* ... In ane uther lettre, "I pray you, according to your promise, to discharge your hart to me, utherwayis I will think that my malheure, and the guid composing of thame, that hes not the third part of the faythfull and

willing obedience unto yow that I beyre, has wyne, againis my will, that advantage over me quhilk the secund luif of Jason wan; not that I wolde compair yow to ane soe unhappie as he was, nor yit myself to ane soe unpetifull a woman as she...." {[Letter iv.](#), p. 185.}

COMMISSION REMOVED TO WESTMINSTER

The Conference at Westminster.

[At the beginning of the Westminster Conference, Mary found herself "ever straiter and straiter kept from liberty," and demanded to be allowed to appear in person. Her request and Elizabeth's reply will be found on [pp. 145, 148](#). On the 26th November, Murray made his "eik" or additional charge. For the relevant portions of this document, and of the reply of Mary's Commissioners, see [pp. 146-7](#). On December 6th, Mary's representatives protested that they would withdraw from the Conference if their mistress's demand were not granted. Cecil declined, on a formal point, to receive the protest. On the 6th, 7th, and 8th, Murray produced his proofs. On the 9th, the protest was accepted, and Mary's Commissioners withdrew. After their retirement further evidence was received. It may be of use to enumerate the documents produced at Westminster:—

PRODUCTIONS AT WESTMINSTER

The Book of Articles.

Acts of Parliament ratifying the proceedings of the insurgent Lords.

Two contracts of marriage, and record of Bothwell's trial and divorce.

Five of the six letters produced at York, three additional letters, and the sonnets ([pp. 162-201](#)).

Recognition of the Regent's Government by Huntly, Argyll, and Herries ([pp. 154-5](#)).

Depositions and confessions of Hay, Hepburn, Powrie, Dalgleish, Nelson, and Crawford.

Murray's "Journal or Diary of Events."

The Book of Articles is a document of considerable length. It is a summary of the charges against the Queen of Scots, but contains no important charge which is not to be found elsewhere. The reader is already in possession of its essential allegations. It formed the material for Buchanan's "Detectio," with which it is, at times, almost identical. It is printed, from the Hopetoun MS., in Hosack's "Mary," I. App. B. For the depositions of [Nelson](#) and [Crawford](#), see pp. 207-213. The depositions of Hay, Hepburn, Powrie, and Dalgleish do not directly accuse the Queen of the murder, beyond stating that the powder was placed in her room, and they have therefore been omitted. The question of the position of the powder is discussed in Hosack, vol. i. pp. 247-8, and the reader is referred to the authorities there quoted, and to Mr. Hay Fleming's "Mary Queen of Scots," pp. 435-6 (*cf.* also [pp. 219-220](#)). The confession of Hepburn (English edition of Buchanan's "Detectio") contains the following sentence:—"He said, let no man do evil for counsel of great men ... for surely I thought that night that the deed was done, that although knowledge should be gotten, no man durst have said it was evil done, seeing the handwriting and acknowledging the Queen's mind thereto." No question was put to Dalgleish regarding the casket found in his possession.

A quotation from Murray's "Diary," so far as it bears on the murder, will be found on [pp. 213-215.](#)]

*The Earl of Sussex to Sir William Cecil, October 22, 1568. Lodge:
Illustrations of British History.*

This matter must at length take end, either by finding the Scotch Queen guilty of the crimes that are objected against her, or by some manner of composition with a show of saving her honour. The first, I think, will hardly be attempted, for two causes, the one, for that if her adverse party accuse her of the murder by producing of her letters, she will deny them, and accuse the most of them of manifest consent to the murder, hardly to be denied; so as, upon the trial on both sides, her proofs will judicially fall best out, as it is thought. The other, for that their young King is of tender and weak years and state of body; and if God should call him, and their Queen

were judicially defaced ... Hamilton, upon his death, should succeed; which Murray's faction utterly detest.

MARY'S REQUEST

1568.—November 22. Mary to her Commissioners.

Goodall, vol. ii. p. 185, *from Queen Mary's Register*, Cott. Lib., Titius C. 12.

Ye shall afore our sister, her nobility, and the whole ambassadors of strange countries, desire, in our name, that we may be licensed to come in proper person afore them all, to answer to that which may or can be proposed and alleged against us by the calumnies of our rebels, since they have free access to accuse us.... And now the said Earl of Murray being permitted to come into her presence, which if the like be not granted us, as is reasonable, and yet our sister will condemn us in our absence, not having place to answer for ourselves, as justice requires; in consideration of the premisses ye shall break off your conference, and proceed no further therein, but take your leave and come away.

THE REGENT'S "EIK"

1568.—November 26. Murray's "Eik" or Additional Charge.

Goodall, vol. ii. p. 206, from Cott. Lib. Calig., C. i. 230.

Whereas in our former answer, upon good respects mentioned in our protestation, we kept back the chiefest causes and grounds, whereupon our actions and whole proceedings were founded, wherewithal seeing our adversaries will not content themselves; but by their obstinate and earnest pressing we are compelled, for justifying of our cause, to manifest the naked truth. It is certain, and we boldly and constantly affirm, that as James, sometime Earl of Bothwell, was the chief executor of the horrible and unworthy murder, perpetrated in the person of umquhile King Henry of good memory, father to our sovereign Lord, and the Queen's lawful husband, so was she of the foreknowledge, counsel, device, persuader and commander of the said murder to be done, maintainer and fortifier of the executors thereof, by impeding and stopping of the inquisition and punishment due for the same, according to the laws of the realm, and, consequently, by marriage with the said James, sometime Earl Bothwell, delated and universally esteemed chief author of the above-named murder. Where through they began to use and exercise an uncouth and cruel tyranny in the whole state of the commonwealth, and with the first (as well appeared by their proceedings) intended to cause the innocent Prince, now our Sovereign Lord, shortly follow his father, and so to transfer the crown from the right line to a bloody murderer and godless tyrant. In which respect the estates of the realm of Scotland finding her unworthy to reign, decreed her demission of the Crown, with the coronation of our sovereign Lord, and establishing of the regiment of that realm, in the person of me, the Earl of Murray....

James, Regent.
PATRICK, L. LINDSAY.
MORTON.

AD. ORKAD.
DUNFERMLINE.

ANSWER TO THE "EIK"

1568.—December 1. The Answer of Queen Mary's Commissioners to the "Eik."

Goodall, vol. ii. p. 213, from Queen Mary's Register.

My Lords,—We are heartily sorry to hear that our countrymen should intend to colour their most unjust, ingrate, and shameful doings.... Her Highness made the greatest of them of mean men, if they had used their own calling, Earls and Lords, and now, without any evil deserving on her Grace's part to any of them in deed or word, to be thuswise recompensed with calumnious and false invented bruits {rumours}, slandered in so great a matter, to her reproach, whereof they themselves, that now pretend herewith to excuse their own treasons, were the first inventors, writers with their own hands of that devilish band, the conspiracy of the slaughter of that innocent young gentleman, Henry Stewart, late spouse till our sovereign, and presented to their wicked confederate, James, Earl Bothwell, as was made manifest before ten thousand people at the execution of certain the principal offenders at Edinburgh....

MARY AND ELIZABETH

The Queen's Highness, our and their native sovereign, ... gave them in her youth ... the twa part (two-thirds) of the patrimony pertaining to the Crown of Scotland, and seeing that her successors, Kings of that realm, might not maintain their estate upon the third part ... for their evil deservings and most proud contemptation ... caused her use the privilege of the laws always granted to the Kings of that realm before, and make revocation before her full age of xxv. years, ... so that it was not the punishment of that slaughter that moved them to this proud rebellion, but the usurping of their Sovereign's supreme authority, and to possess themselves with her great riches....

... Our desire is most earnestly that it should be the Queen's Majesty's pleasure that our Sovereign may be admitted to come into the presence of the Queen's Highness of this realm, her whole nobility, and also in presence

of the ambassadors of foreign countries, for more true declaration of her
innocency.

1568.—December 4. Elizabeth's Answer.

Goodall, vol. ii. p. 222, from Queen Mary's Register.

I think it very reasonable that she should be heard in her own cause, being so weighty; but to determine whom before, when and what, any time before I understand how they will verify their allegation, I am not as yet resolved.

THE PRIVY COUNCIL

1568.—Dec. 4. Proceedings of the Privy Council.

*Goodall, vol. ii. p. 223, from the Journal of the Privy Council of
England.*

Die Sabbati, 4 Decembris 1568, Hora prima post meridiem.

Present.

THE QUEEN'S MAJESTY.

The Lord Keeper {Sir Nicholas Bacon}.	Earl Leicester.
Duke of Norfolk.	Lord Admiral {Lord Clinton}.
Marquis {of Northampton}.	Lord Chamberlain {Lord Howard of Effingham}.
Lord Steward {Pembroke}.	Sir William Cecil.
Earl Essex.	Sir Ralph Sadler.
Earl Bedford.	Sir Walt. Mildmay.

The said Bishop {of Ross} and his colleagues, before they came to the Court, sent a message to the Earl of Leicester and Sir William Cecil, requiring to speak with them two apart.... And thereupon the said Commissioners came into the Earl of Leicester's chamber, where the said Bishop in the name of the rest said ... That although the Earl of Murray and his complices had delivered in writing a grievous accusation against the Queen, their Sovereign, and that they were prohibited to make any further answer to any such matter, but only to desire the Queen of Scots might come in person to the presence of the Queen's Majesty to make any further answer to any such matter; yet they having considered with themselves their mistress's intention to have been always from the beginning, that these causes should be ended by the Queen's Majesty by some such good appointment betwix her and her subjects, as might be for her Grace's honour and the common weal of the country, with surety also to the Earl of Murray,

and his party ... thought good to declare thus much to the said Earl and Sir William Cecil....

COUNCIL PROCEEDINGS

After the said Bishop had reiterated the said motion, as above is mentioned, the Queen's Majesty said: "... Trusting and wishing that the Queen, her sister, should be found innocent, ... she thought it better for her sister's honour and declaration to the world of her innocency, to have the Earl of Murray and his complices charged and reproved for this their so audacious defaming of the Queen, their sovereign, and to receive that which was due for their punishment, than to have it ended by appointment, except it might be thought that they should be able to show some apparent just causes of such an attempt, whereof her Majesty would be sorry to hear. And as for the Queen of Scots coming in person to her Majesty to make answer hereunto, the same being of no small moment to her honour, but rather likely to touch her in reputation, in that it might be thought the accusation so probable, as it not to be improved {disproved} by any other, but that she should be forced to come herself, being a Queen, in person to answer for herself, her Majesty said she would not have the Queen's honour and estate in that matter endangered without this their accusation might first appear to have more likelihood of just cause than she did find therein....

Hereunto the Queen of Scots' Commissioners said that this last motion for an appointment came not from the Queen since the accusation given in by the Earl of Murray, and so also the Queen's Majesty assented thereto, but of their own consideration."

PRODUCTION OF THE PROOFS

1568.—Dec. 6. Proofs produced at Westminster.

l. ii. p. 231, *from the Journal of the Commissioners.*

... They {Murray and others} would show unto her Majesty's Commissioners a collection made in writing of the presumptions and circumstances, by the which it should evidently appear that as the Earl Bothwell was the chief murtherer of the King, so was the Queen a deviser and maintainer thereof; the which writing followeth thus. Articles containing certain conjectures, &c. {the Book of Articles. See *supra*, [p. 144](#)}.

After the reading hereof they also said that according to the truth contained in the same, the three estates of Parliament, called by the King, now present, their whole actions and proceedings from the murther of the late King were ratified and approved to be lawful....

*Hosack I., App. C., from State Papers (Mary, Queen of Scots), 1568,
vol. ii. p. 61, December 7, 1568.*

... The Queen's Majesty's Commissioners having heard the foresaid Book of Articles read unto them ... entered into a new hearing of the Book of Articles, whereof having heard three of the chapters or heads, the Earl of Murray and his colleagues, according to the appointment, came to the said Commissioners and said: 'They trusted that, after the reading of the Book of Articles, and specially upon the sight of the Act of Parliament, wherein the whole cause wherewith their adversaries did charge them, were found, declared, and concluded to be lawful; their Lordships would be satisfied to think them clear and void of such crime as her Majesty did charge them withal.... They required to know whether their Lordships were not now satisfied with such things as they had seen, and if they were not, and that it would please them to show if in any part of these Articles exhibited they conceived any doubt, or would have any other proof, which they trusted, needed not.... {The Commissioners declined to give any opinion on this point.}

THE CASKET

And so they produced a small gilded coffer of not fully one foot long, being garnished in many places with the Roman letter F set under a Royal Crown, wherein were certain letters and writings, and as they said and affirmed to have been written with the Queen of Scots' own hand, to the Earl Bothwell, which coffer, as they said, being left in the Castle of Edinburgh by the said Earl Bothwell before his flying away, was sent for by one George Dalgleish, his servant, who was taken by the Earl of Morton, who also thereto sitting presently as one of the Commissioners avowed upon his oath the same to be true, and the writings to be the very same without any manner of change, and before they would exhibit the sight of these letters they exhibited {the two marriage contracts}.... After this the said Earl and his colleagues offered to show certain proofs, not only of the Queen's hate towards the King, her husband, but also of unordinate love towards Bothwell, for which purpose they produced a letter written in French and in Roman hand, which they averred to be a letter of the said Queen's own hand to Bothwell when she was at Glasgow with her husband, at the time she went to bring him to Edinburgh, the tenour of which letter hereafter followeth: Il semble que avecques ure absence, &c. {[Letter i.](#) p. 165.}

ITS CONTENTS

After this they produced for the same purpose one other long letter written also with the like hand, and in French, ... the tenour of all which letter followeth hereafter: Estant party du lieu, &c. {[Letter ii.](#) p. 167.}

*Goodall, vol. ii. p. 235, from the Journal of the Commissioners,
December 8.*

They produced seven several writings written in French in the like Roman hand, as others her letters which were shewed yesternight and avowed by them to be written by the said Queen, which seven writings, being copied, were read in French, and a due collation made thereof as near as could be by reading and inspection, and made to accord with the originals, which the said Earl of Murray required to be redelivered, and did thereupon deliver the copies being collationed, the tenour of all which seven writings hereafter follow in order, the first being in manner of a sonnet,

"O Dieux, ayez de moy," &c.

[This is the first line of the first of the collection of sonnets, which will be found [on pp. 195-201](#). The other six "writings" are Letters iii.-viii., on [pp. 162-195](#).]

DEPOSITIONS

After this they did produce and show three several writings in English, subscribed and signed by Sir John Bellenden, Knight, Justice-Clerk in Scotland, whereof the first contained two several examinations, the first of John Hay, the younger of Talla, the 13th of September, anno 1567, the second of John Hepburn, called John of Bolton, being examined upon the murder of the King, the 8th of December 1567. The third writing containeth the examination of one George Dalglish, the 26th of June in the same year, 1567. All which writings ... were delivered to the said Commissioners, the true tenour whereof hereafter followeth, *Apud Edinburgh*, 13 die mensis Septembris.

After this they produced and showed forth in writing, subscribed likewise by the said Justice-Clerk, a copy of the process, verdict, and judgment against the foresaid John Hepburn, John Hay, William Powrie, and George Dalglish, as culpable of the murder of the said King, which being read, was also delivered, and the tenours thereof hereafter followeth, *Curia justiciariae S. D. N. regis*, &c. After this they produced and shewed forth a writing in a long paper, being, as they said, the judgment and condemnation by Parliament of the Earl Bothwell, James Ormiston, Robert Ormiston, Patrick Wilson, and Paris, a Frenchman, Sym, Armstrong, and William Murray, as guilty sundry ways of treason for the murder of the King. The tenour whereof thus followeth: *In the Parliament holden at Edinburgh, the 20th day of December*.

After this they produced and showed a writing signed by Mr. James Macgill, Clerk of the register, containing a request, by way of protestation, by the Earls of Huntly and Argyle, and the Lord Herries, by the which they require to have no fault imputed unto them for not doing their duty since the 10th of June 1567, until the 29th of December then following, for the which, by order of Parliament, they were acquitted....

THE FINDING OF THE CASKET

Goodall, vol. ii. p. 239, from *Journal of the Commissioners*, Cott. Lib.
Calig., c. i. p. 252, Dec. 9, 1568.

The Queen's Majesty's Commissioners being occupied in perusing and reading certain letters and sonnets written in French, being duly translated into English, and other writings also exhibited yesterday to them by the Earl of Murray and his colleagues.... After this the Earl of Murray and his colleagues came ... and first the Earl Morton said, that where heretofore he had declared by speech, the manner how he came to the little gilt coffer with the letters, sonnets, and contracts of marriage therein found, and heretofore exhibited: he had caused the same to be put in writing, which also he produced subscribed with his hand, and desired to have it read: which being done, he avowed upon his honour, and the oath which he already took, the same to be true, the tenor whereof followeth, *The true declaration and report*, &c. (see [p. 203](#)).

After this the Earl of Murray required that one Thomas Nelson, late servitor to the King that was murdered ... might be heard upon his oath to report his knowledge therein, who, being produced, did present a writing in form of answer of himself to an examination, which being read unto him, he did by a corporal oath affirm the same to be true ... (see [p. 207](#)) ...

CRAWFORD'S EVIDENCE

The like request was made that one Thomas Crawford, a gentleman of the Earl of Lennox, might be also heard upon his oath, who was, as they said, the same party of whom mention is made in a long letter written in French, and exhibited the 7th of this month.... Whereupon the said Thomas Crawford ... did present a writing, which he said he caused to be made according to the truth of his knowledge, which being read he affirmed upon his corporal oath there taken to be true, the tenour whereof hereafter followeth. The words betwixt the Queen, &c.... The said Crawford said ... that he ... was secretly informed by the King of all things which had passed betwixt the said Queen and the King, to the intent he should report the same to the Earl of Lennox his master ... and that he did, immediately at the same

time, write the same word by word as near as he possibly could carry the same away ... (see [p. 208](#)).

Journal of the Privy Council of Hampton Court, December 14, 1568.
Goodall, ii. 254.

There were produced sundry letters written in French, supposed to be written by the Queen of Scots' own hand, were then also presently produced and perused; and being read were duly conferred and compared, for the manner of writing and fashion of orthography, with sundry other letters long since heretofore written, and sent by the Queen of Scots to the Queen's Majesty. {The attestation of Morton and the depositions were then read.} ... And forasmuch as the night approached, it was thought good to defer the further declaration of the rest until the next day following.

Ibid., December 15.

[The Book of Articles, depositions, and contracts were produced, along with Acts of the Scottish Parliament.]

And it is to be noted, that, at the time of the producing, shewing, and reading of all these foresaid writings, there was no special choice nor regard had to the order of the producing thereof, but the whole writings lying all together upon the Council table, the same were one after another showed rather by hap, as the same did lie upon the table, than with any choice made, as by the natures thereof, if time had so served, might have been.

MARY'S PERSONAL ANSWER

1568.—December 19. Queen Mary's own Answer to the "Eik."

Mary to her Commissioners. Goodall, vol. ii. p. 288, from Cott. Lib. Calig., b. ix. p. 287.

We have received the eik given in by the Earl of Murray and his complices. And where they have said thereintill, or at any time, that we knew, counselled, devised, persuaded, or commended the murther of our husband, they have falsely, traitorously, and meschantlie lied; imputing unto us the crime whereof they themselves are authors, inventors, doers, and some of them proper executors. And where they allege we stopped inquisition, and due punishment to be made on the said murther; and siclike {similarly} of the sequel of the marriage with the Earl Bothwell; it is sufficiently answered in the reply given in at York to their two points.... And where they charge us with unnatural kindness towards our son, alleging we intended to have caused him follow his father hastily: Howbeit the natural love the mother bears to her only bairn is sufficient to confound them, and misteris {requires} no other answer. Yet, considering their proceedings by-past, who did wrong him in our womb, intending to have slain him and us both, there is none of good judgment but they may easily perceive their hypocrisy, how they would fortify themselves in our son's name, till their tyranny were better established.

DEMAND TO SEE ELIZABETH

And to the effect our good sister may understand we are not willing to let their false invented allegations pass over with silence, adhering to your former protestations, ye shall desire the inspection and doubles of all that they have produced against us; and that we may see the alleged principal {original} writings, if they have any, produced; and with God's grace we shall make our answer thereto, that our innocence shall be known to our good sister, and to all other Princes; and similarly shall charge them as authors, inventors, and doers of the said crime they would impute to us, and

prove the same sufficiently, so that we may have our good sister's presence, as our adversaries have had, and reasonable space and time to get such verification as appertains thereto. And protest that we may add thereto as time place and need shall require.

[In accordance with these instructions, Mary's Commissioners made the request before Elizabeth and her Council on 25th December, and received the following reply:—]

Which desire her Majesty thought very reasonable, and declared her to be very glad that her good sister would make answer in that manner for defence of her honour. And to the effect her Majesty might be the better advised upon their desires, and give answer thereto, desired an extract of the said writing to be given to her Highness. (Goodall, p. 282, from "Queen Mary's Register," as before.)

HAMPTON COURT

1569.—January 7. Proceedings at Hampton Court.

Goodall, vol. ii. p. 297, from Queen Mary's Register.

The which day the said Bishop of Ross, Lord Herries, and Abbot of Kilwinning, passed to the presence of the Queen's Majesty of England, her Highness's council being also present, and declared, that they had presently received writings from the Queen's Majesty of Scotland, their sovereign, by the which they were of new commanded to signify unto her Majesty, that she would answer to the calumnious accusation of her subjects, and also would accuse them as principal authors, inventors, and executors of that deid for the which she was falsely accused by them, conform to the writings presented of before in her name, and therefore desired the writings produced by her inobedient subjects, or, at the least, the copies thereof, to be delivered unto thame, that their mistress might fully answer thereto as was desired.

And the Queen's Majesty of England took to be advised therewith, and promised to give answer within two or three days.

ELIZABETH'S DECISION

1569.—January 10. At Hampton Court.

Ibid. (p. 305).

The which day the said Earl of Murray, and his complices, came before the Queen's Majesty of England, where Sir William Cecil, secretary, at the Queen's Majesty's command, and her Highness's council, gave them such answer in effect as follows:—

Whereas the Earl of Murray, and his adherents, come into this realm, at the desire of the Queen's Majesty of England, to answer to such things as the Queen their sovereign objected against them, and their allegiances; for so much as there has been nothing deduced against them, as yet, that may impair their honour or allegiances; and, on the other part, there had been nothing sufficiently produced nor shown by them against the Queen, their sovereign, whereby the Queen of England should conceive or take any evil opinion of the Queen, her good sister, for anything yet seen; and there being alleged by the Earl of Murray the unquiet state and disorder of the realm of Scotland, now in his absence, her Majesty thinketh meet not to restrain any farther the said Earl and his adherents' liberty; but suffer him and them, at their pleasure to depart, relinquishing them in the same estate in the which they were of before their coming within this realm, till she hear farther of their Queen of Scotland's answer, to such things as have been alleged against her.

MARY'S PROTEST

[Next day, Mary's Commissioners protested and again demanded "copies of the pretended writings given in." On the 13th they repeated their demand, and received a promise "that she {Elizabeth} will not refuse unto the Queen, her good sister, to give the doubles of all that was produced." (Goodall.) The copies not being forthcoming, Mary applied to the French ambassador, La Mothe Fénélon, for help. Elizabeth promised that they should be produced immediately, but, when Fénélon

again approached her on the subject, he was informed that Mary had, in a letter, accused the English Queen of partiality. (Fénélon, i. 133 and 162.) The matter was forgotten in the negotiations for Mary's marriage with the Duke of Norfolk, and in the conspiracy which followed.]

SECTION VII

THE DOCUMENTS

CONTENTS

- [1.](#) The Contents of the Casket.
 - (a) The Letters.
 - (b) The Sonnets.
 - (c) The Contracts of Marriage.
- [2.](#) The Deposition of Thomas Nelson.
- [3.](#) The Deposition of Thomas Crawford.
- [4.](#) Murray's Journal.
- [5.](#) The Depositions of Paris.
- [6.](#) The Confession of Ormiston.
- [7.](#) The Confession of the Earl of Morton.
- [8.](#) Letter from Mr. Archibald Douglas to the Queen of Scots.

THE CASKET LETTERS

THE CASKET LETTERS.

[The following eight letters are the principal contents of the famous Silver Casket (*cf.* [pp. 125](#) and [132-161](#)). A long and bitter controversy has been waged in connection with the question of their authenticity. Every recorded production of them has been the subject of debate. Their discovery is related on [pp. 203-207](#). Their appearance at York is described in the letter to Queen Elizabeth on [pp. 138-143](#). It is evident that, at York, they were produced in Scots, and there has been considerable controversy as to whether they were there stated to be originals or translations. At Westminster, they were shown to the Commissioners in French. Within a few years after the Westminster Conference, we lose all trace of the original documents. Translations of them into Scots, English, and Latin and French versions, which we now know (at least in the case of some of the Letters) not to have been those produced at Westminster, were published soon after the Conference closed. In 1571, Latin translations of Nos. I., II., and IV. were printed in the Latin edition of Buchanan's "Detectio," and, in the same year, a Scots translation was published in London, containing the sonnets in French and Scots (reprinted in Anderson's "Collections," Vol. II.). Prefixed to each of the Scots versions was the first sentence of each letter, in French (*see* [pp. 194-5](#)). In 1572 another Scots version was published at St. Andrews, and, in 1573, a French translation of the "Detectio" appeared, with the imprimatur "Edinburgh." To it, French versions of all the letters, except No. III., were appended, with a version of the sonnets, varying considerably from that in the Scots "Detection." Research has revealed the existence of English translations of Nos. I. and II. and French versions of Nos. III. and V. in the Record Office; and of English translations and French versions of Nos. IV. and VI. at Hatfield. All these various versions will be found printed, in careful and scholarly fashion,

in Appendix C. of Mr. T. F. Henderson's "Casket Letters and Mary Queen of Scots."

The method adopted in the present work has been to print the Scots version of all the letters, with a glossary of unusual words. It is the only complete version, and the published French and Latin letters are probably derived from it. Variations both in these and in such English and French versions of the letters as are at Hatfield or the Record Office, are indicated in notes appended to each letter. Care should be taken to distinguish between these Hatfield or Record Office French versions and the "Published French," *i.e.* the French of the edition of 1573.

References to the literature of the question will be found in an Appendix. For the guidance of the reader, it may be added that one section of the discussion turns upon the question whether French originals of Nos. I., II., VII., and VIII. ever existed; and the Scots and English have been carefully examined to discover if they bear traces of derivation from a French source.

Of the other contents of the Casket, the Sonnets, and the important clauses of the marriage contracts will be found immediately after the letters.]

The following Scots words, which appear frequently in the text of the letters, may be unknown to English readers:—

Abaschit = surprised.

Aganis = against.

Allanerly = only.

Awin = own.

Beseik = beseech.

Chereis = cherish.

Conqueis = conquest.

Cordounis = cords.

Dreddouris = fears.

Eir = ear.

Eis = ease.

Fane = anxious (wald verray fane, wished very much).

Fascherie, fascheous = trouble, troublesome.
Fenze, fenzeingly = feign, feigningly.
Fulische = foolish.
Gangand = going.
Gar = force, compel.
Gude = good.
Haillely = wholly.
Impesche = hinder, prevent.
Incontinent = immediately.
Inlack = fail.
Inragis = becomes angry.
Irkit = tired, wearied.
Irksome = troublesome, disagreeable.
Journey = day's work.
Luif, luifar = love, lover.
Mekle, meikle = much.
Playn, plenzeit = complain, complained.
Quha = who.
Quhair = where.
Quhen = when.
Quhilk = which.
Quhill = while, till.
Regiment = rule.
Schaw = show.
Schort = short.
Schuillis = schools.
Seik = sick.
Sic, siclyke = such, similarly.
Sone = son.
Speik = speak.
Suld = should.
Travell = take pains, try.
Thristit = nudged.
Tuichit = touched.
Tyne = lose.
Unsay = contradict.
Wald = would.

Waryit = cured.

Wod = mad, angry.

Ze, zow = ye, you.

Zisternicht = yesternight.

Zit = yet.

Letter I.

Goodall, vol. ii. p. 1, et seq.

It appeiris, that with zour absence thair is alswa joynit forzetfulnes, seand yat at zour departing ze promysit to mak me advertisement of zour newis from tyme to tyme. The waitting upon yame zisterday causit me to be almaist in sic joy as I will be at zour returning, quhilk ze have delayit langer than zour promiseis was.

As to me, howbeit I have na farther newis from zow according to my commission, I bring the man with me to Craigmillar upon Monounday, quhair he will be all Wednisday; and I will gang to Edinburgh to draw blude of me, gif in the meane tyme I get na newis in ye contrary fra zow.

He is mair gay than ever ze saw him; he puttis me in remembrance of all thingis yat may mak me beleve he luifis me. Summa, ye will say yat he makis lufe to me; of ye quhilk I tak sa greit pleasure, yat I enter never where he is, bot incontinent I tak ye seiknes of my sair syde, I am sa troubillit with it. Gif Paris bringis me that quhilk I send him for, I traist it sall amend me.

I pray zow, advertise me of zour newis at lenth, and quhat I sall do in cace ze be not returnit quhen I am cum thair; for, in cace ze wirk not wysely, I se that the haill burding of this will fall upon my schoulderis. Provide for all thing, and discourse upon it first with yourself. I send this be Betoun, quha gais to ane day of law of the Laird of Balfouris.

I will say na farther, saifing that I pray zow to send me gude newis of zour voyage. From Glasgow this Setterday in the morning.

There are no important variations in the published Latin and French translations.

An English version of Letter I., preserved in the Record Office (State Papers relating to Mary Queen of Scots, vol. ii. p. 66),

quoted by Mr. Henderson in his "Casket Letters," pp. 124-5:—

It seemyth that with your absence forgetfulness is joynid
consydering that at your departure you promised me to send me
newes from you. Nevertheless I can learn none. And yet did I
yesterday looke for that that shuld make me meryer than I shall
be. I think you doo the lyke for your return, prolonging it more
than you have promised.

As for me, if I hear no other matter of you, according to my
commission, I bring the man Monday to Craigmillar, where he
shall be upon Wednisday. And I go to Edinborough to be lett
blud, if I hear no word to the contrary.

He is the meryest that ever you sawe and doth remember unto
me all that he can, to make me believe that he loveth me. To
conclude, you wold say that he maketh love to me, wherein I
take so much pleasure, that I have never com in there, but the
payne of my syde doth take me. I have it sore to-day. If Paris
doth bring back unto me that for which I have sent, it suld much
amend me.

I pray you, send me word from you at large, and what I shall
doo if you be not returned, when I shall be there. For if you be
not wyse I see assuredly all the whole burden falling upon my
shoulders. Provide for all and consyder well first of all. I send
this present to Ledington to be delivered to you by Beton, who
goeth to one day a law of Lord Balfour. I will say no more unto
you, but that I pray God send me goode newes of your voyage.

From Glasco this Saturday morning.

Letter II.

Being departit from the place where I left my hart, it is esie to be judgeit quhat was my countenance, seing that^[20] I was evin als mekle as ane body without ane hart; quhilk was the occasioun that quhile dennertyme I held purpois to na body: nor zit durst ony present themselves unto me, judging yat it was not gude sa to do.

Four myle or I came to the towne, ane gentilman of the Erle of Lennox came and maid his commendatiounis unto me; and excusit him that he came not to meit me, be ressoun he durst not interpryse the same, becaus of the rude wordis that I had spoken to Cuninghame; and he desyrit that he suld come to the inquisition of ye matter yat I suspectit him of. This last speiking was of his awin heid, without ony commissioun.

I answerit to him, that thair was na receipt culd serve aganis feir; and that he wald not be affrayit, in case he wer not culpabill; and that I answerit bot rudely to the doutis yat were in his letteris.^[21] Summa, I maid him hald his tounge. The rest were lang to wryte. Schir James Hammiltoun met me, quha schawit, that the uther tyme quhen he hard of my cumming, he departit away, and send Howstoun, to schaw him, that he wald never have belevit that he wald persewit him, nor yit accompanyit him with the Hammiltounis. He answerit, that he was only cum bot to see me, and yat he wald nouthir accompany Stewart nor Hammiltoun, bot be my commandement. He desyrit^[22] that he wald cum and speik with him. He refusit it.

The Laird of Lusse,^[23] Howstoun, and Caldwellis sone, with xl hors or thair about, came and met me. The Laird of Lusse said, he was chargeit to ane day of law be the King's father, quhilk suld be this day, aganis his awin handwrit, quhilk he has; and zit notwithstanding, knawing of my cumming, it is delayit. He was inquiryrit to come to him, whilk he refusit, and sweiris that he will indure nothing of him.

Never ane of that towne came to speik to me, quhilk causis me think that thay ar his; and nevertheless he speikis gude, at the leist his sone. I se^[24] na

uther gentilman but thay of my company.

The King send for Joachim zisternicht,^[25] and askit at him, quhy I lodgeit not besyde him, and that he wald ryse the soner gif that wer; and quhairfoir^[26] I come, gif it was for gude appointment? and gif ye wer thair in particular? and gif I had maid my estait, gif I had takin Paris^{[27][28]} and Gilbert to wryte to me? and yat I wald send Joseph away. I am abaschit [*i.e.* I wonder] quha hes schawin him sa far; zea, he spak evin of ye marriage of Bastiane.

I inquyrit him of his letteris, quhairintil he plenzeit {complained} of the crueltie of sum; answerit, that he was astonischit,^[29] and that he was sa glaid to se me, that he belevit to die for glaidness. He fand greit fault that I was pensive.

I departit to supper. This beirer will tell zow of my arryving. He prayit me to returne; the quhilk I did. He declairit unto me his seiknes, and that he wald mak na testament, but only leif all thing to me; and that I was the caus of his maladie, becaus of the regrait that he had that I was sa strange unto him. And thus he said: Ze ask me quhat I mene be the crueltie contenit in my letter? It is of zow alone that will not accept my offeris and repentance. I confes that I have failit, but not into that quhilk I ever denyit, and sicklyke hes failit to {too} sindrie of your subjectis, quhilk ze have forgevin.^[30]

I am zoung.

Ye will say that ze have forgevin me oft tymes, and zit yat I returne to my faultis. May not ane man of my age, for lacke of counsell, fall twyse or thryse, or inlacke {fail} of his promeis, and at last^[31] repent himself and be chastisit be experience? Gif I may obtene pardoun, I protest I sall never mak fault agane. And I crave na uther thing bot yat we may be at bed and buird togidder as husband and wyfe; and gif ze wil not consent heirunto I sall never ryse out of yis bed. I pray zow, tell me zour resolution. God knawis I am punischit for making my God of zow, and for having na uther thocht bot on zow; and gif at ony tyme I offend zow, ze ar the caus, becaus quhen ony offendis me, gif, for my refuge, I micht playne unto zow, I wald speik it unto na uther body; bot quhen I heir ony thing, not being familiar

with zow, necessitie constrains me to keip it in my breist, and yat causes me to tyne {lose} my wit for verray anger.

I answerit ay unto him, bot that wald be ovir lang to wryte at lenth. I askit quhy he wald pas away in ye Inglis schip. He denyis it, and sweirs theirunto; bot he grantis that he spak with the men. Efter this I inquirit him of the inquisition of Hiegate. He denyit the same quhill I schew him the verray wordis was spokin. At quhilk tyme he said that Mynto had advertisit him, that it was said that sum of the counsell had brocht an letter to me to be subscrivit to put him in presoun, and to slay him gif he maid resistance. And he askit the same at Mynto himself, quha answerit that he belevit ye same to be trew. The morne I will speik to him upon this point. As to the rest of Willie Hiegait's,^[32] he confessit it, bot it was the morne efter my cumming or {till} he did it.

He wald verray fane that I suld ludge in his ludgeing. I refusit it, and said to him that he behovit to be purgeit, and that culd not be done heir. He said to me, I heir say ze have brocht ane lyter {litter, couch} with zow; bot I had rather have passit {travelled} with zow. I trow^[33] he belevit that I wald have send him away presoner. I answerit that I wald tak him with me to Craigmillar, quhais the mediciner and I micht help him, and not be far from my sone. He answerit that he was reddy when I pleisit, sa I wald assure him of his requeist.

He desyris na body to se him. He is angrie quhen I speik of Walcar, and sayis, that he sall pluk the eiris out of his heid, and that he leis {lies}. For I inquyrit him upon that, and yat he was angrie with sum of the Lordis, and wald threittin thame. He denyis that,^[34] and sayis he luifis {loves} thame all, and prayis me to give traist to nathing aganis him. As to me he wald rather give his lyfe or he did ony displesure to me.

And efter yis he schew me of sa mony lytil flattereis, sa cauldly and sa wysely, that ze will abasche {marvel} thairat. I had almaist forzet that he said he could not dout of me in yis purpois of Hiegait's; for he wald never belief yat I, quha was his proper flesche, wald do him ony evill; alsweill it was schawin that I refusit to subscribe the same.^[35] But as to ony utheris that wald persew him, at least he wald sell his lyfe deir eneuch; but he suspectit na body, nor yit wald not, but wald lufe all yat I lufit.

He wald not let me depart from him, bot desyrit yat I suld walk {watch} with him. I make it seme that I beleive that all is trew, and takis heid thairto, and excusit my self for this nicht that I culd not walk. He sayis, that he sleipis not weil. Ze saw him never better, nor speik mair humbler. And gif I had not ane prufe of his hart of waxe, and yat myne were not of ane dyamont quhairintill na schot can mak brek, bot that quhilk cummis furth your hand, I wald have almaist had pietie of him. But feir not, the place^[36] sall hald unto the deith. Remember, in recompense thairto, that ze suffer not zouris to be wyn {won} be that fals race^[37] that will travell na les with zow for the same.

I beleve thay have bene at schuillis togidder. He has ever the teir in his eye; he salutis every body, zea unto the leist, and makis pieteous caressing unto thame to mak thame have pietie on him. This day his father bled at the mouth and nose; ges quhat presage that is. I have not zit sene him, he keipis his chamber. The King desyris that I suld give him meit with my awin handis; but gif {give} na mair traist quhair ze ar than I sall do heir.

This is my first journey {day's work.} I sall end ye same ye morne. I wryte all thingis, howbeit thay be of lytill wecht, to the end that ze may tak the best of all to judge upon. I am in doing of ane work heir that I hait greitly.^[38] Have ye not desyre to lauch to see me lie sa weill, at ye leist to dissembill sa weill, and to tell him treuth betwix handis {i.e. occasionally.} He schawit me almaist all yat is in the name of the Bischop and Sudderland, and zit I have never twichit ane word of that ze schawit me; but allanerly {only} be force, flattering, and to pray him to assure himself of me. And be pleinzin on the Bischop I have drawin it all out of him.^[39] Ze have hard the rest.

We are couplit^[40] with twa fals races; the devil sinder us and God knit us togidder for ever, for the maist faithfull coupill that ever He unitit. This is my faith; I will die in it.

Excuse I wryte evill, ze may ges ye half of it; bot I cannot mend it, becaus I am not weil at eis; and zit verray glaid to wryte unto zow quhen the rest are sleipand, sen {since} I cannot sleip as they do and as I wald desyre, that is, in your armes, my deir lufe, quhome I pray God to preserve from all evill, and send yow repois; I am gang and to seik myne till ye morne, quhen I sall

end my Bybill; bot I am faschit {troubled} that it stoppis me to wryte newis of myself unto zow, becaus it is sa lang. Advertise me quhat ye have deliberat to do in the mater ze know upon this point to ye end, that we may understand utheris {each other} weill, that nathing may thairthrow be spilt.

I am irkit {weary}^[41] and ganging to sleip, and zit I ceis not to scribe all this paper in sa mekle as restis thairof. Waryit mot this pockische man be that causes me haif sa mekle pane, for without him I suld have an far plesander subject to discourse upon. He is not over mekle deformit,^[42] zit he hes ressavit verray mekle. He hes almaist slane me with his braith; it is worse than your uncle's;^[43] and zit I cum na neirer unto him, bot in ane chyre^[44] at the bed feit, and he being at the uther end thairof.

The message of the father in the gait {way}.

The purpois {talk}^[45] of Schir James Hamiltoun.

Of that the Laird of Lusse schawit me of the delay.

Of the demandis that he askit at Joachim.

Of my estait.

Of my company.

Of the occasioun of my cumming;

And of Joseph.

Item. The purpois that he and I had togidder.

Of the desyre that he has to pleis me, and of his repentance.

Of the interpretatioun of his letter.

Of Willie Hiegaite's mater {business}, of his departing.

Of Monsiure de Levingstoun.

I had almaist forzet, that Monsiure de Levingstoun said in the Lady Reres eir at supper he said to me, quhen I was lenand upon him warming me at the

fyre. Ze have { fair
sair } going to se seik folk,^[46] zit ze cannot be sa welcum to thame as ze left sum body this day in regrait, that will never be blyth quhill he se zow agane. I askit at him quha that was. With that he thristit my body, and said, that sum^[47] of his folkis had sene zow in fascherie; ze may ges at the rest.

I wrocht this day quhill {till} it was twa houris upon this bracelet, for to put the key of it within the lock thair of, quhilk is couplit underneth with twa cordounis. I have had sa lytill tyme that it is evill maid; bot I sall mak ane fairer in the meane tyme. Tak heid that nane that is heir se it, for all the world will knaw it, becaus for haist it was made in yair presence.

I am now passand to my fascheous {hateful} purpois.^[48] Ze gar (force) me dissemble sa far that I haif horring thairat; and ye caus me do almaist the office of a traitores. Remember how gif {if} it wer not to obey zow, I had rather be deid or I did it;^[49] my hart bleidis at it. Summa, he will not cum with me, except upon conditioun that I will promeis to him, that I sall be at bed and buird with him as of befor, and that I will leif him na efter:^[50] And doing this upon my word, he will do all thingis that I pleis, and cum with me. Bot he has prayit me to remane upon him quhil uther morne^[51] {till tomorrow}.

He spak verray bravely^[52] at ye beginning, as yis beirer will schaw zow, upon the purpois of the Inglismen, and of his departing; Bot in ye end he returnit agane to his humilitie.

He schawit, amangis uther purposis, yat he knew weill aneuch that my brother had schawin me yat thing, quhilk he had spokin in striviling, of the quhilk he denyis ye ane half, and above all, yat ever he came in his chalmer. For to mak him traist me, it behovit me to fenze {feign} in sum thingis with him; thairfoir, quhen he requeistit me to promeis unto him, that quhen he was haill we suld have baith ane bed;^[53] I said to him fenzeingly, and making me to beleve his promeis, that gif he changeit not purpois betwix yis and {by} that tyme, I wald be content thairwith; bot in the meane tyme I bad him tak heid that he leit na body wit thair of, becaus, to speik amangis our selvis, the Lordis culd not be offendit, nor will evill thairfoir: Bot^[54]

thay wald feir in respect of the boisting he maid of thame, that gif ever we aggreit togidder, he suld mak thame knaw the lytill compt thay tuke of him; and that he counsallit me not to purchas sum of thame by him. Thay for this caus wald be in jelosy, gif at anis, without thair knowledge, I suld brek the play set up in contrair in thair presence.

He said, verray joyfully, And think zow thay will esteme zow the mair of that? Bot I am verray glaid that ze speik to me of the Lordis, for I beleve at this tyme ze desyre that we suld leif togidder in quyetnes: For gif it wer utherwyse, greiter inconvenience nicht come to us baith than we ar war of; [\[55\]](#) bot now I will do quhatever ze will do, and will lufe all that ze lufe; and desyris zow to make thame lufe in lyk maner; For, sen thay seik not my lyf, I lufe thame all equallie. Upon yis point this beirer will schaw zow mony small thingis. Becaus I have over mekle to wryte, and it is lait: I give traist unto him upon zour word. Summa, he will ga upon my word to all places.

Alace! I never dissavit {deceived} ony body: Bot I remit me altogidder to zour will. Send me advertisement quhat I sall do, and quhatsaever thing sall cum thairof, I sall obey zow. Advise to with zourself, gif ze can find out ony mair secreit inventioun by medicine; for he suld tak medicine and the bath at Cragmillar. He may not cum furth of the hous this lang tyme.

Summa, be all that I can leirne, he is in greit suspicioun, and zit notwithstanding, he gevis credit to my word; bot zit not sa far that he will schaw ony thing to me; bot nevertheles, I sall draw it out of him, gif ze will that I avow all unto him. Bot I will never rejoyce to dissaive ony body that traistis in me: Zit notwithstanding ze may command me in all thingis. Have na evill opinioun of me for that caus, be ressoun ze are the occasion of it zourself; becaus, for my awin particular revenge, I wald not do it to him.

He gevis me sum chekis [\[56\]](#) of yat quhilk I feir, zea, evin in the quick. He sayis this far, yat his faultis wer publeist; bot yair is that committis faultis, that belevis thay will never be spokin of; and zit thay will speik of greit and small. As towart the Lady Reres, he said, I pray God that scho may serve zow for your honour; and said, it is thocht, and he belevis it to be trew, that I have not the power of myself into myself, and that becaus of the refuse I maid of his offeris. Summa, [\[57\]](#) for certanetie he suspectis of the thing ze

knew, and of his lyf. Bot as to the last, how sone that I spak twa or thre gude wordis unto him, he rejoysis, and is out of dout.^[58]

I saw him not this evening for to end zour bracelet, to the quhilk I can get na lokkis. It is ready to thame: and zit I feir that it will bring sum malheus, and may be sene gif ze chance to be hurt. Advertise me gif ze will have it, and gif ze will have mair silver, and quhen I sall returne, and how far I mey speik.^[59] He inragis when he heiris of Lethingtoun, or of zow or of my brother. Of zour brother he speikis nathing. He speikis of the Erle of Argyle. I am in feir quhen I heir him speik; for he assuris himself yat he hes not an evill opinioun of him. He speikis nathing of thame that is out, nouthur gude nor evill, bot fleis that point. His father keipis his chalmer; I have not sene him.

All the Hammiltounis ar heir, that accompanyis me verray honorabillly. All the freindis of the uther convoyis me quhen I gang to se him. He desyris me to cum and se him ryse the morne betyme. For to mak schort, this beirer will tell zow the rest. And gif I leirne onything heir, I will make zow memoriall at evin. He will tell zow the occasioun of my remaning. Burne this letter, for it is ovir dangerous, and nathing weill said in it; for I am thinkand upon nathing bot fascherie. Gif^[60] ze be in Edinburgh at the ressait of it, send me word sone.

Be not^[61] offendit, for I gif not ovir greit credite. Now seing to obey zow, my deir lufe, I spair nouthur honour, conscience, hasard, nor greitnes quhatsumevir; tak it, I pray zow, in gude part, not efter the interpretatioun of zour fals gude-brother, to quhome, I pray zow, gif na credite aganis the maist faithful luifer that ever ze had, or ever sall have.

Se not hir, quhais fenzeit teiris suld not be sa meckle praisit nor estemit, as the trew and faithful travellis quhilk I sustene for to merite his place. For obteneing of the quhilk aganis my natural, I betrayis thame that may impesche me. God forgive me, and God give zow, my only lufe, the hap and prosperitie quhilk zour humble and faithful lufe desyris unto zow, quha hopis to be schortly ane uther thing to zow for the reward of my irksome travellis.

It is lait; I desyre never to ceis fra wryting unto zow; zit now, after the kissing of zour handis, I will end my letter. Excuse my evill wryting, and reid it twyse over. Excuse that thing that is scriblit, for I had na paper zisterday quhen I wrait that of ye memoriall. Remember upon zour lufe, and wryte unto hir, and that verray oft. Lufe me as I sall do zow.

Remember zow of the purpois^[62] of the Lady Reres

Of the Inglismen

Of his mother.

Of the Erle of Argyle.

Of the Erle of Bothwell.

Of the ludgeing in Edinburgh.

[The memoranda in the middle of the letter constitute the "thing that is scriblit," for which pardon is asked in the last sentence. The concluding words, from "Remember" to "Edinburgh," are instructions for the bearer.]

Letter III. [\[63\]](#)

My Lord, gif the displesure of zour absence, of zour forzetfulnes, ye feir of danger sa promisit be everie ane to zour sa luifit persone, may gif me consolatioun, I leif it to zow to juge, seing the unhap that my cruell lot and continuall misadventure hes hitherto promysit me, following ye misfortunes and feiris as weill of lait, as of ane lang tyme by-past, the quhilk ye do knaw. Bot for all that, I will in na wise accuse zow, nouthur of zour lytill cair, and leist of all of zour pomeis brokin, or of ye cauldnes of zour wryting, sen I am ellis sa far maid zouris, yat yat quhilk pleisis zow is acceptabill to me; and my thochtis ar as willingly subdewit unto zouris, that I suppois yat all that cummis of zow proceidis not be ony of the causis forsaid, bot rather for sic {such} as be just and ressonabill, and sic as I desyre myself. Quhilk is the fynal order that ze promysit to tak for the suretie and honorabil service of ye only uphald of my lyfe. For quhilk alone I will preserve the same, and without the quhilk I desyre not bot suddane deith, and to testifie unto zow how lawly I submit me under zour commandementis, I have send zow, in signe of homage, be Paris, the ornament of the heid, quhilk is the chief gude of the uther memberis, inferring thairby that, be ye seising {placing} of zow in the possessioun of the spoile of that quhilk is principall, the remnant cannot be bot subject unto zow, and with consenting of the hart. In place thair of, sen I have ellis left it unto zow, I send unto zow ane sepulture of hard stane, collourit with blak, sawin with teiris and bones. The stane I compair to my hart, that as it is carvit in ane sure sepulture or harbor of zour commandementis, and above all, of zour name and memorie that ar thairin inclosit, as is my heart in this ring, never to cum furth, quhill deith grant unto yow to ane trophee of victorie of my banes, as the ring is fullit, in signe that yow haif maid ane full conqueis of me, of myne hart, and unto yat my banes be left unto yow in remembrance of your victorie and my acceptabill lufe and willing, for to be better bestowit than I merite. The ameling that is about is blak, quhilk signifyis the steidfastness of hir that sendis the same. The teiris are without number, sa ar the dreddowris to displeis yow, the teiris of your absence, the disdane that I cannot be in outward effect youris, as I am without fenzeitnes

of hart and spreit, and of gude ressoun, thocht my meritis wer mekle greiter then of the maist profite that ever was, and sic as I desyre to be, and sall tak pane in conditiounis to imitate, for to be bestowit worthylie under your regiment. My only wealth ressaif thairfoir in als gude part ye same, as I have ressavit your marriage with extreme joy, the quhilk sall not part furth of my bosum, quhill yat marriage of our bodyis be maid in publict, as signe of all that I outhir hope or desyris of blis in yis warld. Zit my hart feiring to displeis you as mekle in the reiding heirof, as I delite me in ye writing, I will mak end, efter that I have kissit zour handis with als greit affectioun as, I pray God (O ye only uphald of my lyfe) to gif yow lang and blissit lyfe, and to me zour gude favour, as the only gude yat I desyre, and to ye quhilk I pretend. I have schawin unto this beirer that quhilk I have leirnit, to quhome I remit me, knawand the credite that ze gaif him, as scho dois that will be for ever unto zow humbill and obedient lauchfull wyfe, that for ever dedicates unto zow hir hart, hir body, without ony change, as unto him that I have maid possessour of my hart, of quhilk ze may hald zow assurit, yat unto ye deith sall na wayis be changeit, for evill nor gude sall never mak me go from it.

The original French version of this letter is in the Record Office (State Papers, Mary Queen of Scots, vol. ii. p. 66). It is printed by Mr. Henderson, and by Hosack. No Latin or French version of it was printed in the *Detectio*.

Letter IV.

I have walkit laiter thair up then I wald have done, gif it had not bene to draw sumthing out of him, quhilk this beirer will schaw zow; quhilk is the fairest commodity {i.e. the most suitable opportunity} that can be offerit to excuse zour affairis. I have promysit to bring him the morne. Put ordour to it, gif ze find it gude.

Now, Schir, I have brokin my promise; becaus ze commandit me nouthir to wryte nor send unto zow Zit I have not done this to offend zow, and gif ze knew the feir yat I have presently, ze wald not have sa mony contrary suspiciounis in your thocht; quhilk notwithstanding I treit and chereis, as proceeding from the thing in the world that I maist desyre, and seikis fastest to haif, quhilk is zour gude grace; of the quhilk my behaviour sall assure me. As to me: I sall never despair of it, and prayis zow, according to zour promise, to discharge zour hart unto me, Utherwayis^[65] I will think that my malhure, and the gude handling of hir that has not ye third part of the faithfull nor willing obedience unto zow that I beir, hes wyn, aganis my will, yat advantage over me, quhilk the second lufe of Jason wan; not that I will compair zow unto ane sa unhappy as he was, nor zit myself to ane sa unpietifull ane woman as scho. Howbeit, ze caus me to be sumthing lyk unto hir in onything that tuichis zow, or yat may preserve and keip zow unto hir, to quhome only ze appertene; gif it be sa that I may appropriate that quhilk is wyn thoch faithfull, zea only, lufiing of zow, as I do, and sall do all the dayis of my lyfe, for pane or evill that can cum thair of. In recompense of the quhilk, and of all the evillis quhilk ze have bene caus of to me, remember zow upon the place heir besyde.

I craif with that ze keip promise to me the morne; but that we may meit togidder, and that ye gif na faith to suspiciounis without the certanetie of thame. And I craif na uther thing at God, but that ze may knaw that thing that is in my hart quhilk is zouris; and that he may preserve zow from all evill, at the leist sa lang as I have lyfe, quhilk I repute not precious unto me, except in sa far as it and I baith ar aggreabill unto zow. I am going to bed, and will bid zow gude nicht. Advertise me tymely in the morning how ze

have fairin; for I will be in pane unto I get worde. Mak gude watch,^[66] gif the burd eschaip out of the caige, or without hir mate. As ye turtur I sall remane alone for to lament the absence, how schort yat sa ever it be. This letter will do with ane gude hart, that thing quhilk I cannot do myself, gif it be not that I have feir that ze ar in sleiping, I durst not wryte this befor Joseph, Bastiane, and Joachim, that did bot depart even quhen I began to wryte.

A French version of this letter is in the possession of the Marquis of Salisbury at Hatfield (*cf.* Calendar of Hatfield MSS., I. 376-7) and has been printed by Mr. Henderson. ("Casket Letters," pp. 159-162.) It is here given in full, and the variations in the published Latin and French versions, and in the English translation at Hatfield are indicated in the notes.

J'ay veillé plus tard la hault que je n'eusse fait si ce neust esté pour tirer ce que ce porteur vous dira que je treuve la plus belle commoditee pour excuser vostre affaire que se pourroit presenter. Je luy ay promise de le luy mener demain si vous le trouves bon mettes y ordre. Or monsieur j'ay ja rompu ma promesse. Car vous ne m'ayes comande de vous envoyer ni escrire si ne le fais pour vous offencer et si vous scavyes la craint que j'en ay vous nauries tant des subçons contrairs que toutesfois je cheris comme procedant de la chose du mond que je desire et cherche le plus c'est votre bonne grace de laquelle mes deportemens m'asseureront et je n'en disesperay jamais tant que selon vostre promesse vous m'en dischargeres vostre cœur aultrement^[65b] je penserais que mon malheur et le bien composer de ceux qui n'ont le troisieme partie de la fidelité ni voluntair obéissance que je vous porte auront gagné sur moy l'avantage de la seconde amye de Jason. Non que je vous compare a un si malheureus ni moy a une si impitoiable. Combien que vous men fassies un peu ressentir en chose qui vous touschat ou pour vous preserver et garder a celle a qui seulle vous apartienes si lon se peult approprier ce que lon acquiert par bien et loyalment voire uniquement aymer comme je fais et fairay toute ma vie pour pein ou mal que m'en puisse avenir. En recompence de quoy et des tous les maulx dont vous m'aves este cause, souvenes vous du lieu icy pres. Je ne demande que vous me tennes promesse de main mais que nous truvions et que nadjousties foy au subçons quaures sans nous en certifier, et

je ne demande a Dieu si non que coignoissies tout ce que je ay au cœur qui est vostre et quil vous preserve de tout mal au moyns durant ma vie qui ne me sera chère qu'autant qu'elle et moy vous serons agreables. Je m'en vois coucher et vous donner le bon soir mandes moy demain comme vous seres porté a bon heur. Car j'enseray en pein et faites bon guet^[66b] si l'oseau sortira de sa cage ou sens son per comme la tourtre demeurera seule a se lamenter de l'absence pour court quelle soit-ce que je ne puis faire ma lettre de bon cœur {fera} si ce nestoit qui je {qy} peur que soyes endormy. Car je nay ose escrire devant Joseph et Bastienne et Joachim qui ne sont que partis quand J'ay commence.

Letter V.

My hart, alace! must the foly of ane woman quhais unthankfulness toward me ze do sufficiently know, be occasioun of displesure unto zow, considering yat I culd not have remeidit thairunto without knowing it? And sen that I persavit it, I culd not tell it zow, for that^[67] I knew not how to uther thing will I tak upon me to do ony thing without knowledge of zour will, quhilk I beseik zow let me understand; for I will follow it all my lyfe mair willingly than zow sall declair it to me; and gif ze do not send me word this nicht quhat ze will that I sall do, I will red myself of it, and hesard^[68] to caus it to be interprysit and takin in hand, quhilk micht be hurtfull to that quhairunto baith we do tend. And quhen scho sall be maryit, I beseik zow give me ane, or ellis I will tak sic as sall content zow for their conditiounis; bot as for thair toungis or faithfulness towart zow I will not answer. I beseik zow yat ane opinioun of uther persoun be not hurtfull in zour mynde to my constancie, Mistrust me; bot quhen I will put zow out of dout and cleir myselfe, refuse it not, my deir lufe, and suffer me to make zow sum prufe be my obedince, my faithfulness, constancie, and voluntarie subjection, quhilk I tak for the plesandest gude that I micht ressaif, gif ze will accept it; and mak na ceremonie at it, for ze culd do me na greiter outrage nor give mair mortall grief.

[There is a French version of this letter in the Record Office (*State Papers*, Mary Queen of Scots, vol. ii. p. 63). It has been printed by Malcolm Laing (vol. iv. p. 202), Hosack (vol. i. p. 230), and Mr. Henderson (p. 165). The following variations are taken from the Record Office version. The other published French version follows the Scots, as also does the Latin.]

Letter VI.

Alace! my Lord, quhy is zour traist put in ane persoun sa unworthie, to mistraist that quhilk is haillely zouris? I am wod {wild}. Ze had promysit me that ze wald send me word every day quhat I suld do. Ye haif done nathing yairof. I advertisit yow weill to tak heid of zour fals brother-in-law {Huntly}. He come to me, and without schawing me ony thing from zow, tald me that ze had willit him to wryte to zow that that I suld say, and quhair and quhen ze suld cum to me, and that that ze suld do tuiching him; and thairupon hes preichit^[69] unto me yat it was ane fulische interpryse, and that with myne honour I culd never marry zow, seing that being maryit ze did cary me away, and yat his folkis wad not suffer it, and that the Lordis wald unsay yameselvis, and wald deny that thay had said. To be schort, he is all contrarie. I tald him that seeing I was cum sa far, gif ze did not withdraw zour self of zour self, that na perswasioun, nor deith itself suld mak me fail of my promeis. As tuiching the place ze are too negligent, pardoun me, to remit zour self thair of unto me. Cheis it zour self, and send me word of it. And in the meane tyme I am seik; I will differ {defer} as tuiching the mater it is to lait. It was not lang of me yat ze have not thocht thairupon in time. And gif ze had not mair changeit zour mynd sen myne absence, then I have; ye suld not be now to ask sic resolving. Weill, thair wantis nathing of my part; and seing that zour negligence dois put us baith in the danger of ane fals brother, gif it succeedet not weill I will never ryse agane. I send this beirer unto zow, for I dar not traist zour brother with thir letteris, nor with the diligence. He sall tell zow in quhat stait I am, and judge ze quhat amendment yir new ceremonies^[70] have brocht unto me. I wald I wer deid, for I se all gais ill. Ze promysit uther maner of mater of zour foirseing, bot absence hes power over zow, quha haif twa stringis to zour bow. Dispatch the answer that I faill not, and put na traist in your brother for this interpryse, for he hes tald it, and is also all aganis it. God give zow gude nicht.

Letter VII.

Of the place and ye tyme,^[71] remit my self to zour brother and to zow. I will follow him, and will faill in nathing of my part. He finds mony difficulteis; I think he dois advertise zow thairof, and quhat he desyris for the handling of himself. As for the handling of myself, I hard it anis weill devysit.^[72]

Methinkis that zour services, and the lang amitie, having ye gude will of ye Lordis, do weill deserve ane pardoun, gif above the dewtie of ane subject yow advance yourself, not to constrane me,^[73] bot to assure yourself of sic place neir unto me, that uther admonitiounis or forane {foreign} perswasiounis may not let {hinder} me from consenting to that, that ye hope your service sall mak yow ane day to attene; and to be schort, to mak yourself sure of the Lordis and fre to mary; and that ye are constranit for your suretie, and to be abill to serve me faithfully, to use ane humbil requeist, joynit to ane importune actioun.

And to be schort, excuse yourself, and perswade thame the maist ye can, yat ye ar constranit to mak persute aganis zour enemies. Ze sall say aneuch, gif the mater or ground do lyke yow, and mony fair wordis to Lethingtoun. Gif ye lyke not the deid, send me word, and leif not the blame of all unto me.

[Of this letter there is no version in the Record Office, the only other version being the published French translation].

Letter VIII.

My Lord, sen my letter written, zour brother in law yat was, come to me verray sad, and hes askit me my counsel, quhat he suld do efter to morne, becaus thair be mony folkis heir, and among utheris the Erle of Sudderland, quha wald rather die, considdering the gude thay have sa laitlie ressavit of me, than suffer me to be caryit away, thay conducting me; and that he feirit thair suld sum troubil happin of it: of the uther syde, that it suld be said that he wer unthankfull to have betrayit me. I tald him, that he suld have resolvit with zow upon all that, and that he suld avoyde, gif he culd, thay that were maist mistraistit.

He has resolvit to wryte thairof to zow be my opinioun; for he has abaschit me to se him sa unresolvit at the neid. I assure myself he will play the part of an honest man. Bot I have thocht gude to advertise zow of the feir he hes yat he suld be charget and accusit of tressoun to ye end yat, without mistraisting him, ze may be the mair circumspect, and that ze may have ye mair power. For we had zisterday mair then iii. c. hors of his and of Levingstoun's. For the honour of God, be accompanyit rather with mair then les; for that is the principal of my cair.

I go to wryte my dispathe, and pray God to send us ane happy enterview schortly. I wryte in haist, to the end ye may be advysit in tyme.

[There are no important variants in the only other version of this letter—the published French translation.]

The following are the French versions of the first sentence of each letter, printed in the Scots translation, published in London in 1572 (p. 163).

Letter I. Il semble qu' avecques vostre absence soit joynt le oubly, ^[74]ceu qu'au partir vous me promistes de vos nouvelles. Et toutes foyz je n'en puis apprendre, &c.

Letter II. Estant party du lieu ou je avois laissé mon cœur il se peult aysément juger quelle estoit ma contenance, veu ce qui peult un corps sans cœur, qui à esté cause que jusques à la Disnée je n'ay pas tenu grand propos, aussi personne ne s'est voulu avancer jugeant bien qu'il n'y faisoit bon, &c.

Letter III. Monsieur, si l'ennury de vostre absence, celui de vostre oubly, la crainte du danger, tant provue^[75] d'un chacun à vostre tant aymée personne, &c.

Letter IV. J'ay veillé plus tard la haut que je n'eusse fait, si ce n'eust esté pour tirer ce que ce porteur vous dira, que je trouve la plus belle commodité pour excuser vostre affaire qui ce purroit présenter, &c.

Letter V. Mon cœur, hélas! fault il que la follie d'une femme, dont vous cognoissez assez l'ingratitude vers moy, soit cause de vous donner desplaisir, &c.

Letter VI. Monsieur, hélas! pourquoy est vostre fiance mise en personne si indigne, pour soupçonner ce qui est entierement vostre. J'enrage, vous m'aviez promis, &c.

Letter VII. Du lieu et l'heure^[76] je m'en rapporte à vostre frere et à vous. Je le suivray, et ne fauldray en rien de ma part. Il trouve beaucoup de difficultez, &c.

Letter VIII. Monsieur, de puis ma lettre escrite vostre beau frere qui fust, est venu à moy fort triste, et m'a demandé mon conseil de ce qu'il feroit apres demain, &c.

The slight variations in the other French versions are noted above. There are no Record Office or Hatfield versions of I., II., VII., and VIII., and there is no "Published French" version of III.

The Love Sonnets.

Henderson's Casket Letters.

The "divers fond ballads" referred to in the letter of Elizabeth's Commissioners of October 11th, 1568, consist of the following "sonnets" in French.

The sonnets are printed from the English edition of Buchanan's *Detection* (1571). The lines in italics are translated from the Scots by Professor York Powell.

1. O Dieux ayez de moy compassion,
Et m'enseignez quelle preuue certain{e}
Ie puis donner qui ne luy semble vain{e}
De mon amour & ferme affection.
Las n'est il pas ia en possession
Du corps, du coeur qui ne refuse paine
Ny deshonneur, en^[77] la vie incertaine,
Offense de parentz, ne pire affliction?^[78]
Pour luy {tous mes} amis estime moins que rien,
Et d{e mes} ennemis ie veux esperer bien.
I'ay hazardé {pour luy} & nom & conscience:
Ie veux pour luy au monde renoncer:
Ie veux mourir pour le fair'^[79] auancer.
Que reste il plus pour prouuer ma constance?
2. Entre ses mains & en son plein pouuoir,
Je metz mon filz, mon honneur, & ma vie,
Mon pais, mes^[80] subjectz, mon ame assubiectie
Est tout à luy, & n'ay autre vouldoir
Pour mon obiect, que sans le deceuoir
Suiure ie veux, malgré toute l'enuie
Qu'issir en peult, car ie n'ay autre envie
Que de ma foy, luy faire apperceuoir

Que pour tempeste ou bonnace qui face
Jamais ne veux changer demeure ou place.
Brief ie feray de ma foy telle preuue,
Qu'il cognoistra sans faulte^[81] ma constance,
Non par mes pleurs ou fainte obeyssance,
Come autres font,^[82] mais par diuers espreuue.

3. Elle pour son honneur vous doibt obeyssance
Moy vous obeyssant i'en puis receuoir blasme
N'estât, à mon regret, comme elle vostre femme.
Et si n'aura pourtant en ce point preeminence
Pour son propre profit^[83] elle vse de coustance,
Car ce n'est peu d'honneur d'estre de voz biens dame
Et moy pour vous aymer i'en puis receuoir blasme
Et ne luy veux ceder en toute l'obseruance:
Elle de vostre mal n'à l'apprehension
Moy ie n'ay nul repos tant ie crains l'apparence:
Par l'aduis des parentz, elle eut vostre accointance
Moy malgré tous les miens vous porte affection
{*Et neanmoins, mon cœur, vous doutez ma constance*}^[84]
Et de sa loyauté prenez ferme assurance.

4. Par vous mon coeur & par vostre alliance
Elle à remis sa maison en honneur
Elle à jouy par vous de^[85] la grandeur
Dont tous les siens n'ayent nul assurance
De vous, mon bien, elle à eu l'ac coistance,^[86]
Et à gagné pour vn temps vostre coeur,
Par vous elle à eu plaisir en bon heur,
Et par vous a^[87] honneur & reuerence,
Et n'a perdu sinon la jouyssance
D'un fascheux sot qu'elle aymoît cherement,
Ie ne la playns d'aymer donc ardamment,
Celuy qui n'à en sens, ny en vaillance,
En beauté, en bonté, ny en constance
Point de seõd. Ie vis en ceste foy.^[88]

5. Quant vous l'amiez, elle vsoit de froideur.

Sy vous souffriez pour s'amour passion

Qui vient d'aymer de trop d'affection,

Son doy monstroït, a tristesse de coeur

N'ayant plaisir de vostre grand ardeur.

En ses habitz, monstroït sans fiction

Qu'elle n'auoit paour qu'imperfection

Peust l'effacer hors de ce loyal coeur.

De vostre mort ie ne vis la peur^[89]

Que meritoit tel mary & seigneur.

Somme, de vous elle à eu tout son bien

Et na prisé ne iamais estimé

Vn si grand heur sinon puis qu'il n'est sien

Et maintenant dit l'auoir tant aymé.

6. Et maintenant elle commence à voir

Qu'elle estoit bien de mauuais iugement

De n'estimer l'amour d'un tel amant

Et voudrait bien mon amy deceuoir,

Par les escriptz tout fardez de scauoir

Qui pourtant n'est en son esprit croissant

Ains emprunté de quelque autheur luissant

A faint tresbien vn ennoy^[90] sans l'auoir

Et toutesfois ses parolles fardeez,

Ses pleurs, ses plaincts remplis de fictions.

Et ses hautz cris & lamentations

Ont tant gaigné que par vous sont gardéez

Ses lettres {escriptes} ausquelles vous donnez foy

Et si l'aymez & croyez plus que moy.

7. Vous la croyez las trop ie l'apperçoy

Et vous doutez de ma ferme constance,

O mon seul bien & mon seul esperance,

Et ne vous puis ie assurer de ma foy

Vous m'estimez plus legier que le noy,^[91]

Et si n'aez en moy nul' assurance,

Et soupçonnez mon coeur sans apparence,

Vous deffiant à trop grand tort de moy.
Vous ignorez l'amour que ie vous porte
Vous soupçonnez qu'autre amour me trâsporte,
 Vous estimez mes parolles du vent,
Vous depeignez de cire mon las coeur
 Vous me pensez femme sans iugement,
Et tout sela augmente mon ardeur.

8. Mon amour croist & plus en plus croistra
 Tant que je viure & ^[92] tiendray à grandeur,
 Tant seulement d'auoir part en ce coeur
Vers qui en fin mon amour paroistra
Sy tres à clair que iamais n'en doutra,
 {Pur luy je lutterai contre malheur} ^[93]
 Pour luy ie veux recercher la grandeur,
Et feray tant qu'en vray cognoistera,
Que ie n'ay bien, heur, ne contentement,
Qu'a l'obeyr & servir loyaument.
 Pour luy iattendz toute bonne fortune,
Pour luy ie veux garder sainté & vie
Pour luy vertu de suyure i'ay enuie ^[94]
 Et sans changer me trouvera tout vne.

9. Pour luy aussi ie jette mainte larme.
 Premier quand il se fist de ce corps {posses}seur,
 Duquel alors il n'auoit pas le coeur.
Puis me donna vn autre dur alarme
Quand il versa de son sang mainte dragme
 Dont de grief il me vint telle ^[95] douleur,
 M'en pensay ^[96] oster la vie en frayeur
De perdre la{s} le seul rempar qui m'arme.
Pour luy depuis iay mesprise l'honneur
Ce qui nous peult seul pouruoir de bonheur.
 Pour luy hazarde grandeur & conscience.
Pour luy {tous mes} i'ay quité parentz, & amis,
Et tous autres respectz sont apart mis.
 Brief de vous seul ie cherche l'alliance.

10. De vous, ie dis, seul soustein de ma vie
Tant seulement ie cherche m'asseurer,
Et si ose de moy tant presumer
De vous gagner maugré toute l'enuie.
Car c'est le seul desir de vostre {chere} amie,
De vous seruir & loyaument aymer,
Et tous malheurs moins que riens estimer,
{Et} vostre volonté de mon mie{ux} suivie, [\[97\]](#)
Vous cognoistrez avecque obeyssance
De mon {loyal} deuoir n'omettant la sciance
A quoy ie estudiray pour {tousiours} vous complaire
Sans aymer rien que vous, soubz {la} suiection.
De qui ie veux sans nulle fiction
Vivre & mourir & à ce j'obtempere.

11. Mon coeur, mon sang, mon ame, & mon soucy,
{Las,} vous m'avez promis qu'aurons ce plaisir
De deuiser auecques vous à loysir,
Toute la nuict, ou ie languis icy
Ayant le coeur d'extreme paour transy,
Pour voir absent le but de mon desir
Crainte d'oublier vn coup me vient {a} saisir:
Et l'autre fois ie crains que rendurcie
Soit contre moy vostre amiable coeur
Par quelque dit d'un meschant rapporteur.
Un autre fois ie crains quelque auenture
Qui par chemin detourne mon amant,
Par vn fascheux & nouveau accident.
Dieu detourne tout malheureux augure.

12. Ne vous voyant selon qu'avez promis
I'ay mis la main au papier pour escrire
D'vn different que ié voulu transcrire,
Ie ne scay pas quel sera vostre aduis
Mais ie scay bien qué mieux aymer scaura
Vous diriez bien que plus y gaignera.

The Contracts of Marriage.

Goodall, vol. ii. p. 54, from Cot. Lib. Calig., C. i.

At Seton, the 5th day of April, the year of God, 1567, the right excellent, right high and mighty Princess, Mary, by the grace of God, Queen of Scots, ... in the presence of the Eternal God, faithfully, and on the word of a Prince, by these presents, takes the said James, Earl Bothwell, as her lawful husband, and promises and obliges her Highness, that how soon the process of divorce, intended betwixt the said Earl Bothwell and Dame Jane Gordon, now his pretended spouse, be ended by the order of the laws, her Majesty shall, God willing, thereafter shortly marry and take the said Earl to her husband.... He presently takes her Majesty as his lawful spouse, in the presence of God, and promises and obliges him ... that in all diligence possible, he shall prosecute and set forward the said process of divorce already begun and intended betwix him and the said Dame Gordon, his pretended spouse....

MARIE, R.

JAMES, EARL BOTHWELL.

Here note, that this contract was made the v of April, within viii weeks after the murder of the King, which was slain the x of February before; also it was made vii days before Bothwell was acquitted, by corrupt judgment, of the said murder. Also it appears by the words of the contract itself, that it was made before sentence of divorce betwixt Bothwell and his former wife, and also in very truth was made before any suit of divorce intended or begun between him and his former wife, though some words in this contract seem to say otherwise, which is thus proved; for this contract is dated the v of April, and it plainly appears by the judicial acts, ... wherein is contained the whole process of the divorce between the said Earl and Dame Jane Gordon his wife, that the one of the same processes was intended and begun the xxvi day of April, and the other the xxvii.—Buchanan's "Detection."

Nous Marie, par la grace de Dieu, Royne d'Ecosse, douaryere de France, &c., promettous fidellement et de bonne foy, et sans contraynte, à Jaques Hepburn, Comte de Boduel, de n'avoir jamais autre espoux et mary que luy, et de le prendre pour tel toute et quant fois qu'il m'en requerira, quoy que parents, amys ou autres, y soient contrayres. Et puis que Dieu a pris mon feu mary Henry Stuart dit Darnley et que par ce moien je sois libre, n'estant sous obeissance de pere, ni de mere, des mayntenant je proteste que, lui estant en mesme liberté, je seray preste, et d'accomplir les ceremonies requises an mariage; que je lui promets devant Dieu, que j'en prantz a tesmoignasge, et la presente, signee de ma mayn: escrit ce—

MARIE, R.

[This contract merely promises to marry Bothwell, without constraint, and refers to the writer's freedom from the necessity of any one's permission, since Darnley's death. It contains no reference to the divorce.]

MORTON'S DECLARATION

The Discovery of the Letters—1. The Earl of Morton's Declaration.

Henderson's Casket Letters, pp. 113-116, from fol. 216, Add. MSS.
32,091, Brit. Mus.

The trew declaration and report of me, James, Earl of Morton, how a certain silver box overgilt containing diverse missive writings, sonnets, contracts, and obligations for marriage betwix the Queen mother to our sovereign lord, and James sometime Earl Bothwell, was found and used.

Upon Thursday the xix of June, 1567, I dined at Edinburgh, the Laird of Lethington, secretary, with me. At time of my dinner a certain man came to me, and in secret manner showed me that three servants of the Earl Bothwell, viz. Mr. Thomas Hepburn, parson of Auldhamessokkes, John Cockburn, brother to the laird of Skirling, and George Dalglish were come to the town, and passed into the castle. Upon which advertisement I on the sudden sent my cousin Mr. Archibald Douglas and Robert Douglas, his brother, and James Johnston of Westerrall, with others my servants, to the number of xvi or thereby, toward the castle to make search for the said persons, and, if possible were, to apprehend them. According to which my direction, my servants passed, and at the first missing the forenamed three persons for that they were departed forth of the castle before their coming, my men then parting into several companies upon knowledge that the others whom they sought were separated, Mr. Archibald Douglas sought for Mr. Thomas Hepburn and found him not, but got his horse, James Johnston sought for John Cockburn and apprehended him, Robert Douglas seeking for George Dalglish. After he had almost given over his search and inquisition a good fellow understanding his purpose came to him offering for a mean piece of money to reveal where George Dalglish was. The said Robert satisfying him that gave the intelligence for his pains, passed to the Potterrow beside Edinburgh, and there apprehended the said George, with divers evidences and letters in parchment, viz. Earl Bothwell's infeftments of Liddesdale, of the Lordship of Dunbar and of Orkney and Shetland, and

divers others, which all with the said George himself, the said Robert brought and presented to me. And the said George being examined of the cause of his direction to the castle of Edinburgh, and which letters and evidents he brought forth of the same, alleged he was sent only to visit {examine} the Lord Bothwell, his master's clothing, and he had not more letters nor evidents than these which were apprehended with him. But his report being found suspicious and his gesture and behaviour ministering cause of mistrust seeing the gravity of the action that was in hand, it was resolved by common assent of the noblemen convened, that the said George Dalgleish should be surely kept that night, and upon the morn should be had to the Tolbooth of Edinburgh and there be put in the iron and torments for furthering of the declaration of the truth, wherein being set, upon Friday the xx day of the said month of June before any rigorous demeaning of his person, fearing the pain, and moved of conscience, he called for my cousin Mr. Archibald Douglas, who coming, the said George desired that Robert Douglas should be sent with him, and he should show and bring to light that which he had. So being taken forth from the irons, he passed with the said Robert to the Potterrow, and there, under the sceit {seat} of a bed took forth the said silver box, which he had brought forth of the castle the day before, locked, and brought the same to me at viii hours at night, and because it was late I kept it all that night. Upon the morn, viz., Saturday, the xxi of June, in presence of the Earls of Atholl, Mar, Glencairn, myself, the Lords Home, Sempill, Sanquhar, the Master of Graham, and the Secretary, and Laird of Tullibardine, Comptroller, and the said Mr. Archibald Douglas, the said box was broken open because we wanted the key, and the letters within contained sighted {i.e. examined} and immediately thereafter delivered again into my hand and custody. Since which time, I have observed and kept the same box, and all letters, missives, contracts, sonnets, and divers writings contained therein fairly without alteration changing adding or diminishing of anything found or received in the said box. This I testify and declare to be undoubted truth.

This is the copy of that which was given to Mr. Secretary Cecil upon Thursday the 8th of December 1568.

This is the true copy of the declaration made and presented by the Earl of Morton to the Commissioners and Council of England sitting in Westminster for the time, upon Thursday being the 29 of December 1568.

Subscribed with his hand thus, MORTON.

BUCHANAN'S DESCRIPTION

2. Buchanan's Account.

Translated from the History, book xviii. c. 51.

It happened that, about the same time, Bothwell sent one of his confidential servants to the castle of Edinburgh, to bring to him the silver casket, covered with inscriptions, which had once belonged to the French king, Francis. In it were letters of the Queen, almost all written with her own hand, in which both the King's murder and the whole sequel were plainly discernible; and in almost every letter there was an injunction to burn it. But Bothwell, who knew the Queen's inconstancy, of which he had recently seen many instances, preserved the letters, so that, in any disagreement, he might use their testimony, and prove himself not the author of the crime, but only an accomplice. This casket Sir Robert Balfour gave to Bothwell's servant to take away; but first he told the leaders of the opposite party what had been sent, and the agent and the destination.... It was captured....

The Deposition of Thomas Nelson.

Goodall, vol. ii. p. 243, from Cott. Lib. Calig. i. 165.

... She {the Queen} caused take down the said new black bed {in Darnley's room}, saying it would be soiled with the bath, and in the place thereof set up an old purple bed, ... and the said keys that were delivered into the hands of Archibald Beton remained still in the hands of him, and others that awaited upon the Queen, and never were delivered again to the King's servants; for she set up a green bed for herself in the said low chamber, wherein she lay the said two nights, and promised also to have bidden {remained} there upon the Sunday at night. But after she had tarried long and entertained the King very familiarly, she took purpose (as it had been on the sudden), and departed as she spake to give the masque to Bastien who that night was married {to} her servant, namely the said Archibald Beton and one Paris, Frenchman, having the keys of her chamber, wherein her bed stood in, as also of the passage that passed toward the garden.... The Queen being departed toward Holyrood-house, the King within the space of one hour passed to bed, and in the chamber with him lay umquhill {i.e. the late} William Taylor. The deponent and Edward Symonds lay in the little gallery, that went direct to the south out of the King's chamber, ... and beside them lay William Taylor's boy, who never knew of anything till the house wherein they lay was falling about them....

CRAWFORD'S DEPOSITION

Thomas Crawford's Deposition.

[With regard to the deposition of Crawford, see [p. 144](#); the wording of the account of the conversation between Mary and Darnley should be carefully compared with that of the second Casket Letter.]

Hosack's Mary. Appendix L.

First I made my Lord {Lennox} my master's humble commendations unto her Majesty with the excuse that he came not to meet her, praying her grace not to think that it was either for proudness or yet for not knowing his duty towards her Highness, but only for want of health at the present, and also that he would not presume to come in her presence until he knew farther her mind because of the sharp words that she had spoken of him to Robert Cuninghame, his servant, in Stirling, whereby he thought he was in her Majesty's displeasure. Notwithstanding, he has sent his servants and friends to wait upon her Majesty. She answered that there was no receipt against fear. I answered that my Lord had no fear for anything he knew in himself, but only of the cold and unkind words she had spoken to his servant. She answered and said that he would not be afraid in case he were not culpable. I answered that I knew so far of his Lordship that he desired nothing more than that the secrets of every creature's heart were written in their face. She asked if I had any farther commission. I answered no. Then she commanded me to hold my peace.

The words that I remember were betwixt the King and the Queen in Glasgow when she took him away to Edinburgh.

The King for that my Lord his father was then absent and sick, by reason whereof he could not speak with him himself, called me unto him, and these words that had then passed betwixt him and the Queen, he gave me in remembrance to report unto the said my Lord his father.

After their meeting and short speaking together she asked him of his letters, wherein he complained of the cruelty of some. He answered that he

complained not without cause, and as he believed, she would grant herself, when she was well advised. She asked him of his sickness, he answered that she was the cause thereof, and moreover he said, ye asked me what I meant by the cruelty specified in my letters, that proceedeth of you only, that will not accept my offers and repentance. I confess that I have failed in some things, and yet greater faults have been made to you sundry times, which ye have forgiven. I am but young, and ye will say ye have forgiven me divers times. May not a man of my age for lack of counsel, of which I am very destitute, fall twice or thrice, and yet repent and be chastised by experience. If I have made any fail that ye but think a fail, howsoever it be, I crave your pardon, and protest that I shall never fail again. I desire no other thing but that we may be together as husband and wife. And if ye will not consent hereto, I desire never to rise forth of this bed. Therefore I pray you give me an answer hereunto. God knoweth how I am punished for making my god of you, and for having no other thought but on you. And if any time I offend you, ye are the cause, for that when any offendeth me, if for my refuge I might open my mind to you, I would speak to no other, but when any thing is spoken to me, and ye and I not being as husband and wife ought to be, necessity compelleth me to keep it in my breast, and bringeth me in such melancholy as ye see me in. She answered that it seemed him she was sorry for his sickness, and she would find remedy therefor, so soon as she might.

She asked him why he would have passed away in the English ship. He answered that he had spoken with the Englishman, but not of mind to go away with him. And if he had, it had not been without cause, considering how he was used. For he had neither to sustain himself nor his servants, and needed not make further rehearsal thereof, seeing she knew it as well as he.

Then she asked him of the purpose of Highgate. He answered that it was told him. She required how and by whom it was told him. He answered that the Lord of Minto told him that a letter was presented to her in Craigmillar, made by her own device, and subscribed by certain others who desired her to subscribe the same, which she refused to do. And he said that he would never think that she who was his own proper flesh, would do him any hurt, and if any other would do it, they should buy it dear, unless they took him sleeping, albeit he suspected none, so he desired her effectuously to bear him company. For she ever found some ado to draw herself from him to her own lodging, and would never abide with him past two hours at once.

She was very pensive, whereat he found fault. He said to her that he was advertised she had brought a litter with her. She answered that because she understood he was not able to ride on horseback, she brought a litter that he might be carried more softly. He answered that it was not meet for a sick man to travel, that could not sit on horseback, and especially in so cold weather. She answered that she would take him to Craigmillar, where she might be with him, and not far from her son. He answered that upon condition he would go with her, which was that he and she might be together at bed and board as husband and wife, and that she should leave him no more. And if she would promise him that, upon her word, he would go with her when she was pleased, without respect of any danger either of sickness wherein he was, or otherwise. But if she would not condescend thereto, he would not go with her in any wise.

She answered that her coming was only to that effect, and if she had not been minded thereto, she had not come so far to fetch him, and so she granted his desire, and promised him that it should be as he had spoken, and thereupon gave him her hand, and faith of her body, that she would love him, and use him as her husband, notwithstanding before they could come together, he must be purged and cleansed of his sickness, which she trusted would be shortly, for she minded to give him the bath at Craigmillar.

Then he said he would do whatsoever she would have him do, and would love all that she loved. She required of him in especial, whom he loved of the nobility, and whom he hated. He answered that he hated no man, and loved all alike. She asked him how he liked the Lady Reres, and if he were angry with her. He answered that he had little mind of such as she was, and wished of God she might serve her to her honour. Then she desired him to keep to himself the promise betwixt him and her, and to open it to nobody. For peradventure the Lords would not think well of their sudden agreement, considering he and they were at some words before. He answered that he knew no cause why they should mislike of it, and desired her that she would not move any of them against him even as he would stir none against her, and that they would work both in one mind, otherwise it might turn to great inconvenience to them both. She answered that she never sought any way by him, but he was in fault himself. He answered again that his faults were published, and that there were that made greater faults than ever he made that believed were unknown, and yet they would speak of great and small.

Farther, the King asked me at that present time what I thought of his voyage. I answered that I liked it not, because she took him to Craigmillar. For if she had desired him with herself, or to have had his company, she would have taken him to his own house in Edinburgh, where she might more easily visit him than to travel two miles out of town to a gentleman's house. Therefore my opinion was that she took him away more like a prisoner than her husband.

He answered that he thought little else himself, and feared himself indeed save the confidence he had in her promise only; notwithstanding he would go with her, and put himself in her hands, though she should cut his throat, and besought God to be judge unto them both.

Endorsed—Thomas Crawford's Deposit.

MURRAY'S JOURNAL

Murray's Journal.

*From a copy marked by Cecil, Cot. Lib. Calig., B. ix. fol. 247, quoted
by Goodall, vol. ii. p. 247.*

January 21, 1566.—The Queen took her journey toward Glasgow, and was accompanied with the Earls of Huntly and Bothwell to the Kalendar, my Lord Livingstone's place.

23.—The Queen came to Glasgow, and on the road met her, Thomas Crawford, from the Earl of Lennox, and Sir James Hamilton, with the rest mentioned in her letter. Earl Huntly and Bothwell returned that same night to Edinburgh, and Bothwell lay in the town.

24.—The Queen remained at Glasgow, like as she did the 25th and the 26th, and had the conference with the King whereof she writes; and in this time wrote her bill and other letters to Bothwell. And Bothwell this 24th day was found very timeous weseing {inspecting} the King's lodging that was in preparing for him, and the same night took journey towards Liddesdale.

27.—The Queen (conform to her commission as she writes) brought the King from Glasgow to the Kalendar towards Edinburgh.

28.—The Queen brought the King to Linlithgow, and there remained all morn, while she got word of my Lord Bothwell his returning towards Edinburgh, by Hob Ormiston, one of the murderers. The same day the Earl Bothwell came back from Liddesdale towards Edinburgh.

29.—She remained all day in Linlithgow with the King, and wrote from thence to Bothwell.

30.—The Queen brought the King to Edinburgh, and put him in his lodging, where he ended; and Bothwell keeping tryst met her upon the way.

February 5.—She lodged all night under the King, in the chamber wherein the powder was laid thereafter, and whereof Paris, her chamber child, received the key.

7.—She lodged and lay all night again in the foresaid chamber, and from thence wrote that same night the letter concerning the purpose of the Abbot of Holyrood-house (*cf.* [p. 140](#)).

8.—She confronted the King and my Lord of Holyrood-house, conform to her letter written the night before.

9.—She and Bothwell supped at the banquet with the Bishop of the Isles, and after passed up accompanied with Argyll, Huntly, and Bothwell, to the King's chamber, and there they remained cherishing him, till Bothwell and his complices put all things to order, and Paris, her chamber child, received in her chamber the powder, and came up again and gave the sign, and they departed to Bastian's banquet and masque, about eleven hours, and thereafter they both returned to the Abbey, and talked till twelve hours and after.

10.—Betwix two and three of the clock, the King was blown in the air by the powder.

DEPOSITIONS OF PARIS

The Depositions of Paris.

The depositions of Paris were not produced at Westminster. They were taken, in the early autumn of 1569, in connection with the charges against Lethington (who had by this time, with Kirkcaldy of Grange, joined the Queen's party). "Paris" was the nickname of Nicholas Hubert, a French attendant of Bothwell, who, shortly before the murder, attached himself to the Queen's service. He was known to be concerned in the murder, but succeeded in escaping from the country. He took refuge in Denmark, and was delivered up on Murray's request. Queen Elizabeth wrote to the Regent asking him to delay the execution of Paris, and Murray replied: "The said Paris arrived at Leith about the middle of June last {1569}, I at that time being in the north parts of this realm far distant, whereupon it followed that, at my returning, after diligent and circumspect examination of him, and long time spent in that behalf, upon the xvi day of August by-past, he suffered death by order of law, so that before the receipt of your Highness letter by the space of 7 or 8 days he was execute." {Laing, vol. i. p. 295, from the Paper Office.} The letter is undated. But Professor Schiern, of Copenhagen, sent Mr. Hosack a copy of a document from the Danish archives, containing a receipt for the delivery of "two men, William Murray, and Paris, a Frenchman," accused of Darnley's murder. The receipt is dated 30th October 1568, and is given by Captain Clark, on behalf of the Scottish Government. (Hosack, vol. i. pp. 250-251.) There is a copy of the depositions in the Cotton Library, bearing the following note: "This is the true copy of the declaration and deposition of the said Nicholas Hubert or Paris, whereof the principal {original} is marked every leaf with his own hand.... Ita est Alexander Hay, scriba secreti consilii S.D.N. Regis, ac Notarius Publicus." But the originals, sent to London in October 1569, and preserved in the Record Office, bear that they were taken "in presence of Mr. George Buchanan, Master

of St. Leonard's College in St. Andrews; Mr. John Wood, Senator of the College of Justice; and Robert Ramsay, writer of this declaration, servant to my lord regent's grace." {Hosack, vol. i. p. 256.} The documents were first published in Anderson's "Collection" (1725), not in Buchanan's "Detection," along with the depositions of Hay, Hepburn, and Dalglish.

The first deposition of Paris is a Confession, in French, made at St. Andrews on 9th August 1569, "without any constraint or interrogations." It states that, on the Wednesday or Thursday before the murder, Bothwell told Paris of the plot, and requested his aid. "What do you think?" said he.... "My Lord," said I, "I have served you these five or six years in all your great troubles ... now, my Lord, by the grace of God, you are free of all these difficulties ... if you undertake this great matter you will be in worse case than before." Bothwell then assured him that Lethington was the moving spirit, and that Argyll, Huntly, Morton, Ruthven, and Lindsay were in league with him. Paris then asked, "My Lord, I pray you tell me of one whom you have not named; I well know that he is loved in this country of the common people." ... "Who is that?" said he. "It is, my Lord," said I, "my Lord the Earl of Murray; I pray tell me what part he will take." To which he replied, "He will not meddle with it." "My Lord," said I, "he is wise." Then the Lord Bothwell turned his head to me ... and said, "My Lord of Murray, my Lord of Murray, he will neither help nor hinder; but it is all one." ... On the Saturday before the murder, Margaret Carwood, one of the Queen's attendants, told "Paris to go to Kirk-of-Field for the coverlet of the mattress in the Queen's room," which he did.... When he heard of Murray's leaving Edinburgh on Sunday morning to see his mother, he remarked that he did it to be out of the way when the wicked deed should take place, and so to dissociate himself from it. On Sunday evening Mary supped with Argyll, and seeing Paris, "as she washed her hands after supper, she asked me if I had removed the coverlet of the bed in her room in the King's lodging." These are the main points of

interest in the first document signed by Paris. {Laing, vol. ii. p. 296.}

The second deposition consists of answers to interrogations, and is dated at St. Andrews on August 10th, 1569. It makes a number of allegations against the Queen, with which the reader is already familiar. As it is a long document, we can quote only the most important sentences. "Interrogated when first he entered into credit with the Queen, he replied that it was when the Queen was at Callander on her way to Glasgow, when she gave him a purse with three or four hundred crowns to take to the Earl of Bothwell, who, after having received the said purse on the road between Callander and Glasgow, told him to go with the Queen and remain with her, and to attend well to what she did, saying that the Queen would give him letters to carry to him. When the Queen reached Glasgow, she said to him, 'I will send you to Edinburgh,' ... and after he had remained two days with the said lady, she wrote the letters and gave them him, saying, 'You will tell the Earl of Bothwell, by word of mouth, to take to the Laird of Lethington the letters addressed to him.' Bothwell and Lethington were to consult as to whether Darnley should go to Craigmillar or to Kirk-of-Field, and Paris was to report their decision to Mary. Further, he was to 'say to Bothwell, that the King wished to kiss her, but that she would not, for fear of his malady.' Paris carried out his commission, and returned with the message that Kirk-of-Field was considered most suitable. On the way from Glasgow to Edinburgh the Queen received a letter from Bothwell and sent one to him, and also gave Paris a bracelet to take to him. At Kirk-of-Field, where the Queen's room was immediately underneath that of the King, Bothwell told him that he must not place the Queen's bed in the corner of the room under the corner containing the King's bed, because he wished to place the powder there. This order was reiterated by the Queen, when she observed that it was being disregarded.... Paris said to the Queen, 'Madam, the Earl of Bothwell has commanded me to take the keys of your chamber, because he wishes to do something, that is, to place there the

powder for the explosion to blow the King in the air.' That night she wrote letters to Bothwell...." The only other circumstance of importance affecting the Queen is a statement that Paris carried correspondence relating to Mary's seizure by Bothwell.

ORMISTON'S CONFESSION

1573.—December 13. Confession of the Laird of Ormiston.

"The Laird of Black Ormiston" was put to death on 13th December 1573, under the government of the Regent Morton, for his share in the murder of Darnley. His confession was made to "John Brand, minister at Holyrood-house," on the day of his execution.

Laing's Scotland, vol. ii. p. 319, from *State Trials*, vol. i. p. 944.

As I shall answer unto God, with whom I hope this night to sup, I shall declare unto you the whole, from the beginning unto the end, of my part. First, I confess that the Earl Bothwell showed that same wicked deed unto me in his own chamber in the Abbey on Friday before the deed was done, and required me to take part with him therein.... The said earl said unto me, "Tush, Ormiston, ye need not take fear for this, for the whole lords have concluded this same long since in Craigmillar, all that were there with the Queen, and none dare find fault with it when it shall be done." ... Who {Bothwell} let me see a contract subscribed by four or five handwrites, which he affirmed to me was the subscription of the Earl of Huntly, Argyll, the Secretary Maitland, and Sir James Balfour, and alleged that many more promised, who would assist him if he were put at: and thereafter read the said contract, which, as I remember, contained these words in effect: "That for as much it was thought expedient and most profitable for the common wealth, by the whole nobility and lords undersubscribed, that such a young fool and proud tyrant should not reign nor bear rule over them; and that for divers causes therefore, that they all had concluded that he should be put off by one way or other, and whosoever should take the deed in hand they should defend and fortify it as themselves, for it should be every one of their own reckoned and held done by themselves." Which writing, as the said earl shewed unto me, was devised by Sir James Balfour, subscribed by them all a quarter of a year before the deed was done.

MORTON'S CONFESSION

1581.—June 2. The Confession of the Earl of Morton.

[The Earl of Morton having made during his tenure of the government many enemies, was driven from power and accused of complicity in the murder of Darnley. The indictment ("Arnot's Criminal Trials," p. 388, quoted by Laing, vol. ii, p. 350) mentions as his accomplices "James, some time Earl Bothwell; James Ormiston, some time of that ilk; Robert *alias* Hob Ormiston, his father's brother; John Hay, some time of Talla, younger; John Hepburn, called John of Bolton; and divers others," and says that the murderers "two hours after midnight ... came to the lodging ... and there ... most vilely, unmercifully, and treasonably slew and murdered him ... burnt his whole lodging foresaid, and raised the same in the air by force of gunpowder, which a little before was placed ... by him and his foresaids under the ground, and angular stones, and within the vaults, in low and secret parts thereof." The Earl was found guilty, on the 1st of June, of "art, part, foreknowledge, and concealing of the treasonable and unnatural murder foresaid," and was executed next day. A few hours before his death he made a confession to three of the ministers of Edinburgh, part of which is here quoted.]

Laing, vol. ii. p. 354.

Being required what was his part or knowledge in the King's murther, he answered with this attestation. As I shall answer to my Lord God, I shall declare truly all my knowledge in that matter, the sum whereof is this: After my returning out of England, where I was banished for Davie's slaughter, I came out of Wedderburn to Whittinghame {Castle}, where the Earl Bothwell and I met together in the yard of Whittinghame, where, after long communing, the Earl Bothwell proposed to me the King's murther, requiring what would be my part therein, seeing it was the Queen's mind

that the King should be taken away, because, as he said, she blamed the King more of Davie's slaughter than me. My answer to the Earl Bothwell was this, that I would not in any way meddle with that matter.... The Earl Bothwell ... thereafter earnestly proposed the same matter again to me, persuading me thereto, because so was the Queen's mind, and she would have it to be done. Unto this my answer was, I desired the Earl Bothwell to bring me the Queen's handwrit of this matter for a warrant; other ways I would not meddle thereof, which warrant he never purchased {brought}.... Then it was said to him, "Apparently, my lord, ye cannot complain justly of the sentence that is given against you, seeing with your own mouth ye confess the foreknowledge and concealing of the King's murther." ... He answered, "That I know to be true indeed, but yet they should have considered the danger that the revealing of it would have brought to me at that time; for I durst not reveal it for fear of my life. For at that time to whom should I have revealed it? To the Queen? She was the doer thereof. I was minded to have told it to the King's self, but I durst not for my life, for I knew him to be a bairn of such nature, that there was nothing told him but he would reveal it to her again." ... Then he said, "After the Earl Bothwell was cleansed by an assize, sundry of the nobility and I subscribed also a bond with the Earl Bothwell, that if any should lay the King's murder to his charge, we should assist him in the contrary. And thereafter I subscribed to the Queen's marriage with the Earl Bothwell, as sundry others of the nobility did, being charged thereto by the Queen's writ and command." Then being inquired in name of the living God, that seeing this murther was one of the most filthy acts that ever was done in Scotland, and the secrets thereof have not yet been declared, who were the chief doers, or whether he was worried, or blown in the air, and therefore pressed to declare if he knew any further secret thereunto; he answered, "As I shall answer to God, I know no more secret in that matter than I have already told."

ARCHIBALD DOUGLAS'S LETTER

Letter from Mr. Archibald Douglas to the Queen of Scots.

Robertson's History of Scotland, App. XIV., from Harl. Lib. xxxvii. bk. ix. fol. 126.

... It may please your Majesty to remember in the year of God 1566, the said Earl of Morton, with divers other nobility and gentry, were declared rebels to your Majesty.... True it is that I was one of that number, that heavily offended against your Majesty, and passed into France the time of our banishment, at the desire of the rest, to humbly pray your brother the most Christian King, to intercede that our offences might be pardoned.—Your Majesty's mind so inclined to mercy, that, within short space thereafter, I was permitted to repair into Scotland, to deal with Earls Murray, Atholl, Bothwell, Argyll, and Secretary Lethington, in the name and behalf of the said Earl Morton, Lords Ruthven, Lindsay, and remanent accomplices.... At my coming to them ... they declared that the marriage betwix you and your husband had been the occasion already of great evil in that realm ... they had thought it convenient to join themselves in league and band with some other noblemen resolved to obey your Majesty as their natural sovereign, and have nothing to do with your husband's command whatsoever; if the said earl would for himself enter into that band, they could be content to humbly request and travel by all means with your Majesty for his pardon.... They desired that I should return sufficiently instructed in this matter to Stirling, before the baptism of your son, whom God might preserve. This message was faithfully delivered by me at Newcastle in England, where the said earl then remained, in presence of his friends and company, where they all condescended to have no further dealing with your husband, and to enter into the said band. With this deliberation, I returned to Stirling, where ... your Majesty's gracious pardon was granted unto them all.... Immediately after, the said Earl of Morton repaired to Whittinghame, where the Earl Bothwell and Secretary Lethington came to him; what speech passed there amongst them, as God shall be my judge, I knew nothing at that time; but at their departure I was

requested by the said Earl Morton to accompany the Earl Bothwell and Secretary to Edinburgh, and to return with such answer as they should obtain of your Majesty, which being given to me by the said persons, as God shall be my judge, was no other than these words, "Show to the Earl Morton that the Queen will hear no speech of that matter appointed unto him." When I craved that the answer might be made more sensible, Secretary Lethington said, that the earl would sufficiently understand it, albeit few or none at that time understand what passed amongst them. It is known to all men, as well by the railing letters passed betwixt the said earl and Lethington, when they became in divers factions, as also a book set forth by the ministers, wherein they affirm that the earl has confessed to them, before his death, that the Earl Bothwell came to Whittinghame to propose the calling away of the King your husband, to the which proposition the said Earl of Morton affirms that he could give no answer unto such time he might know your Majesty's mind, which he never received....

SECTION VIII

THE END

CONTENTS

- [1.](#) Connecting Note.
- [2.](#) Contemporary Verses on the Babington Conspiracy.
- [3.](#) Queen Mary's Letter to Queen Elizabeth on hearing the announcement of her sentence.
- [4.](#) Clauses from Queen Mary's Will.
- [5.](#) Appeal for Spiritual Faculties.
- [6.](#) "O Domine Deus, speravi in te."
- [7.](#) Contemporary Official Report of the Execution.

CONNECTING NOTE

Queen Mary's life, after the conclusion of the conference at Westminster, was occupied with plots and negotiations for her escape from captivity. The proposal for her marriage with the Duke of Norfolk was opposed both in Scotland and in England; and an insurrection was raised by the Earls of Northumberland and Westmoreland, which was speedily suppressed (November, 1569). In January of the following year the Earl of Moray was assassinated at Linlithgow, and the Earl of Lennox, Darnley's father, succeeded him as Regent. Maitland of Lethington finally seceded from the "King's party," and allied himself with Kirkaldy of Grange, who held Edinburgh Castle for Mary. The Norfolk conspiracy continued to raise the expectations of the Marians till the capture, in the spring of 1571, of Charles Baillie, who was carrying letters from the papal agent, Rudolphi, for Queen Mary, Norfolk, the Spanish ambassador, and the Bishop of Ross. On the strength of Baillie's disclosures, Norfolk was put to death in June 1572. Elizabeth declined to gratify the English Parliament by executing her prisoner, but attempted to arrange for her delivery to the Earl of Morton, now Regent of Scotland,

with a view to his accepting the responsibility for Mary's death. Morton broke off the negotiations as Elizabeth refused to give her open sanction to the deed. Edinburgh Castle surrendered in June 1573, and its fall, and the loss of Lethington and Grange, gave the death-blow to the hopes of the Queen of Scots. She maintained, however, a constant correspondence with Elizabeth and with Spain and Rome, clutching eagerly at any hope of release, however vague. In 1586 she became involved, to what extent is disputed, in what is known as the Babington Conspiracy, which had for its object the assassination of Elizabeth and her ministers, and the restoration of Catholicism throughout Great Britain. Walsingham received information as to the plot, and obtained possession of letters alleged to be written by Mary to Babington. The conspirators were put to death, and Mary was tried by a Commission of Peers in the end of 1586. The following verses, addressed to the conspirators, indicate the common feeling in England at the time. They are quoted from a poem by William Kempe, published in 1587, and entitled "A Dutiful Invective against the moste haynous Treasons of Ballard and Babington ... together with the horrible attempts and actions of the Queen of Scottes.... For a New Yeares gift to all loyall English subjects." The author of the verses is not Kemp the player, but a writer of some treatises on Education. Cf. "Dict. Nat. Biog."

A DUTIFUL INVECTIVE

The Scottish Queen, with mischief fraught, for to perform the will
Of him whose pupil she hath been hath usëd all her skill;
By words most fair, and loving terms, and gifts of value great:
For to persuade your hollow hearts, your duties to forget,
And for to be assistant still, her treacheries to further,
Wherein she reckons it no sinne though you commit great murther.
Such is her heinous hateful mind, who long hath lived in hope,
By such her subtle lawless means (and help of cursëd Pope)
Both to deprive our sovereign Queen of her imperial crown,
And true religion to repel, God's Gospel to put down.

Wherein you fully did conclude that it could never be,
Except you first conspired her death, by secret treachery.
And thereupon consulted oft, and sundry ways did seek
For to perform this devilish act, which you so well did like.
Next unto this your promise was to lend your help and aid,
With all the force and power you could, to foes that should invade.
And thereby for to set at large that Queen whom I did name,
Who always in her treacherous mind, doth nought but mischief frame.

THE CAUSE OF ALL OUR TROUBLES

For plainly hath it fallen out, by sundry proofs most true,
She was the only maintainer of all this treacherous crew:
For trial whereof we may see, how that our gracious Queen,
Both having care the very truth most plainly might be seen,
And she with honour might be tried, in that she was a Prince,
Did cause the chiefest peers her faults by justice to convince:
Who did assemble at her place, by name called Fotheringay,
There to examine out the truth, and hear what she could say;
And to that end did then direct to them a large commission
For to examine every one in whom they found suspicion.
Who meeting at that place, it plainly did appear,
How that she was the chiefest cause of all our troubles here.
And that she by persuasions did seek for to withdraw
The subjects' hearts from this our Queen, who erst had lived in awe;
And that the treasons named before were all by her consent,
And that she author was thereof, and did the same invent,
Whereto her answer was so light, and to so small effect,
As that the weakness of the same her treasons did detect.
And thereupon these peers of State, having a due regard
To what she could object thereto, and likewise nothing spared
By circumstance to search out truth, did forthwith then pronounce
That she was guilty of these crimes, and could not them renounce.
Which sentence so by them declared, was by our Queen's consent,
Plainly revealed to all estates in court of Parliament;

And was by them considered of, who then did all agree
To join in suit unto her Grace, the same to ratify.

MARY'S LETTER TO ELIZABETH

Queen Mary's Letter to Queen Elizabeth.

Strickland's Letters of Mary Queen of Scots, vol. ii. p. 200.

FOTHERINGAY, December 19, 1586.

MADAME,—Having with difficulty obtained leave from those to whom you have committed me to open to you all I have on my heart, as much for exonerating myself from any illwill, or desire of committing cruelty, or any act of enmity against those with whom I am connected in blood; as also, kindly, to communicate to you what I thought would serve you, as much for your weal and preservation as for the maintenance of the peace and repose of this isle, which can only be injured if you reject my advice. You will credit or disbelieve my discourse, as it seems best to you.

I am resolved to strengthen myself in Christ Jesus alone, who, to those invoking Him with a true heart, never fails in His justice and consolation, especially to those who are bereft of all human aid; such are under His holy protection: to Him be the glory! He has equalled my expectation, having given me heart and strength, *in spe contra spem*, to endure the unjust calumnies, accusations, and condemnations (of those who have no such jurisdiction over me) with a constant resolution to suffer death for upholding the obedience and authority of the Apostolical Roman Catholic Church.

Now, since I have been on your part informed of the sentence of your last meeting of Parliament, Lord Buckhurst and Beale having admonished me to prepare for the end of my long and weary pilgrimage, I beg to return you thanks on my part for these happy tidings, and to entreat you to vouchsafe to me certain points for the discharge of my conscience. But since Sir A. Paulet has informed me (though falsely) that you had indulged me by having restored to me my almoner, and the money that they had taken from me, and that the remainder would follow; for all this I would willingly return you thanks, and supplicate still further as a last request, which I have thought for many reasons I ought to ask of you alone, that you will accord this ultimate grace, for which I should not like to be indebted to any other,

since I have no hope of finding aught but cruelty from the Puritans, who are at this time, God knows wherefore! the first in authority, and the most bitter against me.

I will accuse no one: nay, I pardon with a sincere heart every one, even as I desire every one may grant forgiveness to me, God the first. But I know that you, more than any one, ought to feel at heart the honour or dishonour of your own blood, and that, moreover, of a queen and the daughter of a king.

A LAST REQUEST

Then, Madame, for the sake of that Jesus to whose name all powers bow, I require you to ordain that when my enemies have slaked their black thirst for my innocent blood, you will permit my poor desolated servants altogether to carry away my corpse, to bury it in holy ground with the other queens of France, my predecessors, especially near the late queen, my mother; having this in recollection, that in Scotland the bodies of the kings, my predecessors, have been outraged, and the churches profaned and abolished; and that as I shall suffer in this country, I shall not be given place near the kings, your predecessors, who are mine as well as yours: for according to our religion, we think much of being interred in holy earth. As they tell me that you will in nothing force my conscience nor my religion, and have even conceded me a priest, refuse me not this my last request, that you will permit free sepulchre to this body when the soul is separated, which, when united, could never obtain liberty to live in repose, such as you would procure for yourself; against which repose—before God I speak—I never aimed a blow: but God will let you see the truth of all after my death.

And because I dread the tyranny of those to whose power you have abandoned me, I entreat you not to permit that execution be done on me without your own knowledge, not for fear of the torment, which I am most ready to suffer, but on account of the reports which will be raised concerning my death unsuspected, and without other witnesses than those who would inflict it, who, I am persuaded, would be of very different qualities from these parties whom I require (being my servants) to stay spectators, and with witnesses of my end in the faith of our sacrament, of my Saviour, and in obedience to His Church. And after all is over, that they together may carry away my poor corpse (as secretly as you please), and

speedily withdraw, without taking with them any of my goods except those which in dying I may leave to them, which are little enough for their long and good services.

ELIZABETH'S JEWEL

One jewel that I received of you I shall return to you with my last words, or sooner if you please.

Once more I supplicate you to permit me to send a jewel and a last adieu to my son, with my dying benediction, for of my blessing he has been deprived since you sent me his refusal to enter into the treaty whence I was excluded by his wicked council; this last point I refer to your favourable consideration and conscience as the others, but I ask them in the name of Jesus Christ, and in respect of your consanguinity, and for the sake of King Henry VII., your grandfather and mine, and by the honour of the dignity we both hold, and of our sex in common, do I implore you to grant these requests.

MARY'S TREATMENT

As to the rest, I think you know that in your name they have taken down my dais, but afterwards they owned to me that it was not by your commandment, but by the intimation of some of your privy council. I thank God that this wickedness came not from you, and that it serves rather to vent their malice than to afflict me, having made up my mind to die. It is on account of this, and some other things, that they debarred me from writing to you, and after they had done all in their power to degrade me from my rank, they told me "that I was but a mere dead woman, incapable of dignity." God be praised for all!

I could wish that all my papers were brought to you without reserve, that at last it may be manifest to you that the sole care of your safety was not confined to those who are so prompt to persecute me. If you will accord this my last request, I would wish that you would write for them, otherwise they do with them as they choose. And, moreover, I wish that to this, my last request, you will let me know your last reply.

To conclude, I pray God, the just Judge, of His mercy that He will enlighten you with His Holy Spirit, and that He will give you His grace to die in the perfect charity I am disposed to do, and to pardon all those who have caused, or who have co-operated in, my death. Such will be my last prayer to my end, which I esteem myself happy will precede the persecution which I foresee menaces this isle, where God is no longer seriously feared and revered, but vanity and worldly policy rule and govern all. Yet will I accuse no one, nor give way to presumption. Yet while abandoning this world, and preparing myself for a better, I must remind you that one day you will have to answer for your charge, and for all those whom you doom, and that I desire that my blood and my country may be remembered in that time. For why? From the first days of our capacity to comprehend our duties, we ought to bend our minds to make the things of this world yield to those of eternity!

From Fotheringay, this 19th December, 1586.

Your sister and cousin,

Prisoner wrongfully,

MARIE ROYNE.

THE QUEEN'S WILL

The Will of the Queen of Scots.

Strickland's Letters of Mary Queen of Scots, vol. ii. p. 237.

[The Will contains clauses relative to the payments of her debts, and of legacies to her servants. The selections given are of more general interest.]

In the name of the Father, of the Son, and of the Holy Ghost, I, Mary, by the grace of God, Queen of Scotland and Dowager of France, being on the point of death, and not having any means of making my will, have myself committed these articles to writing, and I will and desire, that they have the same force, as if they were made in due form.

In the first place, I declare that I die in the Catholic, Apostolic, and Romish faith. First, I desire that a complete service be performed for my soul in the Church of St. Denis in France, and another in St. Peter's, at Rheims, where all my servants are to attend, in such manner as may be ordered to do by those to whom I have given directions, and who are named therein.

Further, that an annual obit be founded for prayers for my soul, in perpetuity, in such place, and after such manner, as shall be deemed most convenient....

I appoint my cousin, the Duke of Guise, principal executor of my will. After him, the Archbishop of Glasgow, the Bishop of Ross, and Monsieur de Ruissieu, my chancellor....

I recommend Marie Paiges, my god-daughter, to my cousin, Madame de Guise, and beg her to take her into her service, and my aunt de Saint Pierre to get Moubray some good situation, or retain her in her service, for the honour of God.

Done this day, 7th February 1587.

MARY, QUEEN.

APPEAL FOR FACULTIES

Queen Mary's Appeal to the Pope for Spiritual Faculties.

[The following document is here printed for the first time, so far as is known to the Editor. It is from a MS. at Blairs College, and is published by kind permission of the Right Reverend the Rector, and with the advantage of revision by the Reverend Professor Welsh. It is dated {158-}, and probably belongs to the last year of Queen Mary's life.]

Cum Serenissima Regina Scotiae multis ab hinc annis in Anglorum haereticorum custodias sit inclusa atque ob id non possit Catholicae Ecclesiae sacramenta suscipere et rebus divinis praesertim vero missae sacrificio nisi clam et magno cum periculo interesse, supplex petit a Sanctissimo Domino Nostro quam diu in illa custodia retinetur, ut sacerdoti catholico suo capellano pro tempore existenti concedatur, facultas non modo exercendi omnia munera episcopalia exceptis ordinis et confirmationis sacramentis, et Chrysmatis consecratione; sed etiam absolvendi ab haeresi, et haereticos poenitentes gremio sanctae matris Ecclesiae reconciliandi; quod frequentes ibi se offerant huiusmodi occasiones.

Deinde cum in hac rerum calamitate ipsi Reginae opus sit ad sua secreta consilia et commercia tractanda et exsequenda, uti opera nonnullorum Anglorum, qui nisi profanis haereticorum et schismaticorum precibus et communioni intersint, vel a praefectis carceris prohiberentur, ne Reginae inservirent, vel non possent ita commode illa consilia et commercia juvare; dignetur Sanctitas Sua sacerdoti capellano, quem Regina delegerit hanc potestatem illos ab omni censura et poena in tali casu absolvendi; et quoties opus fuerit in gratiam Sanctae matris Ecclesiae reducendi; ii tamen, quoad fieri potest, vitare debent impiam huiusmodi communionem et rerum sacrarum prophanationem.

Permittat quoque Sanctitas Sua, ut tales etiam ante absolutionem possint sine scrupulo tum Reginae tum sacerdotis celebrantis et aliorum qui missae

intererunt, praesentes adesse in ea missa quae coram Regina, durante ejus captivitate celebrabitur.

Petit etiam Regina, ut 25 numero viri catholici, per eam nominandi, quo commodius et securius ipsi inserviant, possint sine scrupulo et sine periculo et metu censurarum et peccati, hujusmodi precibus et communionibus hæreticorum interesse, ita tamen, ut cum illis non communicent, ac nefandis illorum actibus ne verbo quidem consentiant.

Concedat quoque sua Beatitudo ipsi Reginae plenam indulgentiam et remissionem omnium peccatorum in forma jubilei, quoties genibus flexis orat confessa coram sacra Eucharistia, vel eam suscipit, ac quoties patienter fert injuriam ab hæreticis sibi illatam; eam dem quoque obtineat indulgentiam in articulo mortis ore dicendo Jesus Maria vel idem corde saltem memorando.

Postremo Regina summis precibus Sanctissimum Dominum Nostrum orat, ut quem sibi delegerit sacerdotem, possit ab eo in confessione sacramentali absolvi a cunctibus casibus etiam Sedi Apostolicæ reservatis, atque in bulla coenae Domini contentis.

[It is not known what reply was sent; but the forthcoming volume of "Vatican Papers," to be edited for the Scottish History Society by Father Pollard, S.J., may throw light on the subject.]

TRANSLATION.

Since Her Most Serene Majesty, the Queen of Scotland, has been for these many years a prisoner in the hands of the English heretics, and on that account is unable to receive the sacraments of the Catholic Church, or to be present, except secretly and at great risk, at divine service, and especially at the Sacrifice of the Mass, she humbly supplicates of His Holiness that, so long as she is kept in that restraint:

That to a Catholic priest, her chaplain for the time being, there may be granted the faculty, not only of exercising all the powers of a bishop, except the sacrament of Orders and Confirmation, and the consecration of the Chrism, but also of absolving from

heresy and receiving penitent heretics into the bosom of Holy Mother Church. Such opportunities frequently offer themselves.

Secondly, since, in this sad condition of her affairs, the Queen herself has need, in connexion with her secret counsels and negotiations, of the assistance of some Englishmen, who, unless they attend the blasphemous prayers and communion of the heretics, would be excluded, by her gaolers, from the Queen's presence, or would have difficulty in aiding her counsels and plans, let His Holiness grant to a priest, whom the Queen may choose as chaplain, the power of absolving them from all censure and penalty in such circumstances, and restoring, as often as there is need, to the grace of Holy Mother Church, it being understood that, as far as possible, they shall avoid this impious communion and profanation of Holy Things.

Let His Holiness also permit that such persons, even before absolution, may without scruple either to the Queen or to the celebrating priest, or to all others who may be present, be present and assist at the Mass which shall be celebrated in presence of the Queen during her captivity.

The Queen also begs that Catholic men, twenty-five in number, nominated by her, in order that they may serve her more conveniently and safely, may without scruple and without danger or fear of censures and of sin, be present at such prayers and communions of the heretics, it being understood that they shall not communicate with them or give even verbal consent to their nefarious acts.

Let His Holiness grant also to the Queen herself a plenary indulgence and remission of all her sins, in the form of a jubilee, as often as, having confessed her sins, she may pray on bended knees before the Holy Eucharist, or receive it, and as often as she patiently endures injuries inflicted on her by heretics. May she obtain also the same indulgence at the moment of death by invoking with her lips, Jesu, Maria, or at least meditating on them in her heart.

Finally the Queen begs His Holiness with many prayers, that whomsoever she shall choose as a priest, she may be by him, in sacramental confession, absolved from all censures, even from those reserved to the Holy Apostolic See, and contained in the Bull "Coena Domini."



SILVER-GILT HAND-BELL.
Height 4-½ inches. (Used by
Queen Mary in Captivity.)

"IN THEE HAVE I TRUSTED"

Poem composed by Queen Mary in view of her Approaching Death.

O Domine Deus, speravi in te!
O care mi Jesu, nunc libera me!
In dura catena, in misera poena,
Languendo, gemendo, et genu flectendo,
Adoro, imploro ut liberes me.

Tr. Mr. Swinburne, Mary Stuart, Act V.

O Lord my God,
 I have trusted in thee;
O Jesu my dearest one,
 Now set me free.
In prison's oppression,
In sorrow's obsession,
 I weary for thee.
With sighing and crying,
Bowed down as dying,
I adore thee, I implore thee, set me free!

PARTING WITH ROBERT MELVILLE

1587.—February 8. Narrative of the Execution, sent to the Court.

Ellis's Letters, Ser. ii. vol. iii. p. 113, from the Lansdowne MS. 51, Art. 46.

First, the said Scottish Queen, being carried by two of Sir Amias Paulett's gentlemen, and the Sheriff going before her, came most willingly out of her chamber into an entry next the Hall, at which place the Earl of Shrewsbury and the Earl of Kent, commissioners for the execution, with the two governors of her person, and divers knights and gentlemen did meet her, where they found one of the Scottish Queen's servants, named Melvin, kneeling on his knees, who uttered these words with tears to the Queen of Scots, his mistress, "Madam, it will be the sorrowfullest message that ever I carried, when I shall report that my Queen and dear mistress is dead." Then the Queen of Scots, shedding tears, answered him, "You ought to rejoice rather than weep for that the end of Mary Stuart's troubles is now come. Thou knowest, Melvin, that all this world is but vanity, and full of troubles and sorrows; carry this message from me, and tell my friends that I die a true woman to my religion, and like a true Scottish woman and a true Frenchwoman. But God forgive them that have long desired my end; and He that is the true Judge of all secret thoughts knoweth my mind, how that it ever hath been my desire to have Scotland and England united together. Commend me to my son, and tell him that I have not done anything that may prejudice his kingdom of Scotland; and so, good Melvin, farewell;" and kissing him, she bade him pray for her.

AN ENGLISH NOBLEMAN

Then she turned to the Lords and told them that she had certain requests to make unto them. One was for a sum of money, which she said Sir Amyas Paulet knew of, to be paid to one Curle her servant; next, that all her poor servants might enjoy that quietly which by her Will and Testament she had given unto them; and lastly, that they might be all well entreated, and sent

home safely and honestly into their countries. "And this I do conjure you, my Lords, to do."

Answer was made by Sir Amyas Paulet, "I do well remember the money your Grace speaketh of, and your Grace need not to make any doubt of the not performance of your requests, for I do surely think they shall be granted."

"I have," said she, "one other request to make unto you, my Lords, that you will suffer my poor servants to be present about me, at my death, that they may report when they come into their countries how I died a true woman to my religion."

Then the Earl of Kent, one of the commissioners, answered, "Madam, it cannot well be granted, for that it is feared lest some of them would with speeches both trouble and grieve your Grace, and disquiet the company, of which we have had already some experience, or seek to wipe their napkins in some of your blood, which were not convenient." "My Lord," said the Queen of Scots, "I will give my word and promise for them that they shall not do any such thing as your Lordship has named. Alas! poor souls, it would do them good to bid me farewell. And I hope your Mistress, being a maiden Queen, in regard of womanhood, will suffer me to have some of my own people about me at my death. And I know she hath not given you so straight a commission, but that you may grant me more than this, if I were a far meaner woman than I am." And then (seeming to be grieved) with some tears uttered these words: "You know that I am cousin to your Queen, and descended from the blood of Henry the Seventh, a married Queen of France, and the anointed Queen of Scotland."

"BESIDE THE BLOCK—ALONE"

Whereupon, after some consultation, they granted that she might have some of her servants according to her Grace's request, and therefore desired her to make choice of half-a-dozen of her men and women: who presently said that of her men she would have Melvin, her apothecary, her surgeon, and one other old man beside; and of her women, those two that did use to lie in her chamber.

After this, she being supported by Sir Amias's two gentlemen aforesaid, and Melvin carrying up her train, and also accompanied with the Lords, Knights, and Gentlemen aforesaid, the Sheriff going before her, she passed out of the entry into the Great Hall, with her countenance careless, importing thereby rather mirth than mournful cheer, and so she willingly stepped up to the scaffold which was prepared for her in the Hall, being two feet high and twelve feet broad, with rails round about, hung and covered with black, with a low stool, long cushion, and block, covered with black also. Then, having the stool brought her, she sat her down; by her, on the right hand, sat the Earl of Shrewsbury and the Earl of Kent, and on the left hand stood the Sheriff, and before her the two executioners; round about the rails stood Knights, Gentlemen, and others.

Then, silence being made, the Queen's Majesty's Commission for the execution of the Queen of Scots was openly read by Mr. Beale, clerk of the Council; and these words pronounced by the Assembly, "God save the Queen." During the reading of which Commission the Queen of Scots was silent, listening unto it with as small regard as if it had not concerned her at all; and with as cheerful a countenance as if it had been a pardon from her Majesty for her life; using as much strangeness in word and deed as if she had never known any of the Assembly, or had been ignorant of the English language.

A THEOLOGICAL CONTROVERSY

Then one Doctor Fletcher, Dean of Peterborough, standing directly before her, without the rail, bending his body with great reverence, began to utter this exhortation following: "Madam, the Queen's most excellent Majesty," &c., and iterating these words three or four times, she told him, "Mr. Dean, I am settled in the ancient Catholic Roman religion, and mind to spend my blood in defence of it." Then Mr. Dean said: "Madam, change your opinion, and repent you of your former wickedness, and settle your faith only in Jesus Christ, by Him to be saved." Then she answered again and again, "Mr. Dean, trouble not yourself any more, for I am settled and resolved in this my religion, and am purposed therein to die." Then the Earl of Shrewsbury and the Earl of Kent, perceiving her so obstinate, told her that since she would not hear the exhortation begun by Mr. Dean, "We will pray for your Grace, that it stand with God's will you may have your heart lightened, even

at the last hour, with the true knowledge of God, and so die therein." Then she answered, "If you will pray for me, my Lords, I will thank you; but to join in prayer with you I will not, for that you and I are not of one religion."

THE EARL OF KENT

Then the Lords called for Mr. Dean, who, kneeling on the scaffold stairs, began this prayer, "O most gracious God and merciful Father," &c., all the Assembly, saving the Queen of Scots and her servants, saying after him. During the saying of which prayer, the Queen of Scots, sitting upon a stool, having about her neck an *Agnus Dei*, in her hand a crucifix, at her girdle a pair of beads with a golden cross at the end of them, a Latin book in her hand, began with tears and with loud and fast voice to pray in Latin; and in the midst of her prayers she slid off from her stool, and kneeling, said divers Latin prayers; and after the end of Mr. Dean's prayer, she kneeling, prayed in English to this effect: "For Christ His afflicted Church, and for an end of their troubles; for her son; and for the Queen's Majesty, that she might prosper and serve God aright." She confessed that she hoped to be saved "by and in the blood of Christ, at the foot of whose Crucifix she would shed her blood." Then said the Earl of Kent, "Madam, settle Christ Jesus in your heart, and leave those trumperies." Then she little regarding, or nothing at all, his good counsel, went forward with her prayers, desiring that "God would avert His wrath from this Island, and that He would give her grief and forgiveness for her sins." These, with other prayers she made in English, saying she forgave her enemies with all her heart that had long sought her blood, and desired God to convert them to the truth; and in the end of the prayer she desired all saints to make intercession for her to Jesus Christ, and so kissing the crucifix, and crossing of her also, said these words: "Even as Thy arms, O Jesus, were spread here upon the Cross, so receive me into Thy arms of mercy, and forgive me all my sins."

SMILING CHEER

Her prayer being ended, the executioners, kneeling, desired her Grace to forgive them her death; who answered, "I forgive you with all my heart, for now, I hope, you shall make an end of all my troubles." Then they, with her two women, helping of her up, began to disrobe her of her apparel; she never changed her countenance, but with smiling cheer she uttered these

words, "that she never had such grooms to make her unready, and that she never put off her clothes before such a company."

Then she, being stripped of all her apparel saving her petticoat and kirtle, her two women beholding her made great lamentation, and crying and crossing themselves prayed in Latin; she, turning herself to them, embracing them, said these words in French, "Ne criez vous; j'ay promis pour vous;" and so crossing and kissing them, bade them pray for her, and rejoice and not weep, for that now they should see an end of all their mistress's troubles. Then she, with a smiling countenance, turning to her men servants, as Melvin and the rest, standing upon a bench nigh the scaffold, who sometime weeping, sometime crying out aloud, and continually crossing themselves, prayed in Latin, crossing them with her hand bade them farewell; and wishing them to pray for her even until the last hour.

"INTO THY HANDS"

This done, one of the women having a Corpus Christi cloth lapped up three-corner ways, kissing it, put it over the Queen of Scots' face, and pinned it fast to the caul of her head. Then the two women departed from her, and she kneeling down upon the cushion most resolutely, and without any token or fear of death, she spake aloud this Psalm in Latin, "In te, Domine, confido, non confundar in eternum," &c. {Ps. xxv.}. Then, groping for the block, she laid down her head, putting her chin over the block with both her hands, which holding there, still had been cut off, had they not been espied. Then lying upon the block most quietly, and stretching out her arms, cried, "In manus tuas, Domine," &c., three or four times. Then she lying very still on the block, one of the executioners holding of her slightly with one of his hands, she endured two strokes of the other executioner with an axe, she making very small noise or none at all, and not stirring any part of her from the place where she lay; and so the executioner cut off her head, saving one little grisle, which being cut asunder, he lifted up her head to the view of all the assembly, and bade "God save the Queen." Then her dressing of lawn falling off from her head, it appeared as grey as one of threescore and ten years old, polled very short, her face in a moment being so much altered from the form she had when she was alive, as few could remember her by

her dead face. Her lips stirred up and down a quarter of an hour after her head was cut off.

Then Mr. Dean said with a loud voice, "So perish all the Queen's enemies;" and afterwards the Earl of Kent came to the dead body, and standing over it, with a loud voice said, "Such end of all the Queen's and the Gospel's enemies."



EFFIGY AT WESTMINSTER.

THE LAST COURTIER

Then one of the executioners pulling off her garters, espied her little dog which was crept under her clothes, which could not be gotten forth but by force, yet afterward would not depart from the dead corpse, but came and lay between her head and her shoulders, which being imbrued with her blood, was carried away and washed, as all things else were that had any blood was either burned or clean washed; and the executioners sent away with money for their fees, not having any one thing that belonged unto her. And so, every man being commanded out of the Hall, except the Sheriff and his men, she was carried by them up into a great chamber lying ready for the surgeons to embalm her.

A full account of Queen Mary's last days will be found in "The Tragedy of Fotheringay," by the Hon. Mrs. Maxwell-Scott. In August 1587, the Queen was buried, with great ceremony, in Peterborough Cathedral, and, in 1612, was reinterred in Westminster Abbey by her son James VI. and I.

APPENDICES

CONTENTS

- ([A.](#)) Genealogical Tables.
- ([B.](#)) Lord Darnley.
- ([C.](#)) Contemporary Writers.
- ([D.](#)) Authorities.
- ([E.](#)) Controversial Books.

APPENDIX A.

(A.) TABLE SHOWING THE RELATIONSHIP OF MARY TO LORD DARNLEY AND TO THE DUKE OF CHÂTELHERAULT.

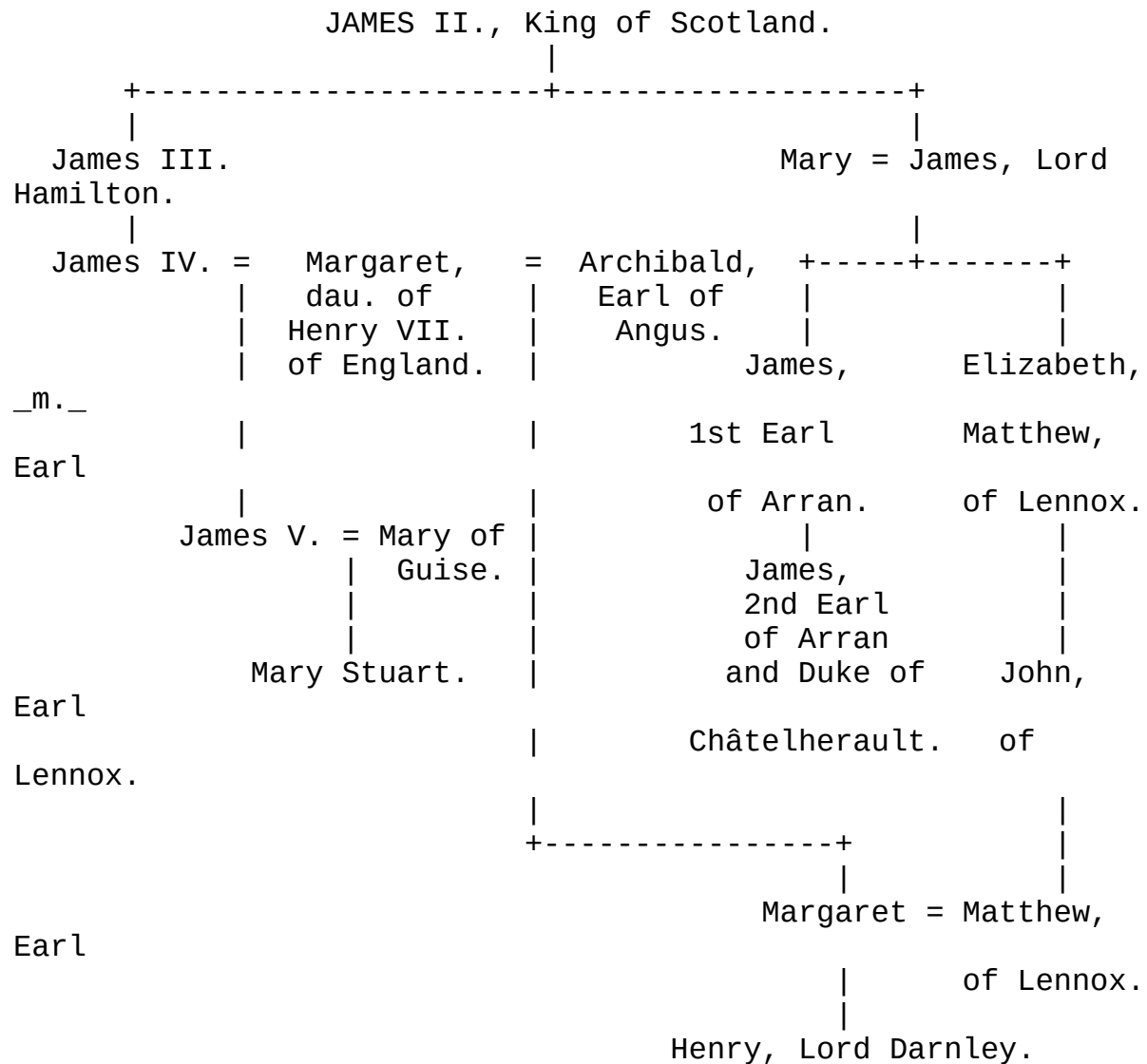
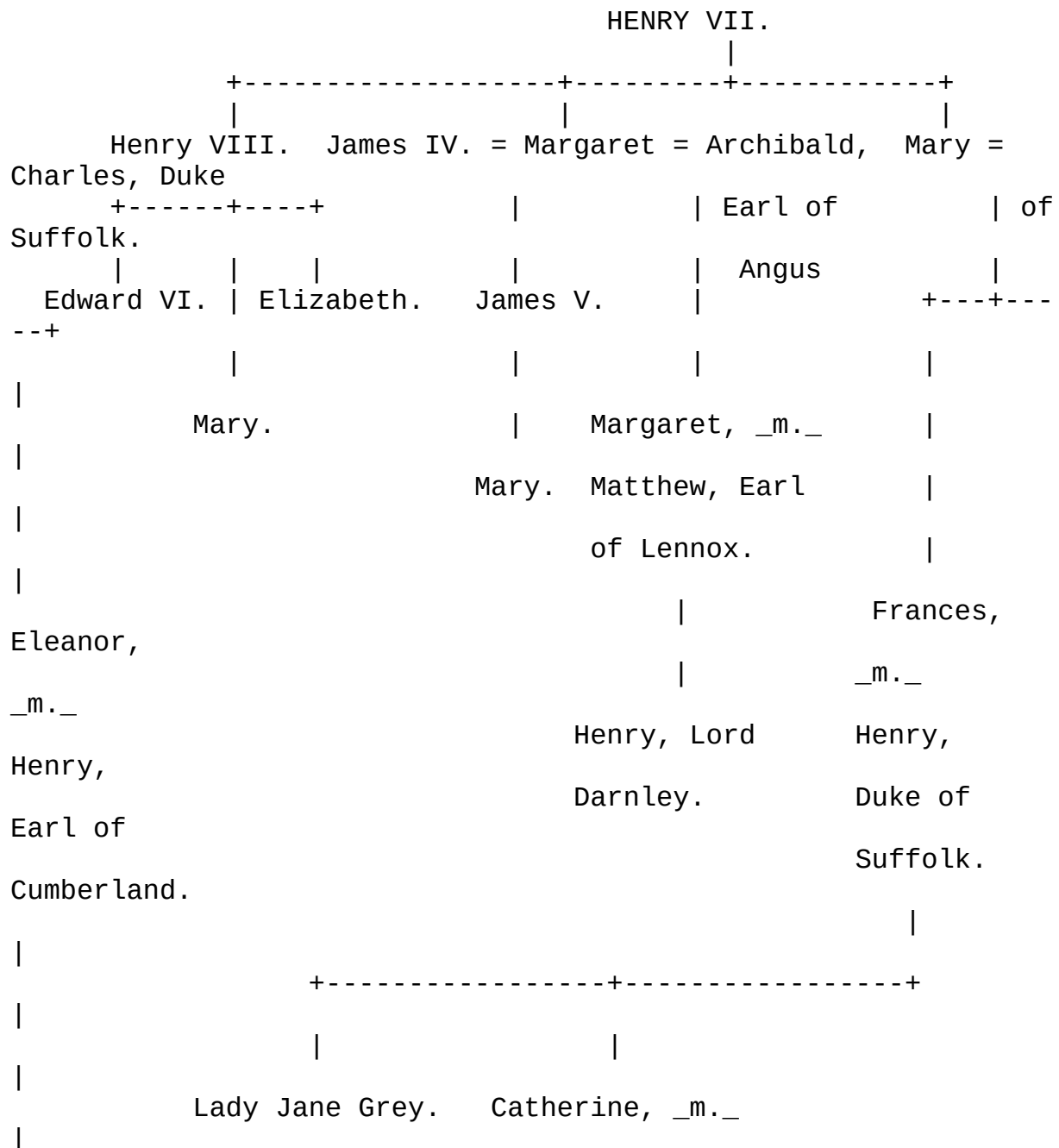


TABLE SHOWING THE POSITION OF MARY AND DARNLEY WITH REGARD TO THE CROWN OF ENGLAND.



Edward, Earl of
Hertford.

|
Margaret, _m._ Henry,
Earl of Derby.

APPENDIX B.

(B.) LORD DARNLEY.

It may be of some interest to collect a few contemporary opinions regarding the unfortunate Lord Darnley. The extracts from Sir James Melville and Randolph ([pp. 46-53](#), [54-56](#)) sufficiently illustrate the personality of Mary, and we need only add Knolly's description of the Queen of Scots on her arrival in England (Wright's "Elizabeth," vol. i. pp. 280-1). He wrote to Cecil: "This ladie and princess is a notable woman. She semeth to regard no ceremonious honour beside the acknowledging of her estate regalle. She sheweth a disposition to speake much, to be bold, to be pleasant, and to be very famylyar. She sheweth a great desire to be avenged of her enemies: she sheweth a readiness to expose herself to all perylls in hope of victorie; she delyteth much to hear of hardiness and valiancy, commending by name all approved hardy men of her cuntrye, altho' they be her enemies: and she commendeth no cowardice even in her friends. The thing that most she thirsteth after is victory, and it semeth to be indifferent to her to have her enemies diminish, either by the sword of her friends, or by the liberall promises and rewards of her purse, or by division and quarrells raised among themselves; so that for victorie's sake, payne and perrylls semeth pleasant unto her, and in respect of victorie, welthe and all thyngs semeth to her contemptuous and vile."

Our best picture of Darnley comes from the pen of the continuator of Knox. "He was of a comely stature, and none was like unto him within this island; he died under the age of one and twenty years; prompt and ready for all games and sports; much given to hawking and hunting, and running of horses, and likewise to playing on the lute; and also to Venus chamber he was liberal enough; he could write and dictate well; but he was somewhat given to wine, and much feeding, and likewise to inconstancy; and proud beyond measure, and therefore contemned all others; he had learned to dissemble well enough, being from his youth misled up in Popery" (Laing's "Knox," vol. ii. p. 551). Incidental references to Darnley's character will be found on [pp. 47-8](#), [64-5](#), [87-8](#), &c. The author of the "Histoire of James the Sext" wrote of him, "He was a comelie Prince, of a fayre and large stature of bodie, pleasant in countenance, and affable to all men, and devote, weill

exercised in martiall pastymes upoun horseback as ony Prince of that age, but was sa facile as he could conceal no secret, although it might tend to his own weill." Of Darnley's literary abilities we possess two indications—a letter written to Mary Tudor, and the following ballad, both printed in Maidment's "Scottish Songs and Ballads," vol. ii. It may be noted that the figure of the turtle-dove or wood-pigeon occurs in the ballad and in one of the "Casket Letters."

Gife langour makis men licht,
Or dolour thame decoir,
In earth there is no wicht,^[98]
May me compair in gloir.
Gif cairfuill thoftis restoir
My havy heart from sorrow
I am for evir moir
In joy, both evin and morrow.

Gif plesour be to pance,^[99]
I playne me nocht opprest,
Or absence micht avance,
My heart is haill possesst,
Gif want of quiet rest
From cairis micht me convoy,
My mynd is nocht mollest,
Bot evir moir in joy.

Thocht that I pance in paine,
In passing to and fro,
I laubor all in vane,
For so hes mony mo,
That hes nocht servit so,
In suting of thair sueit,^[100]
The nar the fyre I go
The grittar is my heit.

The turtour for hir maik,
Mair dule may nocht indure

Nor I do for hir saik,
 Evin hir quha hes in cure
 My hairt, quhilk salbe sure,
And service to the deid,
 Unto that lady pure,
The well of woman heid.

Schaw shedfull to that sueit
 My pairt so permanent
That no mirth quhill^[101] we meit,
 Sall cause me be content;
 But still my hairt lament,
In sorrowfull siching soir,
 Till tyme sho be present,
Fairweill, I say no moir.
 Finis quod King Hary Stewart.

This lament for Darnley (also printed by Maidment) was doubtless used as a political weapon against Queen Mary:—

To Edinburgh about six hours at morn,
 As I was passing pansand out the way;
Ane bonny boy was sore making his moan,
 His sorry song was Oche, and Wallaway!
 That ever I should lyve to see that day,
Ane king at eve, with sceptre, sword and crown;
 At morn but a deformed lump of clay,
With traitors strong so cruelly put down!

Then drew I near some tidings for to speir,
 And said, My friend, what makis thee sa way.
Bloody Bothwell hath brought our king to beir,
 And flatter and fraud with double Dalilay.
 At ten houris on Sunday late at een,
When Dalila and Bothwell bade good night,
 Off her finger false she threw ane ring,
And said, My Lord, ane token you I plight.

She did depart then with an untrue train,
And then in haste and culverin they let craik,
To teach their feiris to know the appoint time,
About the kinge's lodging for to clap.
To dance that night they said she should not slack,
With leggis lycht to hald the wedow walkan;
And baid fra bed until she heard the crack,
Whilk was a sign that her good lord was slain.

O ye that to our kirk have done subscrivye,
These Achans try alsweill traist I may,
If ye do not, the time will come, belyve,
That God to you will raise some Iosuay;
Whilk shall your bairnis gar sing Wallaway,
And ye your selvis be put down with shame;
Remember on the awesome latter day,
When ye reward shall receive for your blame.

I ken right well ye knaw your duty,
Gif ye do not purge you ane and all,
Then shall I write in pretty poetry,
In Latin laid in style rhetorical;
Which through all Europe shall ring like ane bell,
In the contempt of your malignity.
Fye, flee fra Clynemnestra fell,
For she was never like Penelope.

With Clynemnestra I do not fain to fletch,
Who slew her spouse, the great Agamemnon;
Or with any that Ninus' wife doth match,
Semiramis quha brought her gude lord down.
Quha do abstain fra litigation,
Or from his paper hald aback the pen?
Except he hate our Scottish nation,
Or then stand up and traitors deeds commend?

Now all the woes that Ovid in Ibin,
Into his pretty little book did write,

And many mo be to our Scottish Queen,
For she the cause is of my doleful dyte.
Sa mot her heart be fillet full of syte,
As Herois was for Leander's death;
Herself to slay for woe who thought delyte,
For Henry's sake to like our Queen was laith.

The dolours als that pierced Dido's heart,
When King Enee from Carthage took the flight;
For the which cause unto a brand she start,
And slew herseif, which was a sorry sight.
Sa might she die as did Creusa bright,
The worthy wife of douty Duke Jason;
Wha brint was in ane garment wrought by slight
Of Medea through incantation.

Her laughter light be like to true Thisbe,
When Pyramus she found dead at the well,
In languor like unto Penelope,
For Ulysses who long at Troy did dwell.
Her dolesome death be worse than Jezebel,
Whom through an window surely men did thraw;
Whose blood did lap the cruel hundis fell,
And doggis could her wicked bainis gnaw.

Were I an hound—oh! if she an hare,
And I an cat, and she a little mouse,
And she a bairn, and I a wild wod bear,
I an ferret, and she cuniculus.
To her I shall be aye contrarius—
When to me Atropos cut the fatal thread,
And fell deithis dartys dolorous,
Then shall our spirits be at mortal feid.

My spirit her spirit shall douke in Phlegethon,
Into that painful filthy flood of hell,
And then in Styx, and Lethe baith anone—
And Cerberus that cruel hound sa fell,

Sall gar her cry with mony gout and yell,
O Wallaway! that ever she was born,
Or with treason by ony manner mell,
Whilk from all bliss should cause her be forlorn.

APPENDIX C.

(C.) CONTEMPORARY WRITERS.

GEORGE BUCHANAN.

The writings of George Buchanan with which we are concerned are his "Detection" of Queen Mary, and his "History of Scotland." Buchanan was the friend and adviser of Mary's enemies, and his references to her are polemical, not historical. His "Detection" is based on the "Book of Articles" (cf. [p. 144](#)), and it is not always consistent with the statements in his "History." Sheriff Æneas Mackay admits with regard to it that "it must be deemed a calumnious work." The reader must decide for himself what credit to attach to statements made by Buchanan, and otherwise unattested. He occupies among Mary's accusers the position held by Lesley among her friends. His title to fame is not confined to the Marian controversy. He was a very distinguished humanist, and his writings possess both learning and charm. (Cf. Mr. Hume Brown's recent volume entitled "George Buchanan.")

CONAEUS.

George Conn belonged to an Aberdeenshire family of Roman Catholic sympathies, and was educated at Douay, Paris, and Rome. He was Papal agent accredited to Queen Henrietta Maria from 1636 to 1639. He died in 1640. The date of his birth is unknown, and he is not quite strictly a contemporary author. But he lived in Paris at a time when people must have been alive who could remember Queen Mary's residence in France, and his "Life of Mary Stuart," published in 1624, has all the freshness of a contemporary source.

LORD HERRIES.

John Maxwell, fourth Lord Herries, was, although a Protestant, a staunch supporter of Queen Mary. He opposed the Bothwell marriage, but remained faithful after the surrender at Carberry Hill. He joined the Queen after her escape from Lochleven, was present at the Battle of Langside, and

accompanied her in her flight to England. In spite of some temporising with her enemies, he was selected, along with the Bishop of Ross, to defend her at York and Westminster, and he was probably involved in the Norfolk plot. When he became convinced of the hopelessness of Mary's cause, he came to an arrangement with the victorious party, and took a part in politics till his death in 1583. He seems, however, always to have been ready to assist the Queen had there been any chance of success. His "Memoirs" possess an unusual interest in virtue of his intimate knowledge of the secret history of the reign.

JOHN KNOX.

The extracts from Knox's "History of the Reformation in Scotland" are interesting as bearing the impress of their author's vigorous personality. But it must be remembered that, as the leader of the Protestant clergy, he was a strong partisan, and his descriptions cannot be accepted literally. Different readers will decide differently as to the credit to be given to Knox's statements. The most valuable edition of Knox is the large one by the late Mr. David Laing, which contains much important annotation. The concluding portion of the "History" is not from Knox's own pen, but is the work of an unknown writer, who is generally described as Knox's Continuator.

JOHN LESLEY.

The Bishop of Ross was a native of Inverness-shire, and was educated at the University of Aberdeen. The first public capacity in which he was employed was as one of a deputation of Roman Catholic nobles to invite Queen Mary to return to Scotland, after the death of Francis II. He became Bishop of Ross in 1566. He rendered his chief services to Queen Mary as one of the agents for her defence at the Conferences at York and Westminster, and he was thereafter involved in most of the schemes for Mary's release. He survived the Queen for nine years, and died in 1596 at Guirtenburg, near Brussels. He was about seventy years of age.

Lesley's chief work is his "History of Scotland from 1437 to 1561." The Scots edition was first published in 1830, but the Latin version, which is

more complete, appeared during the author's lifetime, and was translated into Scots, as early as 1596, by Father James Dalrymple of Regensburg. For the period with which we are concerned Lesley is a contemporary authority; but he wrote with a purpose, and was inclined to exaggeration. His "Defence of Queen Mary's Honour" was a reply to Buchanan's "Detection."

LINDSAY OF PITSCOTTIE.

Robert Lindsay of Pitscottie was a cadet of the family of Crawford. He was born about 1500, and died about 1565, and took no part in public affairs. His "History" was not published till 1728. It is a work to which we are indebted for much gossip, and it contains many humorous anecdotes. The writer was a strong Protestant, and shared with many of his contemporaries a fondness for moralising. His book is not absolutely reliable by any means; but in the passage quoted he appears to best advantage.

SIR JAMES MELVILLE.

Sir James Melville had been an attendant on Queen Mary since her childhood. In 1549, when he was fourteen years of age and she seven, he became her page. After some military, and diplomatic service he became one of the gentlemen of the Bed Chamber on the Queen's return to Scotland. His two visits to London as ambassador from Mary to Elizabeth are recorded in the passage quoted in the text. After the fall of the Queen Melville attached himself to the ruling party, and was prominent in politics till James's accession to the throne of England. Thereafter, he lived quietly at his estate of Hallhill, in Fife, where he died in 1617. During his retirement he wrote his "Memoirs," which were published by his grandson in 1683. His memory was not invariably trustworthy; but his fascinating style has made his writing one of the most popular chronicles of the time. His picture of the rival queens is one of the most characteristic passages in his work ([pp. 46-53](#)).

CLAUDE NAU.

Claude de la Boisselierre Nau was sent by the Cardinal of Lorraine to Queen Mary as a Secretary in 1575. Thenceforward he remained her

confidential adviser, although his loyalty to his own interests was more marked than his devotion to his mistress, and he was generally believed to have betrayed her in connection with the Babington conspiracy. After her death he was released by Queen Elizabeth, and entered the service of Henry IV. of France. The MS. known as "Nau's History of Mary Stewart" is in the British Museum, and was printed in 1883 by Father Joseph Stevenson, S.J. The evidence on which Mr. Stevenson attributes it to Nau is given in his introduction.

LORD RUTHVEN.

Patrick, third Lord Ruthven, was one of the Protestant nobles who formed the body known as the "Lords of the Congregation" during the absence of Queen Mary in France. He was not popular even on his own side, for we find mysterious accusations of sorcery and enchantment attaching to his name. At the murder of Rizzio he appeared in the Queen's room, gaunt and haggard, having risen from a sick bed in the neighbouring house. After the murder he fled to England and wrote for the benefit of Queen Elizabeth his "Relation" of the circumstances. He makes numerous accusations against Mary, which have generally been received with suspicion owing to the position of the author as an exiled rebel anxious to justify himself before a foreign sovereign. He died at Newcastle in June 1566, three months after the murder. The "articles" are printed, not only in the "Relation," but in the first column of Goodall's *Examination*, and the third volume of Keith's "History," while those signed by Darnley are copied from the original in the Appendix (p. 641) to the Sixth Report of the Historical MSS. Commissioners.

DIURNAL OF OCCURRENTS.

The "Diurnal of Occurrents in Scotland" was first printed by the Bannatyne Club in 1833 (from a MS. then in the possession of Sir John Maxwell of Pollock). It deals with the history of Scotland from 1513 to 1575. During the period with which we are concerned, it is clearly the diary of an Edinburgh citizen, and it is of great value, especially in fixing dates. The anonymous diarist was not a partisan of the Queen, but his work is more impartial than any other of the period. Another contemporary diary, by

Robert Birrell, is published in Dalyell's "Fragments of Scottish History," 1798.

GUDE AND GODLY BALLATES.

The controversy of the sixteenth century gave rise to many political songs and ballads, which became known to the Protestant party as the "Gude and Godly Ballates." Most of them were aimed against Roman Catholicism in general, but some are invectives against Queen Mary herself. The specimens given are among the best known. They are slightly earlier in date than the arrival of Mary in Scotland; but they serve to illustrate the bitterness of the struggle.

APPENDIX D.

(D.) AUTHORITIES.

The remaining contemporary authorities are to be found in the letters of ambassadors, and the other diplomatic correspondence of the time. But it must be remembered that a statement can by no means be implicitly believed because it appears in such documents. The circumstances of the writer, his opportunities of obtaining information on the particular topic, his personal prejudices, the impression that he wished to convey to his correspondent, must all be allowed due weight. The correspondence and other information is largely contained in the following books:—

(1.) OFFICIAL PUBLICATIONS.

Acts of Parliament of Scotland.

Reports of the Royal Commission upon Historical MSS.

Register of the Privy Council of Scotland.

Calendar of Documents relating to Scotland, preserved in the Public Record Office.

Calendar of Papers relating to Foreign Affairs, 1542-1587.

Calendar of Papers relating to English Affairs, preserved in the Archives of Simancas.

Calendar of Papers relating to English Affairs, preserved in the Archives of Venice.

Calendar of Border Papers.

The Hamilton Papers.

Calendar of Papers relating to Scotland and Mary Queen of Scots, 1898.

(2.) BOOKS WHICH CONTAIN ORIGINAL LETTERS, &c.

Fædera, Conventiones, Literæ, &c., inter Reges Angliæ et alios, ed. by Thomas Rymer. London, 1704-1735.

Queen Elizabeth and her Times, by Thomas Wright. London, 1838.

History of the Affairs of Church and State in Scotland, by the Right Rev. Robert Keith, Primus of the Scottish Episcopal Church. Edinburgh, 1734 (reprinted by the Spottiswoode Society).

Miscellaneous State Papers from 1501 to 1726, edited by Philip, Earl of Hardwicke. London, 1778.

The Annals of Aboyne, edited by George, 11th Marquis of Huntly. (New Spalding Club.)

Life of Queen Mary, by George Chalmers. London, 1818.

History of Scotland, by William Robertson, D.D.

History of Scotland, by Patrick Fraser Tytler.

Inventories of Mary Queen of Scots, edited by Joseph Robertson.

Examination of the Letters said to have been written by Mary Queen of Scots, to James, Earl of Bothwell, by Walter Goodall, 1744.

History of Scotland, by Malcolm Laing.

Illustrations of British History, by Edmund Lodge.

Elizabeth and Mary, by Fred. Von Raumer.

Original Letters, Illustrative of British History, ed. Ellis.

Mary Queen of Scots and her Accusers, by John Hosack, 1870-74.

Mary Queen of Scots, from her Birth to her Flight into England, by D. Hay Fleming.

Recueil des Lettres de Marie Stuart, ed. Labanoff.

Letters of Mary Stuart, ed. Agnes Strickland.

Cabala, sive Scrinia Sacra. London, 1691.

Collections relating to Mary Queen of Scots, by James Anderson.

A Lost Chapter in the Life of Mary Stuart, by John Stuart.

Queen Mary at Jedburgh, by John Small.

Illustrations of the Reign of Mary Queen of Scots. (Maitland Club.)

Relations Politiques de la France et de l'Espagne avec l'Écosse, edited by Teulet.

The Tragedy of Fotheringay, by the Hon. Mrs. Maxwell-Scott.

These are the main authorities. A complete list of publications dealing with the question up to 1700, will be found in "A Bibliography of Works relating to Mary Queen of Scots, 1544-1700," by John Scott, C.B. (Edinburgh Bibliographical Society, 1896). Very full references will be found in Mr. Hay Fleming's notes. The list of authorities appended to the articles "Mary Stuart," in the *Dictionary of National Biography*, should also be consulted.

APPENDIX E.

(E.) CONTROVERSIAL WORKS.

The general historians who deal with the period—Hume, Robertson, Tytler, Laing, Froude, and Hill Burton—are usually ranked among Queen Mary's opponents. Hume and Froude occupy the most decided position. Among other writers who are definitely against the theory of Mary's innocence, must be reckoned Mignet ("Life of Mary Queen of Scots"), Mr. D. Hay Fleming ("Mary Queen of Scots"), and Mr. T. F. Henderson (articles, "Mary Stuart," "Henry Stewart, Lord Darnley," "James Hepburn, Earl of Bothwell," &c., in the *Dictionary of National Biography*). No one can hope to understand the present position of the controversy without the writings of Mr. Fleming and Mr. Henderson. Among general controversialists on the side of Queen Mary, may be mentioned the works already quoted, by Walter Goodall, George Chalmers, and John Hosack, William Tytler's "Inquiry into the Evidence against Mary Queen of Scots" (1790), Whitaker's "Mary Queen of Scots Vindicated" (1778), Miss Agnes Strickland's "Lives of the Queens of Scotland," Mr. Alex. Walker's "Mary, Queen of Scots," Mr. M'Neel-Caird's "Mary Stuart," and Sir John Skelton's "Impeachment of Mary Stuart," "Maitland of Lethington," and "Life of Mary Stuart." Mr. Swinburne's "Mary Queen of Scots" is one of the most attractive works on the subject. The reader will recollect that the "false Duessa" in Spenser's "Faerie Queen" is the Queen of Scots.

The last few years have seen the publication of many important works dealing with the problem of the Casket Letters, *e.g.*:—

Bresslau: "Die Kassettenbriefe der Königin Maria Stuart," in the *Historisches Taschenbuche*, 1882.

Sepp: *Die Kassettenbriefe*, 1884.

Gerde: "Geschichte der Königin Maria Stuart," 1885.

T. F. Henderson: "Casket Letters, and Mary Queen of Scots." 2nd ed. 1890.

Philippson: "Histoire du Règne de Marie Stuart," 1891-92.

The English reader will find the material in Mr. T. F. Henderson's work ample for his purpose. The preface to Mr. Hay Fleming's "Mary Queen, of Scots" promises a second volume, which will contain the life in captivity, and, of course, deal with the letters. No Marian apologist has, as yet, attempted an answer to the more recent evidence on the other side, and Hosack's great work is now considerably superseded. The foregoing lists are, of course, selected. A full Bibliography is a great task, not yet attempted.

THE END

Footnotes

[1] Spleen.

[2] The volumes were a Bible and a Psalter "coverit with fine purpoure velvet." Cf. the *Diurnal of Occurrents*, September 2, 1561, which gives some additional details, and mentions that the child "delivered also to her hieness three writings, the tenour whereof is uncertain."

[3] Gainful.

[4] Could.

[5] Which.

[6] MS. to them.

[7] Beseeching.

[8] Goodwill.

[9] Consider.

[10] *Original reads*, With huntis up.

[11] Lumps.

[12] Worthless persons.

[13] Smothered.

[14] Put the barnacles on you, as on a restive horse.

[15] So the "Calendar," but Chalmers, in quoting, reads, probably correctly, "stomach."

[16] Word illegible.

[17] It was a mediæval superstition, especially in France, that the English possessed tails, which had been affixed to their persons as a punishment for their ill-treatment of a saint; the names of St. Augustine and St. Thomas of Canterbury were used indifferently in this connection. Cf. Mr. George Neilson's "Caudatus Anglicus: A Mediæval Slander."

[18] German. Black Riders, or heavy cavalry.

[19] Ps. xliii. 1.

E. = English; F.= Published French; L. = Latin.

[20] *E.* "Considering what the body may without heart, which was cause ... that till dinner I had used little talk." So also French, but Latin as in Scots.

[21] *E.* Adds after "letters," " ... as though there had been a meaning to pursue him."

[22] *L.* and *F.* Omit "He desired ... refusit it."

[23] *E.* "The Lord Luse, Houstoun, and the son of Caldwell, and about forty horse came to meet me, and he told me that he was sent to one day o' law from the father, which should be this day," &c. *L.* and *F.* as in Scots.

[24] *E.* Omits "I see ... company."

[25] *E.* Omits "yesternight;" *L.* "heri;" *F.* "hier."

[26] *E.* ... "Whether it were for any good appointment that he came, and whether I had not taken Paris and Gilbert to write, and that I sent Joseph."

L. "Item cur venisrem? an reconciliationis causa? ac nominatim, an tu hic esses? An familiæ catalogum fecissem? An Paridem et Gilbertum acceptissem, qui mihi scriberent? an Josephum dimissura essem?"

F. "Item pour quoy j'estoye venue, et si c'estoit pour faire une reconciliation; si vous estiez icy; et si j'avoye faict quelque rolle de mes domestiques; si j'avois prins Paris et Gilbert, afin qu'ils m'escrivissent; et si je ne vouloye pas licentier Joseph."

[27] Scots has a marginal note, "This berer will tell you sumwhat upon this," which appears in the English text and is omitted in the other versions.

[28] This berer will tell you somewhat upon this. [Marginal note in original.]

[29] *E.* "He said that he did dream, and that he was so glad to see me that he thought he should die—indeed, that he had found fault with me." *L.* and *F.* as in S.

[30] *E.* "You have well pardoned them." *F.* and *L.* as in S.

[31] *E.* "And at the last repent, and rebuke himself by his repentance." *L.* and *F.* as in *S.*

[32] *E.* "The rest, as Will Hiegate hath confessed; but it was the next day that he came hither." *L.* and *F.* as in *S.*

[33] *E.* omits "I trow ... Presoner."

[34] *E.* "He denyeth it, and saith that he had already prayed them to think no such matter of him." *L.* and *F.* as in *S.*

[35] *E.* "And indeed it was said that I refused to have him let blood." *L.* and *F.* as in *S.*

[36] *L.* "Praesidium." *F.* "Forteresse."

[37] *E.* "By that false race that would do no less to yourself." *L.* "A gentle illa perfida, quae non minore contentione te cum de hoc ipso aget." *F.* "Par ceste nation infidele, qui avec non moindre opiniastreté debatra le mesme avec vous."

[38] *E.* Adds after "greitly"—"but I had begun it this morning."

[39] *E.* Adds after "all out of him"—"I have known what I would. I have taken the worms out of his nose."

[40] *E.* "We are tied to with two false races. The good yure {goujere} untye us from them. God forgive me, and God knit us together forever." *L.* "Diabolus nos sejungat, ac nos conjugat Deus in perpetuum," &c. *F.*, "Le diable nous vueille separer, et que Dieu nous conjoingne à jamais," &c.

[41] *E.* "I am weary, and am asleep." *L.* "Ego nudata sum, ac dormitum eo." *F.*, "Je suis toute nuë, et m'en vay coucher." [The Latin and French translation mistook "irkit" for "nakit."]

[42] *E.* "He is not much the worse, but he is ill arrayed." *L.* "Non magnopere deformatus est, multum tamen accepit." *F.* "Il n'a pas esté beaucoup rende diforme, toutesfois il en a pris beaucoup."

[43] *L.* "Propinqui." *F.* "Parent."

[44] *E.* "By his bolster, and he lieth at the further side of the bed." *L.* "Ad pedes ejus." *F.* "A ses pieds."

[45] *E.* "The talk of Sir James Hamilton of the ambassador." *L.* and *F.* as in *S.*

E. "Lord of Lusse." *L.* "Lussae Comarchus." *F.* "Le prevost de Lusse."

[46] *E.* "You may well go and see sick folk." *L.* "Bella huiusmodi hominum visitatio." *F.* "Voyla une belle visitation de telles gens." [*L.* and *F.* translators confusing *sik* (sick) and *sik* (such).]

[47] *E.* "And said, 'One of his folk that hath left you this day.'" *L.* "Respondit, unus eorum qui te reliquerunt." *F.* "Respondit, c'est l'un de ceux qui vous ont laissée."

[48] *E.* "To my tedious talk." *L.* "Ad institutum meum odiosum." *F.* "À ma deliberation odieuse."

[49] *E.* Omits "or I did." *L.* and *F.* as in *S.*

[50] *E.* "No more." *L.* "Ne saepius." *Fr.* "Ne ... si souvent."

[51] *E.* "Till after tomorrow." *L.* "In diem perendinum." *F.* "Encor deux jours."

[52] *E.* "More pleasantly." *L.* "Valde ferociter." *F.* "Fort asprement."

[53] *E.* "Make but one bed." *L.* "Communem fore lectum." *F.* "Ne faisons plus qu'un lict."

[54] *F.* "But did fear lest, considering the threatening which he made in case we did agree together, he would make them feel the small account they have made of him, and that he would persuade me to pursue some of them." *L.* "Sed in timore futuros quod comitatus fuisset, si aliquando inter nos concordēs essemus, se daturum operam ut intelligerent quam parvi eum aestimāssent; item quod mihi consuluisset ne gratiam quorundam seorsum a se expeterem." *F.* "Ains seroient en crainte de ce qu'il m'auroit suivy. Et si nous pouvions estre d'acord ensemble, qu'il pourroit donner ordre, qu'ils entendroient combien peu ils l'avoient estimé. Item de ce qu'il m'avoit conseillé, que je ne recerchasse la bonne grace d'aucuns sans luy."

[55] *E.* "Than you think." *L.* and *F.* as in *S.*

[56] *E.* "He giveth me certain charges (and these strong) of that I fear even to say that his faults be published; but there be that commit some secret faults, and fear not to have them spoken of so lowdely, and that there is speech of greate and small." *L.* "Interim me attingit in loco suspecto; idque ad vivum hactenus proloquutus est, sua crimina esse palam; sed sunt qui majora committant, et opinantur ea silentio tegi; et tamen homines de magnis juxta et parvis loquuntur." *F.* "Cependant il m'a donné attainte du lieu suspect, et a jusques icy discoursu bien au vif, que ces fautes sont congreües; mais qu'il y en a qui en commettent de plus grandes, encores qu'ils estiment qu'elles soient cachées par silence; et toutesfois que les hommes parlent des grands aussi bien des petits."

[57] *E.* "To conclude, for assuredly he mistrusteth her of that that ye know, and for his life." *L.* and *F.* as in *S.*

[58] *E.* "He was very merry and glad." *L.* and *F.* as in *S.*

[59] *E.* Adds after "speak"—"Now, as far as I perceive."

{J'ay bien la vogue avec vous^[64]} Guess you whether I shall not
{I may do much without you. } be suspected."

[60] *E.* "For I think upon nothing but grief if you be at Edinburgh." *L.* and *F.* as in *S.*

[61] *E.* Omits "Be not ... credit."

[62] *E.* Omits from "Remember you" to the end.

[63] *F.* Mais pour tout cela Je me vous accuserai ni de peu de souvenance ni de peu de soigne et moins encore de vostre promesse violee que ce qu'il vous plaist mest agreable et sont mes pensees tant volonterement, aux vostres asubjectes que je veulx presupposer que tout ce que vient de vous procede non par aucune des causes susdictes ains pour telles qui son justes et raisoinables et telles que je desie moy.

[64] This is a comment in the margin, perhaps a quotation from the French version shown to the Commissioners. According to Mr. T. F. Henderson, it is in Cecil's handwriting. ("The Casket Letters and Mary Queen of Scots," p. 78.)

P. F. = Published French; *L.* = Latin.

[65] [65b] [65c] *P. F.* "Autrement j'estimeray que cela se faict par mon malheureux destin, et par la faveur des astres envers celles, qui toutesfois n'ont une tierce partie de loyauté, et volonté que j'ay de vous obëir; si elles, comme si j'estoye une second amye de Jason, malgré moy, occupent le premier lieu de faveur; ce que je ne dy, pour vous a comparer a cet homme en l'infelicité qu'il avoit, ny moy avec une femme toute esloignée de misericorde, comme estoit celle-la," &c. *L.* "Alioqui suspicabor fieri malo meo fato, et siderum favore erga illas (quae nec tertiam habent partem fidelitatis, et voluntatis tibi obsequendi, quam ego habeo) ut ipsae, velut secunda Jasonis amica, me invitâ, priorem apud te locum gratiae occupaverint; nec hoc eo dico, quo te cum homine, eâ quâ ille erat infelicitate, comparem, nec me cum muliere tam aliena a misericordia quam illa erat."

[66] [66b] [66c] *P. F.* has no sentence corresponding to "mak gude watch," and proceeds, "Comme l'oyseau eschappé de la cage, ou la tourtre qui est sans compagne, ainsi je demeureray seule, pour pleurer votre absence, quelque brieve qu'elle puisse estre." *L.* also has no expression for "mak gude watch," but reads, "Si avis evaserit e cavea aut sine compare, velut turtur, ego remanebo sola ut lamenter absentiam tuam quamlibet brevem."

The English translation at Hatfield follows the Hatfield French version closely. The two most important passages run thus: "Otherwise,[65c] I wold think that my yll luck, and the fayre behavior of those that have not the thirde parte of the faythfulness and voluntary obedience that I beare unto you, shall have wonne the advantage over me of the second Looover of Jason.... Send me[66c] word tomorrow early in the morning how you have don for I shall think long. And watche well if the byrde shall fly out of his cage or without his mate, as the turtle shall remayne alone to lament and morne for absence how short soever it be."

[67] *F.* "Je ne vous lay peu dire pour sçavoir comment je me gouvernerois." (I could not tell you, in order to know how to govern myself.)

[68] *F.* "Et si vous ne me mondes ce soir ce que volles que jeu fuisse je m en deferay au hazard de la fayre entreprendre ce qui pourroit nuire a ce a quoy nous tandons tous deux {and if you do not send me word this night what you will that I shall do, I will rid myself of it at the hazard of making her undertake that which might be hurtful to that whereunto we both do tend (Laing)} et quant ella sera mariee je vous suplie donnez quene opinion sur aultrui ne nuise en votre endroit a ma constance."

[69] *F.* in Record Office, "M'a preschè que c'estoit une folle entreprise, et qu'avecques mon honneur Je ne vous pourries Jamais espouser, veu qu'estant marié vous m'amenies et que ses gens ne l'endureroient pas et que les seigneurs se dediroient" *P. F.* "Il me remonstra, que c'estoit une folle entreprise, et que pour mon honneur, Je ne vous pourvoye prendre à mary, puis que vous estiez marié, ny aller avec vous, et que ses gens mesmes ne le souffriroient pas voire que les Seigneurs contrediroient á ce que en seroit proposé." *E.* at Hatfield, "And thereupon hath preached unto me that it was a foolish entreprise, and that with mine honour I could never marry you, seeing that being married you did carry me away. And that his folk would not suffer it, and that the Lords would unsay themselves, and would deny that they had said."

[70] *F.* in Record Office, "Ce incertains nouvelles." *P. F.* "Ces nouvelles ceremonies." *E.* at Hatfield, "These new ceremonies."

[71] *F.* "Homme."

[72] *F.* "Quant à jouer le mien, je sçay com me jè m'y dois gouverner, mà souvenant de la façon que les choses ont esté delibereés."

[73] *F.* Adds "et tenir captive."

[74] *P. F.* "veu."

[75] *Record Office F.* "promis."

[76] *P. F.* "homme."

[77] *Ny?*

[78] *Rochelle text* has "affection" wrongly.

[79] *Buchanan*, "luy" only. *Rochelle text*, "lui le fair."

[80] Read "Mon pis subject"?

[81] *Buch.*, "fainte."

[82] *Buch.*, "ont fait."

[83] *Buch.*, "Pour son profit elle."

[84] *Scots translation*, "And not the less, my heart, ye doubt of my constance."

[85] *Buch.*, "vous la."

[86] *Buch.*, "la constance."

[87] *Buch.* inserts "receu."

[88] *Text of sextain* corrupt.

[89] Omitted in *Rochelle version* as corrupt.

[90] *Buch.*, "envoy."

[91] *Buch.*, "mestimez legier que le voy."

[92]Buch., "viuray, &".

[93]Scots—"For him I will stryve aganis wan-weird."

[94]Rochelle version to read "luy tout."

[95]Buch., "lesser."

[96]Buch., "Que m'en pensa ... & frayeur."

[97]Rochelle text, "et vostre ... de la mienne suivi," and later version "la mien suivre."

[98]Man.

[99]Think.

[100]Sweet.

[101]Till.

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Headings printed at the top of pages in the original have been converted to sub-headings and placed at the head of the most relevant paragraph - see grey shaded sub-headings

Much of the text being letters and transcripts, inconsistent spellings have been retained

Footnote 64 had no anchor in the text. Since it appears to relate to the whole of letter III an anchor has been inserted at to top of the letter.

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